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NEVER SETTLE

Persuasion and Negotiation Skills
to Get What You Want

ATTIA QURESHI & JOHN RICHARDSON

SIMON ACUMEN

New York Amsterdam/Antwerp London
Toronto Sydney/Melbourne New Delhi

JOHN

For Ben, Pete, and Addy.
It's your world now.

ATTIA

For Zavian.
You are my light.

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FOREWORD

BY SHEILA HEEN

*Author of the New York Times bestseller **Difficult Conversations***

DOES THE WORLD NEED ANOTHER book about negotiation theory? I'm not sure. Luckily, this isn't one. Does the world need *better negotiators*? Yes. Desperately. And in so many areas of life. There's no shortage of books on negotiation theory, so why is there still such a gap between concept and execution?

I've been teaching the flagship Negotiation Workshop at Harvard Law School, and for clients through my firm Triad Consulting, for thirty years. I've watched the fields of dispute resolution and negotiation mature in wonderful ways over the last few decades, enriching our understanding of conflict, the negotiation process, and difficult conversations. At this stage there are more frameworks, tools, readings, and insight than I can fit into any single course or executive session, no matter how many hours I've got to work with. Those frameworks and tools are genuinely useful, providing insight into the dynamics and challenges of conflict and enhancing our capacity to take apart and map complex stakeholders and issues in the real world. At the end of any consulting project, semester course, or executive education session, I walk away confident that I have handed people a wealth of tools, insight, advice, and skills.

And yet I *don't* feel confident that, once I leave and when they're back in their everyday lives, they will *change their behavior to negotiate more effectively*.

That gap is particularly tricky when it comes to following our own advice in our own conflicts. I work with clients all over the world. My ability to quickly understand someone else's conflicts and then provide helpful insight and advice has grown enormously over the years. Yet when it comes to my own conflicts—

where I am a party to the difficulty—it continues to feel like a mess. My ability to see my own conflicts clearly, and especially to follow my own advice in how I’m handling them, has been a slower and more fraught learning process. And I know from talking with many wonderful colleagues in the field that I’m not alone in that.

We know it. We teach our students and clients about it. We all struggle to do it.

So, what *does* move the needle on strengthening negotiation performance and creating genuine behavioral change?

John Richardson and Attia Qureshi have focused their energy on exactly this question. I’ve watched them experiment with assigning “behavioral homework” in their negotiation classes at MIT and the University of Michigan, read the analyses of those completing the assignments, and use the feedback to fine-tune the exercises accordingly. I’ve assigned the exercises in my own courses and watched students and professionals grow their capabilities. And I’ve used the exercises to grow in my own capabilities as well.

Never Settle will help you become a better negotiator in many aspects of your life and is adaptable to a broad range of negotiations you will encounter—whether at home or in the workplace. The widely useful and practical exercises make it the perfect actionable quick read to become a stronger negotiator, regardless of your current capabilities. Want to increase that salary offer by 10 percent? Convince your partner to move to that dream spot? *Never Settle* can help you with all that and more.

This is why I’m so excited about this book and the path it offers to genuine behavioral change. Every week new books and articles come out that add to our understanding of negotiation. This is the first book in a long time that I will be adding to assigned reading in my own courses and immediately using with my own clients.

The world needs better negotiators—stat!—and this book goes a long way in creating and guiding readers to achieve better negotiation skills in their own lives, across a multitude of settings and circumstances.

INTRODUCTION

WHY THIS BOOK

Most People Are Terrible Negotiators

WE'RE WRITING THIS BOOK TO help you get better at negotiation. Not to make you learn more about negotiation theory but to help you get better at *doing it*, so you never have to settle for what someone offers. We want you to get exactly what you want.

It's 1:00 a.m. and your neighbor is blasting dance music (again). Or your colleague on a joint project is consistently late in sending in their contribution. Or your boss keeps promising that raise, but nothing ever comes of it. Has she even spoken with her boss? Or you missed your flight, and you need the help of the airline reservationist to get on the next one, or give you a refund, or something. Any time we are trying to influence someone to get something we want or need, we are negotiating—usually multiple times a day. If you dread these negotiations, and worry you aren't good at them, don't despair. Almost everyone else is pretty bad at them too.

We believe negotiation might be the most important skill you can learn. It makes you better at any job. It helps you to develop better friendships and deeper relationships, as well as establish larger, more effective business networks. It can even improve your relationship with your significant other.

The same skills that help you win in the workplace help in countless other ways as well. As you learn more about what another person cares about or values, you can better help them understand your goals and reach common ground. And you'll be able to do it in a way that will make both of you feel more satisfied. Good negotiators look for ways to make all parties better off. They figure out how to give you things that are cheap for them but valuable to you, and vice versa. People who are good at negotiation make organizations—from a

volunteer fire department to a tech start-up—run more efficiently and get more done.

The negotiation principles we present and encourage you to practice in this book will help you to know other people's needs more deeply, make decisions that will maximize the benefit for both, and resolve conflicts in a way that both parties feel is fair. And, of course, you will get more of what you want.

What's the Goal?

SO WHY WOULD WE WANT to write this particular book? It's a long story. We'll explain our own motivations here, but if you just want to get to it, you can skip to chapter 1.

JOHN: I took a negotiation class my first year of law school, in 1990. It was badly oversubscribed, but I got lucky in the course lottery. The instructor was Bruce Patton, one of the authors of the seminal book on negotiation *Getting to Yes*. I loved that class. I thought negotiation was the most interesting class I had ever taken. To be good you needed a mix of probability math, game theory, legal reasoning, and acting. It reminded me of playing Risk in the basement with my three brothers. Bruce thought I was good at it and invited me to be a teaching assistant for the next year.

The instructor I worked for as a TA was Bruce's colleague Roger Fisher, the lead author on *Getting to Yes* and a pioneer in the field of negotiation. He was a brilliant lecturer and theorist. I was starstruck. One time during his office hours, we got to talking about our families, and Roger mentioned he had been in the 8th Air Force. "So was my uncle Syd!" I told him. "But he didn't make it back." Roger looked stricken. So many of his friends died in the war, he told me. His three freshman-year roommates at Harvard, all best buddies, served in the war, and only Roger lived to come home.

Roger had been an amateur meteorologist before the war, so the Air Force made him a weatherman and sent him out to scout bombing sites in advance of a mission—there were no satellites back then. If the commander wanted to

know if it was too rough to fly, he would send Roger and his buddies out in a plane and see if they came back.

After Germany surrendered, he was transferred to the Pacific. Every day he flew a weather mission over Japan, in a lone B-29. The plane carried only a tiny load of bombs so it could fly higher and longer, and the crew would drop them on anything that looked like a target. Every day Japanese fighters would come up to shoot him down. Roger thought that the Japanese, who were short on aviation fuel, were unlikely to chase a plane without any bombs, so he recommended that weather planes stop carrying them. It worked, and the Japanese fighters stopped chasing him. A triumph of negotiation.

After a while, the Japanese didn't even sound the air raid alarm when the weather plane came over. So, when a single B-29, the *Enola Gay*, came over and dropped the first atomic bomb, the schoolkids were still out on the playground. Roger felt he had been complicit in a terrible evil—even if unwittingly. He made it his life's mission to save the world from the horrors of war—not through disarmament or armed force but through better negotiation, so that world leaders could get more of what they needed by talking and diplomacy than by fighting. And he persuaded a lot of us, his students, to join him on that quest.

My father's parents died when he was young. The most important person in his life was his brother Syd. Syd was nine years older and looked after him. Syd wanted to be a pilot like his father before him. He was killed flying over Germany. Losing Syd did terrible damage to my father. For me, working with Fisher felt like a way to heal that damage, or at least to try to stop it happening to some other guy. So I signed on to Roger's crusade, and I worked with them as much as I could for the rest of my time in law school.

When I graduated Harvard Law, I joined a big firm in New York, working for the defense in federal securities fraud litigation. I was good at it, and I was making huge amounts of money for the time. I got plenty of negotiation practice. But it left me feeling uneasy. The stuff my clients did was technically legal, but I wouldn't have left my mom alone in the same room with them. I couldn't say that I was working for the good of humanity by doing financial litigation. After a couple of years, I had paid off all my loans and wondered what to do with my life.

About then Roger Fisher called me up and asked if I wanted to come back and work for him. So I quit my high-paying job and went to work for Roger as a research assistant making \$8.50 an hour. I went from steaks at Peter Luger's back to eating ramen. But I felt good about it, because I was part of a movement to save the world through better negotiation.

Later, the Harvard Negotiation Project took me on staff. In 1996, I wrote a book with Roger Fisher and Alan Sharp called *Getting It Done*, about how to lead when you're not in charge. And another called *Negotiation Analysis* with Howard Raiffa. Two of the founding titans in the field. And then Harvard appointed me Lecturer on Law, teaching negotiation. We were spreading the gospel of negotiation to universities and think tanks and negotiators across the country. And one day, we hoped, the world.

Part of our plan was that we would spread out and bring our version of negotiation to other universities. I got a job teaching at MIT, in the Sloan School of Management. In 2016, I had a fateful meeting. Attia Qureshi was a brilliant student, enrolled in an integrated program of design, management, and engineering: a creator. She was the best student in a large negotiation class, so I hired her as a TA. She was the best of many TAs, and as a result she became head TA and taught the new TAs how to do the job effectively. I thought she would be a great negotiation professor, so I started including her in course design and then ultimately persuaded the school to hire her to lecture alongside me.

ATTIA: During and after getting my master's from MIT, John and I taught negotiation together for four years at MIT's Sloan School of Management. I also started my own consulting firm where I help high-growth companies with strategy and organizational development (which require a lot of negotiation and conflict resolution). My clients often call me their organizational therapist. Today I'm also an adjunct professor of negotiation at the University of Michigan, where I teach at the Ford School of Public Policy. With a background in user-centered design, I helped to develop new negotiation and communication methodologies for more effective leadership. I've also been active in the field, conducting conflict resolution and negotiation work in Colombia for the US State Department.

I first started picking up negotiation skills while watching my parents, first-generation immigrants from India (my mom) and Pakistan (my dad), make a good life for me and my sister in Michigan. My mom was a master of influence, as sweet as honey in some situations and as firm as steel when others didn't match her efforts. My parents invited three other extended families to move into our house to give back to their less fortunate siblings. As a result, I had to navigate some pretty complex family dynamics—from sharing resources to negotiating a fair distribution of chores and navigating intolerant religious beliefs.

After graduating from the University of Michigan with a bachelor's in business, I landed a job in management consulting in Silicon Valley, working across different departments and functions—sales, marketing, engineering, HR—within organizations. I then took those skills to two tech start-ups. I decided to go back to school to get a master's degree to hone my skills and signed up for John's Power and Negotiation class at MIT Sloan. The class was fully booked, but I determinedly emailed John and his TA about enrolling and showed up to every class until he let me in. I fell in love with the content. It aligned with everything I had learned unconsciously growing up. That you can incentivize people to behave more humanely, more relationally, and more ethically by showing them that they will get more X (money, power, time, promotions, etc.) by being better actors. How amazing is that?! Over time I became John's lead teaching assistant and ultimately a lecturer teaching a section of Power and Negotiation alongside him after I graduated. After graduating from MIT, I started my own consulting company, and John and I continued to work together over the next decade. Today I live in Traverse City, Michigan, with my husband and our son. My husband is a sixth-generation cherry and apple farmer and a local government official, which made the negotiation of where we would live complex for me to navigate (you can't move orchards). He's good at moving with the seasons, while I try to negotiate with the weather, which I consistently fail at.

One of the most challenging negotiations I've conducted involved working with the State Department to persuade farmers in Colombia to switch from growing coca plants to less harmful crops like oranges. I found myself up against

a cartel determined to protect its cocaine pipeline, a negotiation you'll hear about later. I can assure you that the skills I needed to handle the negotiation weren't innate or created ad hoc. They came about through years of hard work and practice.

It Wasn't Enough

JOHN: At Harvard and MIT, we were teaching our students ideas about how to negotiate—they are fabulous ideas, really smart and strategically sound. And our students loved the ideas—they would get energized by what they were learning. And yet we found that when they left the classroom and went back to jobs and careers and daily life, most continued to do what they were doing before. Maybe they negotiated differently for the months they were in class, and that might last for the first few months on the job. But gradually they lost sight of what we had taught them. The ideas hadn't changed their habits. We tried to include as much practice as we could in our classes, as well as have them analyze their behavior on videotape.

Our classes, compared to typical law school classes, were much more practice oriented. I was coaching Little League at the time and remember asking myself, How many times do you have to tell a kid to keep his back elbow up at the plate before he does it? Learning a skill like that takes a lot of repetition. That experience made me even more nervous about our work on negotiation in the classroom. What I came to learn was that good advice wasn't enough. We didn't yet have a winning strategy for implementing the ideas to make people consistently better negotiators.

ATTIA: I was working in user-centered design, which emphasizes creating solutions that truly fit people's needs. This methodology has created highly successful products, experiences, and systems. So I thought, *Why not use it within negotiation and leadership? How do we design a new way for people to use negotiation theory and drive behavioral change to become better negotiators?* We needed a new approach to help people improve their negotiation skills, one that

was fun, easy, and effective. I had seen time and again how certain teams and projects succeeded through formal and informal influence, while others failed. The teams that consistently succeeded had key people who were highly influential within the team while also interacting with other stakeholders outside the team. Most weren't conscious of it, but they were implementing many of the skills that we describe in this book, from talking about the importance of dealing with emotions in a negotiation in chapter 2 to learning how to say no comfortably in chapter 9. I started documenting those techniques so I could be more influential myself—taking the user-centered design approach and identifying what works in certain situations. Many of the skills wound up in this book and helped me build the foundation of my consulting practice.

The Missing Piece

JOHN: My wife, Sheila, also taught negotiation at Harvard Law. One evening she was hosting some of her students at our house when I got home. I wandered into the kitchen and noticed there was only one beer left. *Just in time!* I thought as I cracked it open. Just then, an older student, a guy in his forties, wandered in holding a red Solo cup, and looked sadly in the empty ice bucket. He looked at me, gave me a warm smile, and held it, slightly wiggling the cup. I didn't really even make a decision; it was more like I just watched myself pour half the beer into his cup. It was like watching a magician do a clever card trick. All I could think was, *How'd he do that?*

He was tall and rangy, with a face that had seen a lot of sun, and walked with a bit of a limp. He said, "I understand you teach negotiation at Harvard Law School. I'd love to talk to you about that." He told me he was an FBI agent in the Crisis Negotiation Unit. He taught at the negotiation school at Quantico. He had just had knee surgery and was off duty until he could walk again. So he came up to Harvard to see what ideas around negotiation he could scoop up. His name was Chris Voss. I broke out the single malt scotch, and we talked long into the night.

Through sheer dumb luck I'd just run into one of the best negotiation minds of our generation. What intrigued me was that Chris looked at negotiation from a different point of view than my colleagues and I at the Harvard Negotiation Project did. At the FBI and other law enforcement agencies, agents learn hostage negotiation from the ground up, based on what works in the field, dealing with bad guys holding human beings as hostages with a gun in their faces. At Harvard, in the approach captured in the bestselling book *Getting to Yes*, we learned negotiation from the top down, beginning with the theory.

I learned that the law school and world of academia I knew was only part of the smart thinking about negotiation. There was a whole silo of law enforcement people who knew all kinds of things we didn't, and vice versa. In network analysis, Chris would be called a "boundary spanner," someone who bridged the gap between two unconnected groups.

Part of his teaching on listening was to concentrate on small moves rather than big concepts. Instead of "listen with full attention, and try to understand their point of view," he would say to make a lot of "minimal encouragers"—the small friendly noises you make unconsciously when a friend is telling a good story. "I see" and "Mmm" all the way up to "Dude, no way!" This lets them know you are listening and keeps them talking longer, without making them feel like they are being interrogated. The hostage negotiators' insight was to consciously make minimal encouragers even in a hostile, unpleasant conversation, which starts to make you feel like a friend to the speaker. Another example is "mirroring," where you repeat a word or short phrase the subject uses to keep them talking about your chosen topic.

But it wasn't just the ideas. His technique was military grade. We were talking over breakfast one morning. I told Chris, "Some of your listening techniques are fantastic, like those minimal encouragers. But others, like 'mirroring,' are terrible."

"They're terrible?" he said.

"I mean it's so obviously a technique. It sticks out like a sore thumb. It's insulting."

"Insulting."

“Dude, I’m a negotiation *expert*. I know when someone is using a little game or tactic like that on me. It doesn’t make me talk; it makes me stop ’cause I’m annoyed.”

“You’re an expert...”

“I’ve been doing this for twenty years. It’s not hard to... oh God! I hate you!” I said, suddenly realizing what he had just done to me. Flawless victory. He laughed for a long time.

I wanted more of this, so I asked if I could sit in on the next FBI course he taught at Quantico. His eyes had a touch of sadness. “Yeah, a lot of people have asked me that.” The waiting list was really long, he explained, and mostly restricted to FBI field agents and representatives of other law enforcement agencies with whom the FBI was building relationships.

A couple of months later I got a call from the registrar’s office at Harvard. They were looking for someone to teach negotiation at Harvard Extension—the night school Harvard established for students in Cambridge and Boston. A lot of the students are Harvard support staff. I didn’t particularly want to teach at night when I could be home with my kids, but I felt a tug of obligation. The registrar had saved my bacon the previous year when I misread the due date for grades. And I wanted to give back to the staff. Most of them are great.

Then I thought, *Maybe I could invite Chris to Harvard to co-teach a class in negotiation with me at Harvard Extension*. I’d get to see Chris’s methods, and it would benefit him as well. He had mentioned that he was interested in teaching at a university when he retired. But universities almost never want to be the first institution to hire someone to teach. They always want to know, “Where have you taught before?” I thought co-teaching at Harvard Extension would give him a foot in that door.

After checking with the registrar’s office, I called up Chris. “You want to teach a class together?” He said yes, and it was a blast.

I learned so much about the *practice* of negotiation by working with Chris—about teaching negotiation as a performance skill. Our goal wasn’t to discuss theory but to show students how to negotiate better. And when class was over at 10:00 p.m., we would take anyone who wanted to come to the local bar to talk some more. Chris used the environment around him like a playground or a

practice room. *How quickly can I learn everybody's name in this bar? What would make the bartender give me a free drink? Can I talk this traffic cop out of giving me a ticket? The landlord is raising everybody's rent. How can I convince him not to raise mine?*

This planted a seed that ultimately helped us address the missing piece and develop a new way for people to change how they showed up to become better negotiators.

Good Ideas Are Not Enough; You Need a Way to Practice

NEGOTIATION HAS BEEN THE SUBJECT of serious research and writing since the 1960s. And with impressive results. We have a ton of good advice to give people about how to do it, thanks to groundbreaking books like *Getting to Yes* by Roger Fisher, William Ury, and Bruce Patton, and *Never Split the Difference*, Chris Voss and Tahl Raz's book on negotiation published in 2016. And yet most of us remain terrible at negotiating. What do we need to do differently?

After teaching negotiation at MIT, Harvard, and the University of Michigan for a combined forty years, we've concluded the problem is *how* negotiation is taught. Teaching ideas in the classroom or in a seminar is a lot easier than teaching *skills*. A university course is great for teaching *about* negotiation. But not, we realized, so much for teaching *how to* negotiate. Negotiation is a performance skill. And it needs to be taught like one. You would never train to be a musician by only reading about music theory (although the theory is invaluable). You need to play, to practice, to perform in front of audiences. But as we discuss throughout the book, it also helps to practice these skills in low-stakes, low-pressure situations first, before you test them out in a potentially tricky negotiation where the outcome matters and the stakes are higher. If you practice when the stakes are low, messing up doesn't matter—and you'll always make mistakes when learning a new skill. So we want to give you opportunities to make those mistakes in situations where failure won't derail your life. Then

later, when you enter into a higher-stakes negotiation, you're prepared with the skills to get exactly what you want.

This is called shifting from controlled processing to automatic processing. Through repetition and practice, a skill can become so ingrained that it can be performed without conscious thought or effort.

ATTIA: I started boxing recently. My trainer, Norm, recommended it because he says I am very assertive in speaking my mind, so I need to learn how to protect myself—I mean, yes, I have to admit that does sound like me. Norm has me do three rounds of boxing drills. On the last round, he records it, and I have to do five burpees for each mistake I make. I always make more mistakes in that last round—I get performance anxiety. But as the weeks progress, the skills become more automatic, the anxiety lessens, and I make fewer mistakes.

Bottom line, we started to teach active listening the way the FBI negotiators taught it. And it worked! It wasn't about their special genius (yes, they are really smart and work harder than anyone we know). It was their method of teaching. It worked for our students just as it did for theirs. And now we want to help you.

The two of us talked about writing *Never Settle* in 2019. We were initially on the phone discussing dating strategies that Attia could use on this guy she liked. The strategies we discussed were some of the ones we taught in our negotiation course, which led our conversation down the path of writing this book, given how practical the skills are in so many realms of our lives—dating, marriage, colleagues, bosses, new jobs, children, extended family. We talked about borrowing bits from the practical exercises we had been teaching at MIT. And we thought a lot of people could use those insights.

We based the order of the chapters on the order we used in the classroom, as we covered each of the crucial negotiation topics—relationship building, managing people who don't want a deal, developing options to choose from, using external standards in the marketplace to help develop a strategy around pricing.

We combine the FBI's hostage negotiation approach with the best of the Harvard Negotiation Project's theory plus user-centered design techniques from MIT. Hostage negotiation techniques are incredibly effective at building

relationships quickly and gathering information. And the theory from Harvard and MIT is great for setting prices and making more creative and efficient agreements that work for all parties—things that don't come up a lot in hostage negotiation.

Next, we try to re-create the experience that FBI hostage negotiators get in the field, with exercises, practices, drills, and skills to help you get the training that will turn these skills into habits. We're confident that you'll come away with the concepts and examples we reveal on how to negotiate more effectively. It will be up to you to decide how much time you want to spend practicing these skills on your own. As performance artists know, practice and repetition—actually using these techniques while interacting with the people around you—will take you to the next level. They will give you the ability to ensure you never settle. These exercises will make you stronger, the way lifting weights makes athletes better on game day.

In each chapter we present a basic component of negotiation theory, with a ton of simple examples to illustrate the points. Next, we show you how to practice the skills that make that advice work. We created and tested the exercises in our classes at MIT over the preceding decade and have included the best of them here. We've found these exercises to be:

Effective.

We chose them because they work at teaching you the practice of negotiation—they will help you to negotiate better in the office, with your spouse or partner, and on the phone or in person navigating the ins and outs of everyday life.

Practical.

This is a hobby you can do very cheaply. The only thing you need is your phone or computer and some friends and acquaintances to try these new skills on. And maybe a notebook to record your results.

Fun.

We designed the exercises to be stimulating and fun, because we want you to practice doing them again and again—and incorporate them into how you interact with the world. Your goal is to be more effective at persuading and

influencing your colleagues, your clients and customers, your friends and family, or your spouse or romantic partner.

In *Never Settle*, we give you the chance to practice the negotiation skills we teach the way FBI trainees and our students do. All we are asking you to do is try it out and see if it works for you.

Where Should We Start?

WHATEVER YOUR OCCUPATION, WHETHER YOU are in a relationship or single, raising kids or keeping up with family, helping to take care of parents or grandparents, volunteering your time in different organizations or spending weekends with a smaller circle of close friends, you are negotiating. Think about it. As we make or fend off requests, ask for favors, request changes to our travel plans, arrange to meet up with colleagues, or are on a date with a special someone, we have to negotiate on when and where to meet and what kinds of activities to share, we must take turns sharing opinions and experiences, or we must explore the opinions and experiences of those we are with. Life, in large measure, is about negotiation. Who goes first? How do we build trust and intimacy? How do we manage the dance of social interaction?

But negotiation is a skill—one most of us haven't learned or practiced. Most of us, most of the time, just aren't very good at it. Maybe we've picked up a few tricks and strategies through trial and error, but they don't always work, and we don't necessarily know why they work when they do. And then, of course, there are the trickier, more formal negotiations we find ourselves in at various points in our lives—with our health care insurance over medical bills in the face of a serious illness or accident. Negotiating the terms of a divorce. Arguing with relatives or siblings over the terms of Grandma's will. Or negotiating at work for a raise, or a promotion, or more (or less) responsibility, or the right to work remotely several days a week, or requesting a transfer to another department.

As you'll see, there are a lot of components that go into a successful negotiation. And we'll talk about those over the course of the book. But before you can use most of those strategies, you need to get the other person's

attention. You must be on their radar. You probably want to jump right in and figure out how to get exactly what you want, right now, and we promise we will get there, but you'll discover it's much easier to get what you want in a negotiation when you have cultivated a good rapport. And building rapport is how we begin teaching our courses in negotiation at MIT and the University of Michigan.

ATTIA: Every semester, I emphasize (and reemphasize) to my students that people can almost always help you in some way. The question is: Do they want to? Are they willing to go out of their way to expend a little extra effort? And they often are, if they like you. So our first step is to get them to want to help you. Not only will that help you get more but it will also help your performance in the negotiation. How? Well, many of you may feel anxious at the thought of negotiating—my gut still clenches a little before every negotiation. What helps with that sensation is knowing I'm walking into a situation where I have good rapport. If I have built a good relationship, I'm more confident and relaxed when I enter the negotiation, and that really helps set a positive tone throughout the whole process.

In the next few chapters, we lay out our tips, tactics, and strategies to establish a good relationship with someone you've just met or to improve an existing relationship. And we want to start out with using the surprisingly effective, and often overlooked, power of reciprocity. This is a technique that is used to tremendous effect by law enforcement in hostage negotiations. We started teaching this skill because if it works so well in hostage negotiations, wouldn't it work well in our daily negotiations? Turns out, yes—our students and clients have found reciprocity to be incredibly valuable as a starting point.

CHAPTER 1

GIVE THEM A SANDWICH

Be Friendly—Even with the Hostage Taker

LET'S SAY A GUY IS desperate for money, so he borrows a gun and sets out to rob the local bank. A teller pulls the alarm, and the cops show up. In response, he points the gun at a customer and tells the cops to get out or he'll shoot the hostage. They leave the building, but soon there are a dozen police out front and back, and a SWAT team with snipers. The hostage taker is trapped. The cops leave a suitcase with a phone in it by the door, and it starts ringing. When the robber opens the suitcase and picks up the phone, a soothing voice on the other end of the line says, "My name is Terry, I'm with the police. Are you OK? Do you need a doctor? No? Good, I'm glad you're all right. What about the other people inside, do any of them need a doctor?" The robber is now talking to a hostage negotiator, who is going to try to get him to let everyone go and surrender peacefully. And almost always, the negotiation works.

Before modern hostage negotiation methods, it was about fifty-fifty whether someone would get shot—maybe the bad guy, maybe a cop, or, worst of all, an innocent civilian. Nowadays, more than 95 percent of these situations are resolved peacefully, with the bad guy captured, no shots fired, and everyone going home safely. That's pretty amazing. How do they do it?

Well, Terry starts by expressing concern for the welfare of the bad guy. The first thing the hostage taker hears is that Terry is worried about *him*. But Terry's plan goes way past that. She is going to keep him talking. About anything. Maybe the hostage taker asks for a getaway car. "OK," Terry says, "I have to send that request up to my boss. I don't know if he'll agree. It could take a while." So he waits. Meanwhile, Terry is happy to listen to anything he wants to talk about. And she has lots of questions. "How is everyone doing? What made you decide

to do this? What did you need the money for?” She is sympathetic to whatever he says. “Yeah, I know what it’s like when you can’t pay the rent. Especially when you have people depending on you.”

After a couple of hours, the hostage taker starts to get hungry. He tells Terry that he wants a sandwich. “OK, we can work on that. What’s your favorite kind of sandwich? Do you have a place in mind?” She’s been waiting for him to ask for that sandwich; she tries to keep the note of triumph out of her voice.

About an hour later, his favorite sandwich is delivered by a SWAT officer, and Terry’s back on the phone. “Hey, how’d you like the sandwich? Awesome, right? Those are so good. Look, I need your help. The lieutenant here is kind of mad at me for getting you that sandwich. I don’t mind taking some heat, because you seem like a decent guy. But could you do me a favor? What if you let one of those people go? That would really help me out with my boss.”

Nine times out of ten, he does. Almost everyone does.

Every law enforcement force that trains hostage negotiators uses this technique of reciprocity. Hostage negotiation teams keep a running list of positive police actions, or PPAs, they can use as justification to ask for a reciprocal favor. “We gave you the water you asked for and got your girlfriend on the phone.... Bro, time for you to do us a solid.”

It works because everybody, even a lifelong criminal, feels the obligation to repay generosity. Even to the police, who gave him that sandwich and are going to put him in jail. You may be thinking, *Great, but does this work for me in my daily life?* Oh yes.

Here’s another example.

When Life Gives You a Sour Neighbor, Make Lemonade

ATTIA: My husband, Isaiah, and I got married during the COVID-19 pandemic. We started looking for a house shortly afterward, in the fall of 2020. The housing market was up dramatically in Traverse City. People from Detroit and Chicago flocked to northern Michigan looking for a less crowded region of the

country. After several months of futile looking—everything was out of our price range—we gave up. But does anyone really give up looking for the thing they really want? As a young married couple, we wanted a place of our own rather than a rental apartment, but we felt hopeless. To further torture myself, I continued playing the “Zillow game” and scanned listings every evening. In the spring of 2021, much to my surprise, a house popped up on the peninsula just north of Traverse City, on the same road where Isaiah’s dad grew up. It was right between Isaiah’s two cherry and apple farms, and near the one-thousand-plus acres he farms for others. I showed him the listing, and it turned out to be the very house his dad’s family once owned.

It was still outside our price range, but we had to go tour it—especially since Isaiah’s father had passed away a few years earlier. We fell in love instantly—not just with the house but with the thought of raising our family in the same home his dad had grown up in. The seller was a sweet older woman, and she loved the thought of us returning to my husband’s family roots. I wrote her a card emphasizing the emotional value to us. She became determined to help us figure out how to afford it. We were able to buy the house, to our delight. I still send her big life updates, and she dropped off a gift when our son was born, excited to celebrate that next generation in the home she cherished.

Fast-forward to the summer of 2021, as we were moving into our dream home. On day two of unpacking, I was walking out to my car to grab another box when I saw a man who looked to be in his sixties determinedly striding toward me. I started to smile and introduce myself, but he quickly moved on to tell me that our driveway was on *his* property.

He launched into a diatribe on how ridiculous it was that my driveway and water well used easements (a right to cross someone else’s land for a specified purpose) on his property. It turned out that the upset man was our new neighbor, Jared. He and his wife had purchased the vacant land next door just a few months before we bought our home. I must admit that as he went on about property rights and easements, my back went up a little. We were literally just moving in. Did Jared really have to ruin the bliss of our first days in our first home? Couldn’t he have been neighborly first? And hadn’t the easements been

in place for more than fifty years? It had nothing to do with any action we had taken.

Now, looking at it from his point of view, I can see the lunacy of how they carved up the two properties and understand his frustration at having his property divided up with our easement. To have my long driveway and well going through his property for a significant length *is* ridiculous and sets up both neighbors for conflict. It would have made much more sense to change the layout of the properties to avoid this mess, but unfortunately the mess was made, and we had to live with it. But I didn't think of that at the time, because I was too busy being upset to try to understand why he was upset.

At that time, my hopes for a neighborly relationship went up in smoke. In my mind, Jared became a person to dread, someone who seemed more interested in starting fights than making friends. For months, every time we encountered him, he seemed to bring up his unhappiness over the easements, stressing *his* rights to us. It got so bad that we made a concentrated effort to avoid him, retreating into the house when he was around. I felt a sense of frustration each time I saw him. I had never envisioned having a difficult relationship with a neighbor before. How had this happened? And what could I do?

Since our home was on a rural peninsula, we used a propane tank for heat. That first winter in 2022, I was astounded by our heating bills—the amount was almost ten times higher than what we paid for natural gas at our last apartment. Then I discovered that Jared, our neighbor, was able to secure natural gas for the house he was planning to build on the empty lot next door because he was part of a homeowners association that contracted to provide gas lines for the subdivision. *Was there a way to get a gas line into our house?* I wondered. I started researching the issue. If our next-door neighbor could get it, there must be a way for us to get it.

It turns out there *was* a way—but only by getting another easement through Jared's property. *Oh no!* I thought. Over the next couple of months, I kept calling the gas company to see if there was any other way to route the line. It was summer by this point, and I was feeling defeated. I knew in my bones that Jared was never going to grant us an easement for a gas line. We didn't have much of a

relationship, and he was still complaining to us about the fifty-year-old easement for the driveway and well.

Things hadn't gotten any easier between us in the intervening months. Jared and his wife had started building their house, and as a result had had dozens of trees cut down to create more open space, trees that might have, I thought ruefully, created more privacy for both of us and hidden his house from ours. The ruckus had gone on for months, as construction projects do. In addition, he had taken to parking in front of our house, just across from his side of the property line. Was he doing it out of spite? I didn't know what to think.

I complained to my mom about our relationship with our neighbor as I watched Jared working in the yard outside my window, but she wasn't having it. My mother couldn't tolerate whining from her daughters. "Enough! He is your neighbor, like it or not. He's not going away. So make more of an effort. Be nice to him. It's hot today. Why don't you go over and take him a cold drink." I was affronted. The distance in our relationship wasn't my fault—or Isaiah's.

But the next day, on another call, she brought it up again. And then again as we reached the dog days of summer. And I realized she was right—wasn't she suggesting something she taught me and my sister growing up? Wasn't this an opportunity to change the dynamics of our relationship? After all, I was the one who was unhappy about where things stood. I was the one who was miserable. I was the one who wanted another easement. Why not do something to change our relationship?

I found myself pouring a glass of cold lemonade, which I walked out and handed to him as he was working on his new house. And to my surprise and delight, I found myself chatting amiably for a minute or two about the heat and the woes of construction before I returned home. I felt proud of myself for having done it. And then I called my mom to tell her I had taken her advice, and she was proud of me too... with an "I told you so" thrown in there. And even more surprising, I felt a little better about Jared after doing it. Making that small connection, and hearing his expression of gratitude for the lemonade, softened some of the sharp edges in my mind that made him a figure of dread. I continued the gesture whenever I saw him out there and I had a free minute. And it dawned on me that I was using the first skill John and I teach in our negotiation

class—reciprocity. I had to laugh at myself for not drawing on my own teachings until my mom reminded me.

One of the reasons that what I did was so well received, I think, was because it was so unexpected. Jared and I had not really been talking. My simple act of kindness, without any expectation of something in return, struck a chord in him. Our relationship gradually, almost imperceptibly, shifted. Rather than sensing a feeling of estrangement or hostility, we grudgingly eased into social discomfort, and eventually a neutral nod to acknowledge each other in passing.

Let's pause for a moment to review some crucial elements of reciprocity at play here in my own domestic drama.

The Neuroscience: Reciprocity Is Hardwired

PSYCHOLOGIST ROBERT CIALDINI, AUTHOR OF *Influence: How and Why People Agree to Things*, describes six mechanisms that people use to influence one another—automatic reactions that trigger an unconscious behavioral response. The first is reciprocity. He conducted experiments that showed we tend to feel a profound sense of obligation to respond in kind to someone's behavior. This reaction could be a response to something the other person gives, or just to their mood. We find that it is a universal human behavior, instinctual, hardwired. In fact, we can see something like reciprocation at work in other species. Frans de Waal, in studying chimps in the wild, found reciprocity among primates as well.

Is reciprocity nature or nurture? Perhaps the right answer to that old argument is “yes, both.” The biological basis of reciprocity is the reason our reaction to reciprocity is so strong and so reliable. But human behavior, even when it has a hardwired basis, is interwoven with cultural variables. The sort of gifts that are given, and when, as well as how one should respond, are questions that have different answers in different places. But the expectations around reciprocity, and the felt obligation, is always there. Understanding the basic mechanism is crucial to influencing others. Let's start with the simplest example in nature.

Friend or Foe?

Some animals are solitary. Some live in extended families. Biologists call the highest level of organization *eusociality*. It includes complex division of labor, multigenerational families, and care for others' children. Eusocial creatures include termites, ants, bees, and... humans. But that level of cooperation comes with a potential problem: We can be exploited by bad actors. That means we need to decide who is a friend and who is an enemy. For example, when a pavement ant, *Tetramorium caespitum*, meets another pavement ant, she must answer the question, Is this my sister or a stranger? Her answer is based on smell. She will then either cooperate with the sister or try to kill the stranger. Ants need the simplest decision-making system, because they have such tiny brains.

Human beings face the same problem. When Attia met Jared, she had to decide: Friend or foe? Cooperate or not? Humans make that choice by observing behavior. Attia's initial response, based on Jared's actions, caused her to think of him as more of a foe than a neighbor or friend. But our brains are a lot more powerful than an ant's. We can remember a complex history of interactions, sort people into multiple categories, and decide whether we want to follow our instinct or override it to make a smarter choice. We can even try to stoke that same instinct in others, as Attia did with Jared.

How does reciprocity help us in a negotiation? We can learn to use the power of reciprocity to change the way people feel about us. And surprisingly, it can also change our reaction to the other person. Using reciprocity, we can make it more likely they will think of us as a friend, or at least someone who is sympathetic to their perceptions and feelings. And that is what Attia did by offering Jared a glass of lemonade. Rather than having Jared think of her as that neighbor who infringes on his rights, Attia helped him see her as "that neighbor who is nice to me." Not only that but reciprocity can have a positive impact on how we perceive the other person, as was the case with Attia when she mentally reclassified her relationship with Jared as friend(ish) rather than antagonistic.

Let's look at how you can apply this to your own situation. We've broken the rest of the chapter down into two sections: first, how you can use reciprocity to build and improve relationships, and second, more advanced techniques to consider with reciprocity.

New Relationships: Do a Favor, Make a Friend

WE WANT YOU TO DEVELOP the skill of reciprocity—of giving someone a lemonade—as a way to build a positive relationship. Now, what you offer doesn't have to be an actual glass of lemonade, of course—it may be a sandwich, tickets to a sports event, a beer or a coffee. Or just a kind word at the right moment. The point is that you are offering the other person something that is valuable or meaningful or appreciated by them.

Why Lemonade? Or a Sandwich? For One Thing, It's Cheap.

Giving someone a small gift to create a cycle of reciprocity works often enough that it is always a smart play in a negotiation. Granted, it doesn't always work. A lot of glasses of lemonade are given away and don't turn into anything. And that's fine. It's to be expected. As long as what you give away is cheap (or free), not getting something later in return is no big deal. You've ventured very little. It's like fishing. Sometimes the fish takes the worm right off your hook and gets away. Sure, you lost a worm, but you can dig up another.

NYPD negotiator Dominick Misino (now sadly departed) used to start off his lectures by asking, "What is a human life worth?" People would say, "Ten million dollars!" "Priceless!" After a beat, Dominick would say, "Most times, three cigarettes will do it."

Dominick told us a story about a hostage negotiation in which he was involved. Somebody had locked himself in his ex-girlfriend's apartment, holding her hostage. Dominick talked to the guy for a while in an effort to defuse the situation and get the guy to let his ex-girlfriend go. Eventually the guy told Dominick that he needed a smoke. The police lieutenant in charge of the scene was someone new with whom Dominick had never worked. "Hey, boss," Dominick said, "I'm going to give this guy a pack of cigarettes. Then I'll ask him to let the hostage go."

"Whoa, whoa, whoa," the lieutenant told him. "What if he keeps the pack and doesn't give us anything in return?" It's easy to see the lieutenant's point. Nobody likes to be exploited or taken advantage of, especially by someone who is acting badly—much less a crazed person holding a young woman hostage. But what's the actual loss? Dominick told the lieutenant, "Then we'll be out a pack

of smokes. And they're mine anyway. What do you care?" In that case, it worked. On those days when it doesn't work, laugh it off, because you haven't actually lost much. The good news is, it works more often than it doesn't.

Give Their Favorite Kind.

There are lots of different types of "lemonades." You want to give the other person the kind of lemonade they like. If the other person is a colleague who you know is a Country Time Lemonade guy, don't get him a lemonade kombucha. If your father-in-law wants a cup of coffee, ask him what kind he drinks and get him that. This technique works better when you have the time to learn more about the person. Research supports the idea that customized gifts are more effective at eliciting a positive response. If you know your daughter's teacher likes six-ounce lattes with vanilla syrup and cinnamon, for example, that works even better.

Something a Child Would Understand.

Reciprocity taps into a deep part of our brain. And often simple things work especially well. Cialdini writes that gifts of food seem to trigger larger returns than equally valuable nonfood gifts. We suspect this is true because you are reaching someone at the base of psychologist Abraham Maslow's hierarchy of needs. In other words, the same logic applies in a negotiation, whether you are offering the head of the PTA a cool glass of lemonade, a compliment, or a sympathetic word when she's feeling harried. If you think your child would love the gift, then it is probably a good bet.

Your Choice.

Remember, there's a big difference between offering someone a small gift and surrendering to the other person's demand. If the other person orders you to bring them a lemonade, don't do it. Giving in to the other person's demands will not get you what you want in a negotiation. If the person demands it, they don't get one. If the person politely requests one, that's OK. The important thing is that giving the other person something is your decision, freely made, without duress.

That's because when the other person demands something or threatens you if you don't bring them what they want, giving in teaches them to demand and threaten more. Historians claim Adolf Hitler was harder to deal with after British Prime Minister Neville Chamberlain gave in to his demand of the Sudetenland—the German-speaking part of Czechoslovakia—at the Munich Conference in 1938.

Giving out a well-chosen lemonade is one way to start building a relationship and establishing greater rapport. It doesn't guarantee you can turn an acquaintance into a friend, but it sure increases the odds. Experiment by pushing that reciprocity button and watching for any changes in the other person's reactions and behavior.

Which leads us to our first exercise.

In our negotiation classes, we give students opportunities to try out the behavior or tactic we are suggesting so that they can see how easy it is to do, see firsthand how effective it is, and make it part of their personal toolkit or negotiation repertoire.

Our goal is to help you make this a part of your new approach to a potential negotiation so that you can get more of what you want. We'll describe the kinds of exercises that we give our students, to show you how far you can go in learning these new behaviors, while limiting the actual number of exercises to just a handful that are relatively easy to do on your own. Either way, you'll learn the concepts, but the exercises give you the opportunity to make them a habit.

EXERCISE 1

Make a Gesture

This experiment works best with someone you see regularly (so you can monitor their reaction) but don't have an existing relationship with yet and would like to establish one—for example, a new colleague, classmate, or neighbor.

Bring the other person a small present. For example, send your notes to a classmate whom you know is out sick. Or get an extra coffee for the person who sits next to you. Again, small gifts of food or drinks work particularly well.

Here are some gifts that our students have reported using to bridge that relationship chasm:

- Bringing an extra plate of a home-cooked meal to the neighbor next door whom you wish you knew better.
- Giving up your seat on the subway or bus or in the lecture hall to someone on crutches.
- When you're home for the holidays, bringing back a local treat for your colleagues that people can't get anywhere else. Give some to a friend, and to the friend of a friend whom you don't know.

Be Clear About Your Intentions.

A small, thoughtful gift can be the start of a friendship. But take care that it isn't taken the wrong way. When John was in EMT class, he had a study group with a couple of guys, Donny and Mike. They wanted to recruit one additional person, and Katie seemed like the perfect candidate. She was the smartest person in the class. John went to Dunkin' Donuts on a break and brought her coffee. Katie, misreading his intentions, spent the next ten minutes explaining that she was only interested in dating women. Better to have been clear up front about his motive: "We want to invite you to join our study group. Have some coffee while we tell you why that's a great idea!"

WHAT TO WATCH FOR: Once you have given the "lemonade" to the person you've identified, the rest is easy. Sit back and see how they respond. With some people, your gesture may have no effect. Others may feel the urge to respond to your generosity in kind.

You may be surprised by the ways people respond to this kind of overture. One of our students who shared a home-cooked meal with her neighbors found those same neighbors shoveling out her car after a snowstorm. We predict you'll find the results will be equally surprising—and rewarding. Keep repeating this strategy and make it a bigger part of how you interact with others.

ATTIA: Later that summer, Isaiah and I took Jared and his wife, Jenny, a basket of fresh cherries from the farm, which they both greeted with great enthusiasm. Jenny suggested that we get together once their house was completed. Our relationship seemed to be warming up, so I took the opportunity to mention that Isaiah and I were interested in bringing natural gas into the house to cut down on our heating bills. Assuming we could get the OK from the utility company, would Jared and Jenny be open to considering an easement to allow a gas line in? Jenny seemed open to the idea, but unfortunately, my question immediately caused Jared to launch into another diatribe about easements and property lines. So Isaiah and I backed off. And the next couple of months seemed to lead to a bit of a backslide in our relationship. I realized in retrospect that I had probably moved too quickly in the evolution of our relationship in making my request. I decided to put a pin in the topic—I'd rather have a more cordial and comfortable relationship and didn't want to risk that.

A year later, their house was complete, and they moved in. I took them a big bouquet of flowers as a housewarming gift. Jenny was home alone, and we started chatting about the neighborhood, and she told me about their children who lived in other states. I told her that Isaiah and I wanted to start a family as well, which she seemed excited about, and it was a nice moment of connection.

A few weeks later, I brought over some cherries. I saw Jenny working on a project in the garage, and she and I had a lovely little chat. We started talking about how nice the summer was—we deserved it after such a rough winter. I paused and thought for a moment—*Could this be an opening?* I hesitated because I didn't want to ruin the moment. At the end of the conversation, I decided to make one last appeal, and I brought up the gas line easement. I held

my breath and waited... she responded positively to the idea! I became cautiously optimistic. But I knew Jared was the one I had to convince. I decided not to approach him yet but let the idea simmer with Jenny for a while, first. A month later, I worked up the courage to approach Jared about the easement while he was working in the yard. He seemed more relaxed in general, now that their house was finished and they had settled in. When I rather hesitantly broached the subject, to my shock he said yes to the easement. “Send me over the paperwork,” he told me. Over the next several months, he had me jump through several hoops: meeting with the utility company, walking the proposed gas line with him, adjusting its placement a bit, and reviewing the work to be done—but in the end, my efforts to establish a closer relationship with Jared and his wife bore fruit. That fall, the gas line was installed, and I could finally turn the heat up without wincing. And having an ally as a neighbor made me feel warmer in more ways than one.

Thanks, Mom.

I had to take several steps on the reciprocity journey to achieve a closer relationship with Jared over a period of several years, since initially they were living elsewhere until their new house was built. I was able to pivot my relationship with Jared by that initial act of kindness with a glass of lemonade. To be successful, I had to not only change how Jared saw and reacted to me (and Isaiah)—but more to the point, I had to change my own demeanor toward him. I continued to strengthen that relationship with small gestures, such as bringing Jared and Jenny a housewarming gift. Be patient; reciprocity and improving a relationship usually takes time.

As we became friends, the dynamics of the relationship itself changed. These days, I feel comforted knowing that if something urgent came up, I could call them and know they would show up to help. They also love seeing our son, Zavi, growing, and I enjoy chatting with Jenny about how quickly the toddler years pass; her kids are grown and have moved to other parts of the country. Of course, we love sharing our cherries every summer and apples every fall—and look forward to taking our harvest over to them with Zavi in tow. They even brought us a holiday gift last winter. It feels wonderfully, well, neighborly.

Small Gifts Can Lead to Large Returns

YOU HAVE PROBABLY GOTTEN A request for a charitable contribution in the mail that included a small gift—return labels or a key chain. Grocery stores give away free samples. Car dealerships give you coffee. Yes, they want you to stay awake, but they also know you are more likely to donate, buy a car, or pay for a service if you feel like they have done you a favor. They hope you will give them much more in return.

Which leads us to an important note. When it comes to reciprocity, our minds are good at tracking who owes whom. We're not nearly as good, however, at figuring out how much is owed. In studies, test subjects would routinely return more than 500 percent of the value of the initial benefit or gift. That's why charities love this technique. Once you trigger that giving reflex in someone, they respond far more generously than the gift would seem to warrant. The person receiving the gift doesn't know when to stop in their efforts to reciprocate. Behavioral economists call this "accounting insensitivity." An easement is worth a lot more than a basket of cherries. But like your mom always said, "It's the thought that counts." Even a small kindness can touch someone's heart.

Manipulation—or Influence?

ONE CRUCIAL POINT TO RAISE here is the intention of the gestures—people will almost always recognize if the intention of your gesture is genuine, as opposed to a manipulation in order to get what you want. I offered the small gestures with the hope of improving the relationship we had. I did carry the hope that an improved relationship with Jared and Jenny might ease the easement question, but it wasn't a hard expectation in response to my gestures. They didn't owe me. It was a simple kindness, and if that's all it turned out to be, I was OK with that. I worked on improving our relationship—they were our neighbors, after all—before successfully making an ask. So be cautious of your intentions when using this approach—it won't work nearly as well if the other person sees you expecting a quid pro quo.

Students, clients, and friends constantly ask us if, by using these techniques, we are manipulating those around us. If you look up the definition of manipulation, it mentions an action designed to influence another person... but it carries the connotation of doing so in an underhanded or unfair manner. We want to promote the first part of that but not the second. The intention behind the action makes all the difference, and we are encouraging you to use these techniques for positive benefits to relationships. Rather than manipulation, we call it influence. One way to distinguish the two is whether the thing you are trying to get them to do is bad for them. Making friends with a neighbor is good for Jared, so we think that's fine.

BLACKPINK in My Area

JOHN: The problem with using negotiation on your kids is that they will use it back on you. Once, I told my wife that our sons, Ben and Pete, were both good negotiators. But our daughter, shy, introverted Addy? Not so much. "Please," my wife snorted. "That girl has you wrapped around her finger." I didn't believe it, until my daughter came to me with a request as I was finishing up the edits on this book.

"Dad, I remember you told me you drove all over to see a lot of concerts when you were my age. Right?"

I was delighted. My daughter had actually listened to my stories! "Yeah. The Ramones, Bruce Springsteen, Bob Dylan, U2, Robert Earl Keen. Those were the days."

She went on to say, "You told me there was a band you really liked that you never got to see. The one with the brothers?"

"Yeah, the Kinks. Ray and Dave Davies. Unbelievable songwriters, and everyone said they were great live. But there were plenty of others I missed. The Pretenders, the Go-Go's, lots of them."

"That sounds sad, like you regret that. And that makes me worried. My favorite band, BLACKPINK, is on tour and I'm afraid this will be the last time."

"Well, don't worry too much, pumpkin. I saw the Who at Shea stadium on their farewell tour in 1983. I think they had six more farewell tours after that. An amazing show, though. Santana and the Clash opened."

“Yeah, but the four girls in BLACKPINK each put out solo albums, and they all went to number one in Korea, and did really well here too. Plus, three of them have acting careers. I think this could really be it.”

“Well, then you should go see them. Are they coming to Boston?”

“Yes, but that’s the thing. Tickets are two thousand dollars. You raised me to be thrifty, so I would never spend that much on a concert. And you wouldn’t let me. But I did find a place where tickets are a lot cheaper. Only three hundred ninety dollars. Less than a fifth of the cost in Boston!”

Her nineteenth birthday was coming up. But even so, to me, that’s a lot to spend on concert tickets. I frowned. That’s when she sprang her next move. “That’s three hundred ninety Canadian dollars. It’s only two hundred eighty American dollars.”

“Canadian? Where are they playing?”

“Toronto. Here, the scalpers buy up all the tickets and resell them, but there’s a law against that in Canada.”

“Well, you aren’t going to save that much, then, at the end of the day. You’d need plane tickets, a rental car once you’re there, a hotel. There goes all your savings.”

And that’s when her real plan came out. “Not if we drive.”

“That’s a two-day drive, isn’t it? Each way!”

“Nope—Google Maps says eight and a half hours. That’s two two-hour shifts for each of us. Two hours isn’t that long to drive, is it? And the concert takes place after your book is due back to the publisher. You’ll be relaxed. It’ll be like a reward you’ve earned. And we could stop at some of those roadside diners you love. When you add the airport time, driving would only be a couple of more hours than it would take to fly. And we could listen to BLACKPINK music so you’ll know all the songs at the concert.”

“I don’t know, sweetheart...”

“You are always saying I need more practice driving. This way I’d have your expert coaching the whole trip. How much would you pay to make me listen to your life advice for eight hours?”

The thought of having my daughter to myself for two days did strike a chord in me.

“And we could make fun stops. I mapped out the route on 90 West; it goes right by the Erie Canal Museum. And we could listen to some of those old folk songs you like.”

“It’s a big commitment.”

“It is, I know. But you went out to visit Ben in Utah. And you’ve been teaching Pete how to play golf. I want some quality time with you too. By the way, where’s your wallet?”

“Hold on, I haven’t—” But she was already gone. She came back with her laptop, and my wallet, having spotted where I’d left it on the kitchen table.

“I’ve got a reservation on the tickets that’s good for another twenty minutes. I have two options for hotels. There’s a Best Western outside Toronto, on the way in. That’s one hundred twenty-two dollars. Or remember that time you and Mom went to that fancy hotel in Quebec; what was that one?”

“Château Frontenac.”

“Yeah, there’s another one like that. They were both built by Canadian Pacific Railroad. It’s a lot more expensive, but it might be cool. I’m happy with either one.” She had my wallet in her hand and got out my credit card, then waggled her eyebrows. “Mom said you get good rewards on this card. Should I use this one?”

You are more important to your kids than to anyone else. That’s why they know more about you than anyone else. And they are more important to you than anyone else, and that’s what gives them more power to manipulate you. You can learn a lot about yourself by watching them work. I caught on to what Addy was doing about halfway through the conversation, and all I could do was admire her skill.

Instead of trying to trick or coerce the other person into doing something for our own self gain, we’re showing them the opportunity for mutual benefit and allowing them to freely make the decision, which is what Addy did. It is true that these skills, and the ones later in the book, could be used for good or evil. We want you to use them for good. One test we sometimes use is, “If they ask me to describe what I’m doing, can I tell them honestly?” If the answer is yes, then you’re probably OK.

This leads us to our next suggestion to improve an existing relationship. Attia had to work hard on establishing a relationship with Jared early on; later she had to work just as hard on improving that relationship. We've seen how reciprocity can have a powerful effect in establishing a new relationship. Now let's look at how to use reciprocity to improve an existing one.

Increase Cooperation in an Existing Relationship

DIFFERENT RELATIONSHIPS EXHIBIT VARYING LEVELS of cooperation. The challenge? Sometimes people don't always want to put in the same level of effort that you do. But you don't have to accept that dynamic. You can influence others to cooperate at a higher level.

Givers, Takers, and Matchers

Adam Grant has studied differences in people's approaches to working together for decades. In his first book, *Give and Take*, he divides the population into three categories: Givers, Takers, and Matchers. Givers help others; they offer advice, information, and tangible help. Takers demand more; their goal or orientation is to share as little as they can. Matchers will follow another's lead and will reciprocate in kind to those who are Givers and Takers. The existence of Matchers could be one reason Cialdini's reciprocity techniques work: They turn the Matchers in your environment into Givers, at least as far as you are concerned.

There is another interesting aspect to Grant's work. At first glance, he finds, disappointingly, that Givers are the least successful professionally. Takers outperform them in things like salary and promotion. On closer examination, however, he discovers that there are actually two kinds of Givers. It's true, he writes, that they comprise the bottom tier of the population that gets exploited, but they also make up the top tier that rises to the pinnacle of leadership. How can that be?

The answer is that there is a difference between people who are instinctual Givers—we might think of them as “saints,” or maybe “suckers”—and those who are more thoughtful, rational, and calculating—the “strategists.” Some people give without thinking, because it makes them feel good. They have no plan or ulterior motive behind their actions. Others give to consciously influence others. They are deliberately building a reciprocal, cooperative network of colleagues and friends. They give, and as a result, they keep getting. Takers, on the other hand, tend to take, relentlessly, and eventually their friends and those they encounter get tired of the one-sided nature of the relationship. Let’s see how we can use this within our own sphere of influence.

Increase the Intensity of Cooperation.

A relationship has rules and expectations that have been established through our behavior. Reciprocity offers you a way to exert influence over these norms and change joint behavior to drive more collaboration and cooperation. Attia was able to use reciprocity to influence Jared to become more of a Matcher.

Our next exercise focuses on better understanding this idea of Givers, Takers, and Matchers. We want you to be able to see how the reciprocity reflex works in action and can succeed in setting new norms.

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EXERCISE 2

Do the Dishes

Let's say you're in an ongoing relationship with a colleague, a roommate, a spouse or partner, or just a close friend, and there is some aspect of the relationship that you would like to improve. Perhaps you would like your roomie to help you keep the kitchen clean, or you would like your sister to call you to connect once a week.

Start by doing the thing you want them to do. If your roommate leaves their dishes in the sink, do their dishes. Call your sister just to visit with her and catch up on her life. Repeat this behavior—do the dishes again tomorrow, call your sister again next week. Repeat this three or more times. Don't say anything about it at this stage. Pointing it out to your roommate will be seen as an attempt to guilt them into doing it, which could trigger a defensive reaction. And they are unlikely to feel obligated to return the favor. Just make it a random act of kindness.

That said, your action must be visible to them. Let's say you want your roommate to throw out the old leftovers in the fridge. If you clean out the vegetable drawer on your own, they won't reciprocate because they will probably never notice. The task must be one that both of you can do, one that they notice, and ideally one that isn't anyone's specific assignment.

Most often, the other person will start to imitate your behavior. You may find that your roommate starts doing the dishes on their own. Or maybe they take on an unrelated task in response, taking out the trash every week or cleaning the bathroom or vacuuming the apartment. If you prefer doing the dishes to taking out the trash, it might even be a better outcome for you.

Before they begin to match your behavior, you may notice signs of discomfort. As you do the dishes for the fourth time in a row, your roommate might squirm uncomfortably. Or they might even say, "Hey, don't worry about that, I'll do it later." Don't try to diminish the tension by making them feel better. You may be tempted to say "Oh, it's OK" or "No worries," but stop yourself. If you let them off the hook by soothing their discomfort, they won't feel compelled to reciprocate. Just smile and let them think about the fact that you are doing their work in addition to your own. After all, that's your goal in getting them to change. You want to make it clear that leaving the dishes over and over again is not OK with you, so you can casually toss out something like, "It just bothers me when the sink is full because I don't have space to clean up after I cook" so they understand your feelings around it. Experiment; see if your partner or roommate actually follows through.

You will know you have helped to change the other person's behavior when your sister calls you to talk one week or when you make dinner and your roommate cleans up without being asked.

Adam Grant suggests you'll encounter a range of reactions from the other person when you try the exercises above. Some people (Givers) will try to top you by being even more kind and generous. Some (Matchers) will be delighted with your lead and will imitate your move. Others (Takers) might pocket your gift with a brief thanks and look hopefully for another one. Start to categorize the people in your orbit. It can help inform you who is open to higher levels of engagement and cooperation—and who is not. You can use that information the next time you pick a new roommate or partner.

Level Up Your Reciprocity Skills

NOW THAT YOU'VE STARTED THE cycle of reciprocity, here are some more advanced reciprocity techniques you can consider:

- Using reciprocity to get something specific
- How to respond if someone starts using reciprocity on you
- When to stop your efforts so you don't get taken advantage of

Order a Sandwich

RECIPROCITY IS A TERRIFIC TOOL for improving a relationship. But sometimes you need a specific favor. Maybe you need a coworker to pick up your shift next week. Or you want your boss to listen to you pitch a new idea. Acting in the capacity of a Giver can help you to put other people in a mood where they feel more like helping you.

EXERCISE 3

“While I’m Doing This...”

JOHN: I learned this technique from my wife. When we were first married, she would hint about chores she wanted me to do. “Boy, this garbage can is getting pretty full.” “Sure is,” I would say, “does that mean you are going to take it out?” Because I’m a wonderful husband like that. She could argue about whose turn it was. But instead, she would open the dishwasher and start unloading it. Then she would casually say, “Hey, while I’m doing this, could you take out the garbage?” Since she can’t do both at once, I couldn’t argue that she was equally capable of doing it. And the fact that she was contributing to our joint welfare put me in a kind of “reciprocity debt.”

In the first instance, my choice was “I could do some work while she sits on the couch, or we could both keep sitting on the couch.” It felt perfectly comfortable to say no. Her move changed that to “I can sit on the couch like a bum while she gets to be the good one.” I didn’t want to let her get away with that, so I would take out the trash.

And because of accounting insensitivity where small tokens can lead to larger returns (like Attia with the gas line), she could use that for more than just the garbage. One time it was, “Hey, while I’m unloading the dishwasher, can you take my car in to get new snow tires?” I was sipping coffee in the tire shop waiting room before I thought, *Wait a minute...* It’s worth mentioning that she teaches negotiation at Harvard Law, and apparently, she’s pretty good at it.

Try this with an ongoing relationship where you feel there is an unequal distribution of contributions. This is particularly true for partners who live together and share household responsibilities. We’ll discuss this again later in the book.

First, you need to pick out what you want them to do—the ask.

Second, pick out a task that you will be doing that prevents you from doing the ask simultaneously. This task should be something that they know benefits them. So, you are working for the common good before you ask them to join you.

Then, start doing it in their presence, and ask for reciprocity. “Hey, while I’m doing this spreadsheet, can you make the PowerPoint deck for the presentation?” Or “While I’m washing the ambulance, can you refill the supplies in the trauma bag? I think we need more bandages and disinfectant.”

Ideally, the other person won’t even realize that a transaction has taken place.

But what do we do if someone starts using reciprocity on us? Because the trigger reflex is so strong to respond, we want to give you tools to manage that response, so you don't unconsciously give too much away. How should you respond to other Givers, who may use reciprocity to reach out to you? What's the smart play in this case?

Smile and Take the Coffee

WHEN SOMEONE USES RECIPROCITY WITH you, consider what kind of relationship you want to have with them. In the case of John and Sheila, as a married couple they have enormous incentives to work out their frustrations or annoyances over any perceived inequality in their relationship. Plan how to respond.

- If the person who initiates the effort at reciprocity is someone you want to be closer with, and they beat you to the punch, then you will want to reciprocate, both to strengthen the relationship and to reward their initiative.
- If the person isn't someone you want to be closer with, politely decline their advances—with grace and compassion—so they don't get the wrong idea. “Thanks so much for the offer of a beer. But given the long day and the commute, I prefer to get home at the end of the workday to spend time with my family.”
- If you decide to reciprocate anyway, to avoid damaging your existing relationship, keep a close eye on the ledger. Don't let yourself get tricked into giving up all your leverage for a mere sandwich.

The next few tips are intended to help you remain vigilant. Be aware when someone tries to use reciprocity as a tactic to get you to do something you shouldn't.

Make a List.

Make an inventory of the people you regularly interact with in your work environment. Who would you like to have a closer relationship with? Create

categories such as *Encourage* (that woman in your MBA class whose parents have the ski condo), *Discourage* (the guy who famously got kicked out of his last study group for never preparing and often not showing up), and *Maybe Later* (people who don't make either list). Next, create a plan for how to treat the people around you in each group if they initiate a request or ask for a favor.

Encourage.

It is scary for many of us to make the first move—because being rejected is so humiliating. In that scary, vulnerable moment, how you treat them and their request will make a big impression. Reward them for making the move. Say they have brought you a coffee from Starbucks. “Coffee? That is sooo thoughtful. I was just thinking I could use some.” Afterward, express appreciation for the gesture. “This coffee really hit the spot. Thanks so much.” And if the coffee is terrible, or you really didn't feel like coffee at the moment? Drink some anyway and thank them for the gesture. Next, look for an opportunity to reciprocate. If you want to reinforce your connection with the other person, you might try doing something that takes the relationship a step further. “That coffee yesterday really hit the spot. I wonder if I could buy you a beer after work this week or next?”

Overall, you want to appreciate the other person's gesture, to keep the cycle going.

Discourage.

The easiest way to avoid being affected by the reciprocity reflex is to not accept the gift. “Oh, that was so kind of you. But I stopped drinking caffeine last month.” Or “Thank you! I'm afraid I can't accept it, however—I try to limit myself to one cup a day.” A firm refusal is your friend. Don't go into too much detail on your reasons, just politely, but firmly, decline. We'll have more on saying no in chapters 8 and 9.

Keep Strict Accounts.

Remember that one of the reasons salespeople love the concept of reciprocity is that most people are insensitive to the value of the gift. In an experiment by Cialdini, the gift of a ten-cent can of Coke (OK, remember it was conducted in

the 1970s) led the subject to buy two dollars' worth of lottery tickets. The process works best when the other person is unaware of it. As a recipient, if you consciously label the tactic in your mind and remind yourself that this person is cleverly using reciprocity to lower your emotional shield, it should reduce the urge to respond. If you do reciprocate, be sure that you aren't giving away the store.

Neutralize Unwelcome Generosity with a Safe Gift.

Reciprocity is a powerful psychological tool. It affects you even if you recognize it. And it is socially accepted. Attempting a strong discouraging move may be awkward. Another approach is to reciprocate, but in a way that's safe for you. If you think the person is trying to influence you toward a particular action, counter with something else.

Let's say you are at a car dealership and the salesperson or the sales manager asks if you like chocolate. You respond yes without thinking, and they bring out a fancy box of bonbons. What do you do? It is awkward to refuse the chocolates. But don't feel obligated to pay for several thousand dollars' worth of custom accessories for the car you came in to purchase. Instead, offer to leave a positive review for the dealership. The salesperson can't really refuse, and now your mental ledger is in balance, and you can talk models and price without having to worry that you'll be subconsciously affected.

Look for opportunities to practice these skills. Perhaps it's with a family member who sends your kid a book before asking for help clearing out the garage. Maybe it's a colleague who always buys lunch but then asks you to take on the harder portion of a project. If you know a request will likely be coming, respond in a way that feels better to you before their ask: send them an audiobook you like or buy after-lunch dessert/coffee.

EXERCISE 4

Responding to a Gesture

Start by thinking of a group you are in: the people in your department, the members of your study group, the other moms from Girl Scouts, or whatever. Organize the people in the group into three categories: Encourage, Discourage, or Maybe Later.

When someone makes a gesture of reciprocity, identify which category they fall into. Then, respond accordingly. For people on the Encourage list, express verbal appreciation and make a gesture in return. Once you have reciprocated their move, you can plan on going first in the next cycle of reciprocity.

For people on the Discourage list, be polite. Thank them. Demonstrate that you noticed the gesture. When you don't reciprocate, it will be clear that you have chosen to not grow the relationship.

If someone on your Neutral or Maybe Later list makes a gesture, think of it as a chance to reconsider. If you have more information about them, you may want to move them onto one of the other lists. If you are already too busy with your current friends and acquaintances, you could move them to Discourage. Or their thoughtfulness may move you to add them to the Encourage group.

Make sure you keep track of the value of what they have given. Resist the tendency to give away too much in response. Try reciprocating with something inexpensive—along the lines of lemonade or a sandwich.

Don't Be a Sucker

THE EXERCISES ABOVE ARE DESIGNED to encourage you to experiment with being a Giver. But sometimes that's not the right move. Takers aren't easy to reach with Giver techniques. They are happy to take and take and take. To exploit you. If you find yourself getting burned out at work because you're expected to always pick up the slack, or fed up at home because the chores fall to you, remember, you have the freedom to build relationships with people who will treat you better. In a negotiation, try what you can, and if a tactic doesn't work, move on.

Occasionally it is possible to connect even with a habitual Taker. But first, stop rewarding them for taking without reciprocating. You're giving them little reason to change. As far as they can see, you're perfectly OK with the situation.

The next exercise is designed to help you practice transitioning from a Giver to a Matcher in a negotiation with a Taker. Show the Taker that you're not going to blindly continue to give, without getting something in return.

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EXERCISE 5

Stop Giving to a Taker

Practice Standing Up for Yourself.

Some Takers perceive themselves as the victims who give and give without getting anything in return—ironic, given they are Takers. Make sure you can point to several instances of you pitching in to help them.

Next, stop giving. There's a famous story, maybe apocryphal, about Secretary of State Henry Kissinger talking to President Nixon in the Oval Office. According to the story, Nixon is yelling at his new puppy to stop chewing on the edge of the fancy rug. Eventually, Nixon throws the dog a biscuit to stop the chewing. "Mr. President," Kissinger says, "you just taught that dog to chew the carpet. He got a reward for behaving badly."

As long as the Taker gets what he wants, why should he stop? You get more of the behavior you reward, so stop rewarding it.

Third, be ready for an explicit discussion. Bring up whose turn it is. If you've stayed late at work for several nights working on a project you were assigned with a colleague, it's your colleague's turn. If you anticipate another late night today, tell them early in the day you can't stay late tonight; it's their turn. Be ready with a compromise if they push back—one that is beneficial to you.

YOU: Henry, the boss needs some help this evening with the quarterly budget. I was happy to take it on last week, but we have concert tickets tonight.

Or

YOU: Henry, it looks like Carolyn needs some help this evening with the quarterly budget. I was happy to stay late last week, but I'm not available this week.

What if your colleague says that they can't stay tonight or this week either? Be up front with them. "Look, I'm happy to split the load with you, but I can't do that all the time. We need to share the workload." Offer a solution that seems reasonable to you.

Fourth, remain polite and cordial. You may be upset about having been taken advantage of. But stay calm. If you get angry, the other person can use your reaction to make you the bad guy.

Practice protecting yourself from Takers who don't seem to mind taking advantage of you. You'll know you have succeeded when you no longer feel taken advantage of. Fairness is an issue of which we are all keenly aware.

Takeaways

The reciprocity reflex is an innate part of human psychology. Experiment with it as a tool to reach out to and influence others.

- In addition to our rational mind, we also have an unconscious mind that guides our habits; culturally dictated behaviors; and inborn, instinctive reflexes. The reciprocity reflex is part of that instinctual package. Look for ways to use it to help you in a negotiation.
- Make the reciprocity reflex a part of your negotiation toolkit. It can help you to influence others, without being manipulative, underhanded, or deceptive. It can be used for high-minded purposes and good intentions or evil. Use it for good, and we believe you'll be happier, and get more of what you want in your negotiations, in your relationships, and in your life.

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CHAPTER 2

NEGOTIATE WITH YOUR EMOTIONS

You Can't Avoid Having Feelings

A NEGOTIATION IS AN ATTEMPT to persuade the other party. Logical reasoning is crucial to good negotiation skills—figuring out what you want, investigating their motives, applying creative problem solving, and using fair benchmarks. Humans are not perfectly rational beings. Our feelings play an outsized role in how we negotiate and whether we can reach common ground. Our emotions affect what we say, how we say it, our tone of voice, our body language. We might find ourselves hurling accusations or trying to collaborate through deadlock. A panoply of emotions can crop up in a negotiation, especially one when there is a lot on the line, as in a divorce settlement or a potential merger or acquisition.

One of the tenets of *Getting to Yes* is to separate the person—and our feelings about them—from the problem. One could read that as “focus on the rational economic problem, not the feelings.” But Fisher and his colleagues meant it differently: that you have two sets of problems to solve—the rational economic problem and the human emotional ones. And they are both crucially important. But they should be handled independently, not mashed together.

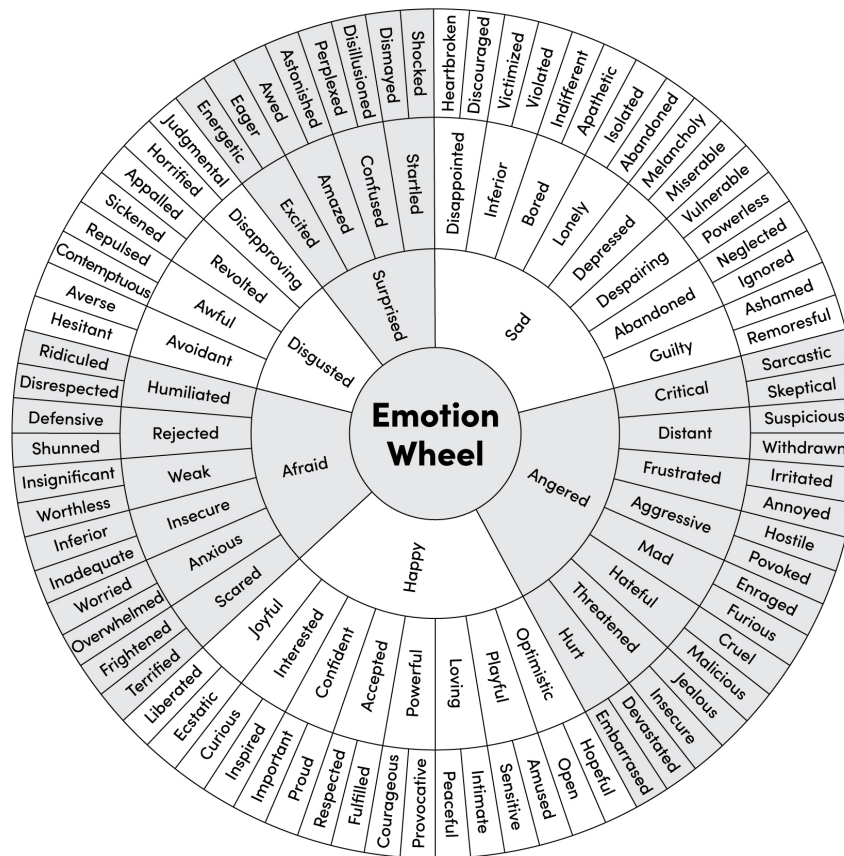
Emotions can motivate you to reach great success or derail you and destroy a deal. The goal isn't to make yourself into an automaton. You can't stop having feelings. But you can decide when to listen to them and when to override their warnings. You can train them to work for you instead of against you. But it can be hard to clearly identify the emotion you're facing in the moment.

There Are *How Many* Emotions?!

PSYCHOLOGISTS DISAGREE ABOUT HOW MANY emotions there are. Elisabeth Kübler-Ross held there are only two: love and fear. Psychologists at Berkeley identified twenty-seven on their Differential Emotions Scale. The majority view is the same as the Pixar movie *Inside Out*: five (anger, disgust, fear, joy, and sadness). A fair-sized group would include a sixth, surprise. The right answer for you is: as many as you need to describe the feelings that *you* experience. Naming something gives you power over it. And the power to name your own feelings is the starting point to managing them.

To help you, we are including an emotion wheel here. The wheel is helpful because you can start at the fundamental emotion in the center and then narrow further as you move to the outer edge of the wheel. We don't want you to agonize over whether you're feeling respected or fulfilled—there's no scientific answer, and perfection isn't the key here. You just need to be in the right realm to gain the benefit.

Regardless of which emotions are at play, it's important to manage them effectively. If you get overexcited, you could miss key details in the negotiation in your enthusiasm to commit. If you're angry, you could miss win-win opportunities. If you're fearful of rejection, you may not even attempt to risk negotiating or give in with the slightest pushback. Our work in this chapter is to help you to recognize and understand these emotions and find ways to reframe to ensure you aren't ruled by your emotions and never have to settle for anything other than the best deal possible. We are going to dive into the emotions you may face, then later discuss techniques for managing each of the emotions so you can be most effective in your negotiation.



[Description 1](#)

Fear Makes You Freeze.

You know the drill. Your boss scheduled a meeting to discuss your performance review, and you want to use it as an opportunity to ask for a raise or to ask for more responsibility in your current role. Or the client for that six-month project you've been spearheading wants to discuss significant changes to the timeline and targets. Or your department asks you to run an upcoming retreat, which you've never done before, and you must negotiate the curriculum and the costs of an off-site location. You are eager to prove yourself but recognize there is a lot on the line. And you're nervous. What if you stumble? What if you screw it up? What if when asking for that raise, your boss says no?

Entering into a negotiation with a sense of anxiety over how you will perform is completely normal. Face it, you're going to feel it at times. We both still feel anxious sometimes. But if we don't manage that anxiety, our performance can suffer. Instead of being relaxed and calmly presenting our case, we focus on what could go wrong. We panic. And whether we're trying to land that promotion or

convince a roomful of executives to buy our product or idea, we focus on our fear—*What if I fail?* And we no longer perform at our best. We lose our way. That inner voice in our head sees us veering off course—which only makes it harder to stay in the moment.

We did not evolve to live in a safe society. The state of nature we came out of was terribly dangerous. Anthropologists estimate that about half of humans died from violence—from all the predators that wanted to eat us and, most dangerous of all, other humans. As a result, we tend to be very cautious about exposing ourselves to negative attention from other people. And that makes us react like deer in headlights—trying to stay motionless so they don't notice us. We keep quiet when we could introduce ourselves, we don't want to go first setting a number, we take a bad deal because we're afraid to ask for more. Those reactions usually don't help us in our current society.

But fear can also be a valuable signal. The emotional part of our brain often notices troubling signs that the rational part misses. Fear is like your dog barking. Sometimes it gets hysterical over a squirrel or the UPS guy delivering a package. Other times it might be a burglar or a bear. Don't ignore it; take a look and see what all the barking is about and then, often, ignore it.

And fear can be a powerful motivator.

Anger Wants to Burn It All Down.

One of the most common emotions in negotiating is anger. Either we're angry already when we enter the room—or the other person is—or something triggers us during an interaction, and what started as an exchange of viewpoints and outcomes quickly shifts into a confrontation.

Anger often arises when the other person makes a negotiation personal and attacks who we are (or aren't) rather than responding to our argument. It can also come about because we're made to feel invisible, as if we—and our position—don't matter. Our ire can be even worse if we feel we are being treated unfairly. Many things can push us into an angered state during a negotiation.

When we feel an emotion, our brains are reacting to chemicals in our blood. Fear and its twin brother, anger, are composed of cortisol, epinephrine, and norepinephrine. A powerful cocktail. And it doesn't just affect our brain; it

transforms our bodies. Anger and fear move blood out of our brain and digestive system and into our muscles, preparing us for “fight or flight.” It prepares us for physical action, and which one we feel depends on whether our unconscious mind guesses we could win a fight or whether we had better get ready to run.

Anger orients us to confrontation. In the modern day, that usually means hurling insults instead of rocks, threatening to cut a budget rather than cut off a head. But it does something else too: It drops our IQ. That blood that leaves our brain for our muscles is missed. High levels of cortisol have been shown to interfere with the ability to plan and make good decisions. When you think, *Boy it would be really stupid to say what I’m thinking right now*, and then you watch yourself say it anyway, anger is usually to blame.

Anger can also be associated with someone violating our boundaries or threatening us in some way. We don’t want to ignore that. But you don’t want to let it make you slow-witted either.

Happiness Makes You Stop Trying.

It is thrilling to have an initial deal offered. There are so many wonderful emotions that come with it—pride in being chosen, satisfaction in work well done, giddiness for landing a deal—and we want you to soak that in. Too often we don’t take a few moments to stop and appreciate our accomplishments. Go out for a midday treat, or out to dinner, or call your bestie. This is a celebratory moment. But don’t lose sight of the fact that there is still a negotiation available to you. We don’t want you to settle, so after you revel, go back and take a close look at the deal that has been offered. The next several chapters in the book help you figure out if that deal will meet your needs, how to make sure it feels fair, how to build an alternative, and how to use a tentative no to get more. We don’t want you to skip those steps and accept a deal on the spot until you know it’s the best deal possible.

We also think it’s valuable to share your enthusiasm regarding the deal in the right circumstances. You’ve received a job offer? Heck yeah, tell them you’re pumped. A new client wants to work with you? Absolutely, share that excitement. You’re negotiating a merger, and they offered a buyout number? Perhaps temper that enthusiasm.

Dopamine is the reward your endocrine system gives your brain when it is happy with what you've done. A delicious meal, a spicy kiss, or reaching the end of a ten-mile run floods your brain with dopamine. It tells you, "That was great, do it again!" The problem is, your brain usually wants to do it again... tomorrow. For right now the message is usually "Mission accomplished, time for a nap."

There was a great study of taxi drivers that tried to explain why you can never find a cab when it is raining. After all, cabdrivers can make a lot more on rainy days than on sunny ones, so shouldn't they rest on nice days and work overtime when the weather is bad? It turns out, they do the exact opposite. It seems that the drivers start each day with a goal: to make a certain amount of money (at the time, usually one hundred dollars a day). Once they hit that goal, they pack it in. Mission accomplished. And they don't do the rational analysis that would tell them that now is the perfect time to make even more.

The same thing happens in negotiation. Howard Raiffa noted that almost all negotiators work hard until they find a deal that works for both sides, and then they quit. He called it "satisficing." He argued that what they should do is find a deal, and with the pressure off, keep looking for a better deal. Not to push the other side to give up more but to look for a solution that makes both parties better off.

Rejection Punches You in the Gut.

We hate to be rejected—it's an innate thing within us. And it's one of the worst feelings in the world. Most of us avoid it like the plague. It results in pain, a feeling of defeat, and at times the very negation of our self-identity. We're not good enough, we think, or smart enough or clever or interesting enough. We feel unattractive or lacking in panache; we're too tall or too short, too fat or too skinny. We lack the right genes or education or experience. We feel overlooked and underappreciated.

Especially for those who are young and starting out in life, you probably get a lot of rejection in many areas of your life. Getting into the college or university of your choice. Landing a good job. Finding friends. Looking for a romantic partner. Your late teens and early twenties are a golden age of being rejected. But we face rejection throughout our lives, regardless of age. People in their thirties,

forties, and fifties don't get the dream house they put an offer in on or the promotion they put in for, or land that dream job. And rejection sucks—our heart seizes, we get that hollow feeling in our stomach and our thoughts spin out of control. “Oh no, what *now* what *now* what *now*...” or, even worse, “I'm not good enough, I'm not good enough, I'm not good enough...” Many of us are desperate to avoid that feeling at all costs.

Where anxiety keeps us from doing the things we want to do, sadness—the disappointment of rejection—makes us not even want to try.

Rejection Hurts. Literally.

Why does rejection matter so much, and hurt so badly, whether in negotiating the politics of the workplace, in the awkward dynamics of dating, or in bidding to get what you want by persuading others of your point of view?

Blame evolution. Humans didn't always live in well-constructed houses and apartment buildings and condos with running water, indoor plumbing, and electricity. Our ancestors lived in a far scarier, more uncertain world. Violence was a constant, as people were attacked by dangerous animals as prey, or died in internecine battles with other tribes. Obtaining food to survive was a constant concern, and starvation was common, particularly in the colder winter months. A serious injury often led to infection and death. And there were no doctors to treat people, or antibiotics to counter tetanus or staph infections. Our terror of social rejection exists because primitive humans couldn't survive without the help and cooperation and coordination of the tribe they were a part of. If your tribe cast you out, you could literally find yourself thrown to the wolves, without the protection, shelter, or food that the group provided. Banishment meant death. Social acceptance was key to survival.

Today, social rejection no longer means certain death (though we do have an increased sense of loneliness, according to numerous reports). But we still have to deal with that innate fear from our evolutionary history—of being ostracized, cast out, no longer a part of a tribe or group, and feeling left helplessly alone. That's why our brains so desperately strive to avoid awkward social situations—because deep down, we still worry that we will be cast out and won't survive. We also know that social rejection and physical pain travel across the same parts of

the brain, suggesting that they are experienced in similar ways. A study using MRI found that social rejection activated the brain the same way physical pain does—social rejection actually hurts like being burned.

The problem is that rejection is a fundamental part of skill development—especially as a negotiator. This book is set up to help you practice different negotiation techniques. They don't always work. Many times, you will fail and experience rejection when it doesn't go your way. And then we tell you to do it again, and again—how cruel is that? But through that trial and error, you'll improve each time, and the rejections will happen less frequently... until you start on the next skill. Unfortunately, there's no way to avoid rejection when it comes to self-improvement in negotiation with other people. You aren't going to be perfect at the first go, or even the second or third. But we promise you will get better, and you will become more influential and a better negotiator if you can stick it out.

Handle Your Feelings So They Don't Handle You

NOW THAT YOU KNOW MANY of the key emotions that will come into play during a negotiation, especially a tense one, what do you do about it? Don't worry, we have several recommendations. We will first start with making sure we are recognizing that we are in an emotional state because we can't cope until we have that awareness.

Get to Know Your "Tells."

Our brains work well when they can recognize patterns to follow. But we need a "tell" or a clue—an initiation point—for the pattern. Stress can sometimes be a motivator and other times a demotivator. The key here is to pause and recognize that we are in an emotional state, and to do that we must identify our tells.

ATTIA: I start cleaning and organizing the house when I'm feeling anxious before a big negotiation. The stress is often a motivator for me and amps me up. When

my husband comes home and I ask him to start rearranging things, he now stops me and asks me what's going on.

JOHN: For me it's when I find myself playing old video games, like *Civilization IV*, the version that came out in 2005. The stress is a demotivator for me, and I waste time on things that aren't even interesting or challenging. I think because it is soothing to do something that is so easy and a guaranteed success.

See if you can identify your tells. Or better yet, ask a close and trusted friend or colleague if they can identify any indicators that you give off via changes in your behavior. Our loved ones can usually pick up on them better than we can, because we can get caught up in the emotional swirl. If they don't notice anything immediately, ask them if they observe any clues or tells the next time you're signaling distress. Recognizing our emotional state is half the battle when it comes to addressing it; we can't address what we don't notice.

The next part of managing your feelings and getting them working for you instead of against you is to consciously identify or label them.

Label Your Emotions.

Building your emotional vocabulary can help you get better at identifying your feelings. The more granularly you're able to identify your emotions, by using something like our emotion wheel, the more control you will be able to exert over the feeling and the better able you'll be to conquer the negative feeling. We recommend getting as specific as possible in identifying the feeling. Again, it doesn't really matter if your description is perfectly accurate according to some outside source or reference book. What matters is that you have a good idea of what you are feeling, and why. Just naming a negative feeling can help you get it under control, rather than letting it control you.

Knowing this, we taught emotion labels to our classes. We started with using them on ourselves. Chris Voss mentioned the concept of emotion labels to our students during a guest lecture for our class at MIT. He said, "If there's someone I have to call, and I notice that I'm putting it off day after day, I say to myself: 'You're scared to make this call. You're scared to make this call.' After I say that two or three times, the feeling of being afraid goes away, and I start dialing. Try

it.” We did, and it works like magic. And now we want to pass on this magical skill to you—so let’s dig into the gauntlet of emotions you may face before, during, and after a negotiation.

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EXERCISE 1

Label Your Feelings

Label the emotions you experience in real time, in a stressful situation, using the granular emotion words from the wheel on page 61.

The easiest way to start is to ask yourself: What am I feeling right now? You might be interested to learn the concepts in this chapter. You might be bored and want to start scrolling social media. You might be mad and think, *What are these fools talking about? I'm not experiencing any feelings.* Get in the habit of identifying your feelings throughout the day. It may help to set a timer to go off at random times to remind you to check, and to keep a record of your feelings for a day or two.

The next phase is to identify an event or experience that's coming up that will likely have a negative emotional component to it. Let's say you're going to ask for a promotion next week, even though the company has been struggling this year.

See how much you can reduce the distress of potential strong negative feelings by labeling them with the wheel we provided, getting as specific as you can. If it doesn't work, ask yourself whether you are naming all the important feelings involved—are there any that need to be added to the list? If so, don't leave them out. We can be feeling multiple things at once, so you may need to use multiple segments of the wheel.

That leads up to the important skill: identifying what gets you stuck. When you find you are struggling to make progress on an initiative, try to figure out why. Maybe you are procrastinating on an important project because it makes you anxious. Or you're putting off an important call because you're mad at the other person. Practice labeling those feelings as precisely as you can. That should help you gain distance from those emotions and take control, which will allow you to take a huge leap down the path toward meeting your goals.

Continue to practice labeling negative experiences as granularly and as fully as you can, so you can let them go, gain distance from those emotions, and successfully work toward meeting your goals.

Why Does It Work?

Great question. Psychologists aren't sure. One purpose of emotions is to communicate with others. You might say to a rival, "This issue is really important to me, so don't fight me on it." That said, you could be faking that emotion, right? But when they see you get that red-faced look and observe that you are breathing deeper and more irregularly, they know you aren't faking it. Angry people tend to snarl and yell before attacking. It's as if you want the emotion you are experiencing to be communicated through your body language as well as verbally. With the job done, your brain and limbic system can relax, and the feelings of anger start to subside. When you label *their* emotion, it does the same thing for them: Their brain and limbic system can relax because it has been recognized. That means they no longer need to convey the intensity of those feelings, and now there is space in the brain for a more productive conversation. Our next exercise is to practice labeling the other person's feelings.

But I'm Still Edgy.

Great work, you've labeled your feelings. But perhaps you don't feel fully settled yet, especially if your feelings include anxiety, fear, or nervousness. There are two key hormones that spike with these feelings: cortisol and adrenaline. There are several techniques proven to help manage this hormone spike and reduce the intensity of those feelings. Experiment and see if some of these methods work for you:

- **BREATHING.** We recommend a practice known as 4-7-8 breathing, where you breathe in for four seconds, hold for seven seconds, and release for eight seconds. This method of breathing can help you lower your cortisol levels.
- **PHYSICAL ACTIVITY.** Get your blood moving through your circulatory system. Your body releases endorphins when you exercise, counteracting the cortisol and helping reduce the adrenaline coursing through your system.
- **MEDITATION.** Meditation has shown to help with emotional regulation. It can help you get out of the anxious and fearful state

faster. It also helps to build resilience, so you can approach your anxious emotions without as much trepidation.

Of course, stress is contagious. That means that by handling your own emotions, you are helping your counterpart handle theirs. Emotion labeling is effective here as well.

Labeling Their Emotions: “You Seem Angry” (Instead of “You’re an Asshole”)

Hostage negotiators have been using the technique of naming emotions for a long time on hostage takers. They spend hours studying tapes of their negotiations. They try all kinds of approaches and take notes on what works. One thing that keeps coming up is the power of emotion labels. If a subject (what they call the criminal or hostage taker) seems to be very angry or afraid and is having trouble thinking rationally, the hostage negotiator just says out loud what she thinks the subject is feeling.

For example, in one hostage situation a marine sergeant disappeared from his base in Iraq and showed up two weeks later at his ex-wife’s house in Hawaii, with a lot of guns. When hostage negotiators arrived, he screamed at them over the phone, “I found out that she was cheating on me during our entire marriage, even at our wedding reception! That’s why she has to die.” Now, negotiators do not like to hear that kind of thing. But rather than tell him that he is acting badly, the negotiator told him, “It sounds to me like you were a loyal and honest husband. But she didn’t act the same way, and that’s not fair. And it seems like that’s why you’re so angry right now.” In a quiet voice, the guy said, “Yeah, that’s right.” And having his anger heard and understood, he never threatened her again.

The negotiator treated the emotion the sergeant displayed as the core of what the guy was trying to say. He didn’t really have the words to describe his feelings. The only way he knew how to express them was through violent action. But when the negotiator expressed the feeling for him, he felt understood.

This works for more than just hostage negotiators. John consulted on a case involving an Ivy League teaching hospital. There was a pediatric surgeon involved who was technically brilliant but who had difficulty controlling his

emotions. If the slightest thing went wrong during a surgery, he would yell at other members of the operating team, even throwing sharp instruments around the surgical suite. His behavior was unacceptable, and clearly grounds to fire him. But the head of the hospital knew that he was saving children that no one else could.

As a last resort she asked John if there was anything he could think of. He remembered the story of the marine sergeant and thought emotion labels were worth trying. He trained the head nurse on the surgical team through using emotion labels, the way that hostage negotiators do. When the surgeon got upset, she would say to him, "I know you care deeply about saving your patient. So it makes sense that you would get angry at anything that would interfere with that effort. But the way you are expressing that anger makes it harder for the rest of the team to do their job to help you." The coaching worked, and the hospital was able to keep him on staff, saving lives, and make working with him much easier on the nursing staff. With the emotions labeled, we can then move on to next steps and look at how you can prepare for the next interaction, which is what we will discuss next.

EXERCISE 2

Label Their Feelings

Label the emotions you are perceiving from them in real time. We want you to start in a more positive situation to get the feel for it. What's important when labeling someone else's feelings is to share how you are perceiving their emotion and ask whether you are on track or not. We never want to be told how we feel, which is why we want you to practice with positive feelings first, because if you make a mistake, it won't matter as much. Your goal is to get positive affirmation that you labeled it correctly.

Once you feel comfortable with the skill, try it out in a stressful situation, using the granular emotion words from the wheel above to label their emotions. Remember, don't say something like "Wow, you're angry." Instead, use words to soften it and help make it sound like a tentative assessment, such as "It sounds like that made you angry" or "It seems that frustrated you."

See how much you can reduce their distress by tentatively labeling their emotions using the wheel we provided, getting as specific as you can. There may be more than one feeling, so you'll have to assess if you need to keep going based on their response: Have they settled enough to discuss the rational components? Or are they still showcasing signs of distress such as silence, going on a long diatribe, pacing, or having a raised tone?

Prepare Like an Overachiever

Like most animals, humans have two main responses to fear. One is to freeze and hope that the predator doesn't see you. The other is to take action and run away. You can adapt that second one to help you. But the thing to run toward is the extra work of getting yourself ready for the negotiation. Master the material so completely that you're ready to respond to or counter any surprise or approach. One of our friends regularly entered solo and ensemble music competitions. He would practice for months, memorizing the music, rehearsing the tougher passages, until he knew the piece forward and backward. In the competition, however, performing before the judges, his mind would still panic occasionally, straying from the music he was playing. But he knew the music so well that even if his mind wandered for a few measures, his fingers would continue on, playing the music flawlessly, until his mind rejoined the room and he was once again in control. We discussed this in our introduction: moving from controlled processing to automatic processing. Through preparation, you can do the same thing and move to automatic processing—even if you get swept up in a moment of anxiety, your brain knows the material well enough to keep going until your emotional state catches up. The rest of this book provides you tools and framing for that preparation, and in the appendix we have provided a “preparation sheet” to help you organize your prep work.

Consider Time Traveling

You can also consider time traveling. One way our brain can more effectively cope with the pain of rejection and failure is by imagining future states before encountering the situation. Studies call this “mental time travel,” which simulates anticipated threats and highlights escape strategies without experiencing actual danger. We are also able to predict what we are likely to encounter, which allows us to act more quickly and accurately to “danger” in our environment. So our next exercise encourages you to think through various outcomes, which will help you cope with all eventualities and make even the rejection scenarios feel less painful.

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EXERCISE 3

Imagine the Possible Outcomes

The first step is to think of a situation you are facing in which you fear rejection. Perhaps it's asking your boss for a raise, asking someone out on a date, giving an elevator pitch to a prospective investor, or even something as simple as asking a friend for a favor such as helping you to redecorate your office.

Next, think through the possible outcomes: best outcome, fine outcome, and worst outcome. Let's take the example of asking your boss for a raise:

- **BEST OUTCOME:** Your boss says, "Absolutely, you deserve it!" and contacts HR immediately to get the raise processed.
- **FINE OUTCOME:** Your boss says, "You make a compelling case, but I have to talk to leadership about a raise outside of the promotion cycle. Let me get back to you in a few weeks."
- **WORST OUTCOME:** Your boss says, "This is something we can discuss in Q4 during annual reviews, but not right now. Let's revisit it at the end of the year." Or, "I'm sorry, but we don't have the money in our budget this year."

Now, assess how you truly feel with each scenario and incorporate an emotion label. Write those labels down: Studies show that when we write our feelings down, it helps us process them faster. Analyze the results—is it really so bad, even with the rejection scenario? In the worst-case scenario, how badly did you feel? And is the rejection putting you in harm's way?

- **BEST OUTCOME:**
 - **Inner circle of emotion chart:** I feel happy!
 - **Middle ring:** I feel proud.
 - **Outer ring:** I feel confident and inspired.
- **FINE OUTCOME:**
 - **Inner circle:** I feel a little fearful but also happy.
 - **Middle ring:** I feel anxious but also optimistic.
 - **Outer ring:** I feel worried but also open.
- **WORST OUTCOME:**
 - **Inner circle:** I feel sad, angry, and fearful.
 - **Middle ring:** I feel depressed, frustrated, and rejected.
 - **Outer ring:** I feel inferior, irritated, and inadequate.

You will find the worst-outcome scenario to be not as bad as what you initially feared. Our initial fear of a negative response is that irrational, gut-curdling sensation we experience that we don't necessarily analyze. If you can do this type of analysis before stepping into a situation that might end in negative feelings, it will help you think rationally about the worst-case scenario and realize that what you experience is usually just not that bad.

See how much you can reduce the distress of potential strong negative feelings by labeling them with the wheel we provided, getting as specific as you can. If it

doesn't work, ask yourself if you are naming all the important feelings involved—are there any that need to be added to the list? If so, don't leave them out. We can be feeling multiple things at once, so you may need to use multiple segments of the wheel.

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Now that we have some tools for managing those initial feelings of anxiety and fear, let's move on to managing the excitement you experience when you initially get an offer on the table to negotiate.

Don't Get Blinded by Happiness

HAPPINESS IS THE REWARD WE get for success. It encourages us to repeat successful behaviors and gives us the confidence to keep going. And it feels great.

The only problem is it can rob you of motivation. Our happiness reward system is a crude one. And we can become satisfied at exactly the moment when there is more to get, like those cabdrivers who stop and go home halfway through a profitable rainy day. We don't want you to stop negotiating when you get that hit of happiness.

JOHN: When I was in law school, I had a good friend, Alan Price, who was a chess master. Literally. He had earned the title from the US Chess Federation. I liked to play, but I was not a master or even close. One day we were sitting in the back of a class on administrative law taught by Stephen Breyer (later Justice Breyer). I don't mean to insult Justice Breyer when I say that the law of administrative agencies is not the most exciting topic. So we propped up the textbook on the desk and set up Alan's little portable chess set behind it. And the usual result, which we referred to as "Bambi versus Godzilla," soon occurred. But on that particular day, Alan said, "I'm going to explain why you are so bad at chess. You look for a good move, and then when you find one you make it." "Uh, OK, Mr. Chess Genius," I said, "what's so bad about making good moves?" "Because," he said, "the first good move you find probably isn't the *best* move. You're waiting for my giant scaly foot to come down and crush you. So when you find a good move it feels like a refuge, and you cling to that. Don't. Write that good move down on a scrap of paper and put it in your pocket. Now you can relax, and the real work starts, which is looking for a better move." I never got to be as good as Alan, but I did get a lot better after that.

The same thing is true with negotiation. Most people find it a stressful experience. When you have a success—you get a job interview or you reach an agreement—the most natural thing in the world is to relax and bask in your victory. That’s fine. And the relaxation part of it is useful. But the risk is you will get too relaxed. It’s the perfect time to get back on the phone and try to land another interview. After all, now that someone is interested in you, you should be more confident, and they will assume that if another employer is interested in you, you probably have some good qualities.

Howard Raiffa liked to suggest what he called “post-settlement settlement”—that negotiators should always budget time after making an agreement to see if they couldn’t reach a better one. Now that they aren’t so nervous, they probably have a better relationship, so the time is right to try some more.

We want you to build the habit of treating every success as the perfect opportunity to get more success. Instead of relaxing after a victory, treat it like the first potato chip you ate—let it make you hungry for more. And unlike chips, you really can’t get too much of negotiation success (and no calories are involved).

Now that we’ve discussed not immediately settling for a deal because you are happy with the initial success, let’s look at the opposite scenario: What do we do when facing rejection?

Coping with Rejection

Recognize Rejection as the Path to Success.

ATTIA: Many of my students come to me for coaching on job offers, and I tell them that they should always negotiate. The worst that can happen is that the employer says no. And more likely, you will end up better off. I had never heard of an offer being rescinded because someone attempted to negotiate—until one day when one of the female students I was coaching on negotiating a job offer, Lucia, had her offer rescinded.

My coaching started off in standard fashion. I always ask the same questions of my students: What is the offer, who are you negotiating with (hiring manager, HR rep, staffing agency), what would you like to negotiate, and what is the market value salary (objective criteria, as we'll discuss in chapter 7) for that role in that industry (check Glassdoor, published salary studies, etc.)? What have they said are their constraints? How much do you need to live comfortably and cover your financial responsibilities like rent, student loan repayment, and so on? We also discuss future career ambitions—would it be better to get a higher salary now, or would it be better to advocate for a more senior title so your next job leads to significantly more money and responsibility?

For Lucia, the salary felt fair, and she was firm that it wasn't something she wanted to negotiate. That felt reasonable because the salary the company offered was on the higher range of what she found in her objective criteria research for an analyst role at a nonprofit in DC. What she *did* want to negotiate were the start date and a better understanding of the promotion opportunities available to her. They offered her a start date of July 1. She had a part-time summer job she had already committed to through mid-August, helping incoming Spanish-speaking students with their English-language skills. She was also curious about the opportunities for growth at the company. The organization had a flat hierarchy. I thought it was wise for her to get a better understanding of what the advancement timeline could look like since this would be her first full-time job.

The company had hired a staffing agency to find the right candidate. Lucia was in a slightly tricky spot—she had to negotiate with the staffing agency representative, Sarah, and not her hiring manager, Alisha. It's always much easier to negotiate directly with the person in the organization who has the power to adjust the offer. Still, I advise my students to never undercut the staffing agency or HR recruiter if they are facilitating the process. They will not appreciate being pushed aside during the hiring process. It's their job to manage the process and they are frequently getting compensated based on the hire.

I advised Lucia to emphasize her enthusiasm about the opportunity and organization. I also suggested she share the “why” for her asks: that she had another commitment she felt obligated to fulfill, something that her new company should appreciate—she was someone who honored her commitments.

Could she start part time over the summer and switch to full time in late August? I urged her to share her excitement to grow within the organization and that she wanted to better understand those opportunities.

Lucia emailed me on Saturday morning. I was in a coffee shop with my husband in New York City. While standing at the counter, I casually checked my email. My stomach turned over when I saw her email: They had rescinded the offer. I couldn't believe it. What could have gone so wrong? My husband asked if everything was OK as I quickly typed back a message: *Can you jump on a phone call right now?*

So how do we cope with the initial shock of rejection?

Sit in the Muck.

When you experience rejection, we want you to sit with the feeling. No good problem solving is going to come out of the feelings that come with rejection: despair, dejection, and hopelessness, to name a few. So give yourself time to process these feelings, and maybe seek someone out to help you with that processing. You want to diminish the whirlwind in your mind to give your brain space to formulate the next step, because rejection is never the end. It may feel that way, but we promise you there is always a path forward.

ATTIA: I recently started making kombucha, where I learned that you had to “burp” the kombucha—periodically open the cap to release some of the pressure that had built up from the carbon dioxide. Without doing that, the bottle could explode. Not a bad metaphor for how our minds work when we have pent-up emotions; we must find a way to release them, to have the mental space to assess the facts and come up with a plan.

When I reached Lucia, I could tell she had been crying. First, I asked how she was feeling. Of course, I could hazard a guess: rejected, despondent, anxious, helpless, confused, vulnerable. She shared these aloud along with a few more. Then I threw out another: Scared? “*Yes*,” she said with a deep sigh. I told her it was completely understandable, and normal, in this situation. I knew instinctively that the strength of all those emotions swirling around in Lucia's head would block us from engaging on problem solving. I needed her mind

clear, to think through next steps. And to do that, we needed to validate those negative feelings by labeling them, which would also help rein in the panic she was feeling.

Analyze the Rejection.

Once you've processed the emotions, take a step back and look at the situation rationally. What had occurred? Did they choose another option that was a better fit? Did they decide to pause on the entire venture itself? Sometimes, the answer is a firm no, and that's OK. But sometimes, there may be an issue that you can address. In Lucia's case, it seemed like there was an issue of miscommunication with a third party in the middle of the negotiation. That was something we could attempt to address.

ATTIA: As Lucia became calmer, I asked her for more information on what had happened. Despite the pressure Sarah at the staffing agency had been exerting to get Lucia to accept the offer, the timeline got stretched out as Sarah reached out to Alisha at the company itself and waited to hear back from her. Worse, Sarah miscommunicated Lucia's request and constraints. Somehow Alisha came away with the sense that Lucia wasn't committed to the role or organization, given her pushback on start date and questions about her career track at the firm. So she rescinded the offer.

I asked Lucia if she could reach out to Sarah for more information. Were there any other details they were unhappy about? Had she communicated the "why" behind Lucia's requests? But Sarah had just left for vacation and was no longer available. I paused for a moment to consider this new information. Had Sarah been hurrying up the process to close the hire before vacation? It sounded like the communication gaps may have resulted from Sarah's haste, and I was now skeptical that Sarah had communicated Lucia's rationale around the requests. Unfortunately, we will never know for sure what had happened in Sarah and Alisha's conversation, but we had enough information to create an action plan.

With Sarah unavailable, it was now time for Lucia to go straight to Alisha. Now, I know, dear reader, that I said not to go around any intermediaries, but

there is a time and place to do that—when the intermediary is misrepresenting you or creating significant issues in the negotiation. We believed that Lucia's requests had been miscommunicated. But I reminded her that she needed to be respectful and not throw anyone under the bus. No one wants their mistakes pointed out, and Lucia was in a delicate position. She needed to be diplomatic with the words she used.

A Lesser Request

Psychologist Bob Cialdini states that we should be ready to make a concession and retreat to a “lesser” request, which will increase our likelihood of success. No one likes being a jerk (with some exceptions), and if someone sees you trying to accommodate their limitations with a lesser request, they will make an effort to meet you. Perhaps you're willing to take a job part time even though your ideal was full time. Or maybe you are willing to take on a smaller scope with a contract. In Lucia's case, she wanted to clear up the miscommunication and offer an opportunity to discuss it if that was something they were interested in.

I advised Lucia to craft an email stating that she thought some miscommunication may have occurred. I suggested she then explain to Alisha directly what her concerns were—that she felt she had to honor her existing commitment but had suggested she could start part time in the summer, and get experience in the new role, before starting full time at the end of the summer, and that the reason she had asked about the company's promotion policy was because she was interested in a long-term career at the organization. Last, I encouraged her to restate how excited she was about the role and the organization, and about the prospect of joining their team. She closed by offering to hop on the phone to discuss her response further if that would be helpful (a lesser request).

I couldn't help thinking about it over the next few days, wondering if there was anything else Lucia should do or say. Eventually, I had to set my own anxiety aside. I had coached her the best I could, and we would see what happened.

Several days later, I heard back from Lucia. Alisha had responded very positively to Lucia's email and had reinstated the company's offer with a September start date. I must say, I heaved a sigh of relief. The thought of being

responsible for one of my students losing a job prospect because of my coaching had not sat well. And I was thrilled that our emergency response had worked.

Years later, Lucia is still thriving at that organization. Today, I continue to coach my students to feel comfortable negotiating job offers, and I advise them even more firmly that the manner in which they do so matters. Think of it as a collaborative conversation to drive more value for all parties. It can make a big difference in the outcome of negotiation itself, as well as in your relationships at the company once you begin the job. I also always remind them, and myself, never to panic if something unexpected occurs. Job offer negotiations can result in some of the most extreme emotions: the thrill, joy, and excitement of landing the job. Anxiety, anticipation, and nervousness thinking about negotiating some of the terms of it. Fear of rejection right before and even during the negotiation. And maybe frustration, anger, and sadness if you don't get some or most of what you want. Managing all these emotions during the process are crucial because you can't implement the rational negotiation techniques we have outlined unless you release your negative emotions to give yourself the space to utilize your negotiation skills.

But sometimes no matter what you do, the rejection is firm, and you have failed in your negotiation. That's going to happen—it happens to all of us. So, what then?

Managing Failure

ATTIA: I was attending graduate school at MIT when my sister and I started a company called Kalani. We developed textiles made by an artisan community in rural Portugal. The craft had once been core to the community in its historical significance and economic impact. This community produced high-quality blankets using a traditional weaving technique on older looms that was in danger of disappearing. We loved the artisans' textiles and respected their work to revitalize this factory and help restimulate their local economy. We wanted to support them and protect their weaving technique by finding a market for their

handcrafted products in the United States, and they became a crucial and supportive partner to us.

A few months into starting our company, I was going around to investing groups at MIT to acquire additional funding. Initially, we had gotten seed funding to spend the summer finding the right community of women in Portugal to work with. We now needed additional funding for product development. I was excited because, after an initial course correction, we had found an extraordinary community of artisans to work with, and I was eager to start developing a product line. I went back to the people who had given us the initial funding with what I thought was a strong proposal, but I was shut down, hard. They resisted giving us even a tiny portion of what we had asked for to get underway. When I asked why, I was told that our idea was too farfetched and that they didn't see a way to successfully scale it. And given that we were at the Massachusetts Institute of Technology, they wanted to know, where was the tech? Ouch. As I approached other groups, I received similar responses.

It was a rough six-month period, with rejection after rejection, despite a lot of effort and energy put into each pitch. I continued telling myself it would work out. After all, this was our baby. Being rejected every day and told my baby was ugly, or unlikely to survive, or that it lacked an element of AI, brought me a heart-wrenching feeling I can vividly feel to this day. Thinking of it makes me want to write about something else; there are many times I considered deleting this whole story because of the pain I still experience almost a decade later.

So I stopped applying for funding and going to investor networking events. I told myself that they weren't the "right" opportunities or that I had too many graduate school assignments to read and papers to write. As a highly rational person, I came up with all sorts of reasonable-sounding excuses to explain my disengagement. It took me several weeks to get back to the circus. And the first order of business was to find a way to cope with the pain of the additional rejections I knew were coming.

I imagined the different scenarios that could occur in something like an investor pitch, thinking of the potential "worst," "fine," and "best" outcomes. This allowed me to analyze the situation without the full pain I would experience in the moment, so that I could cope with all eventualities. And when

I actually ended up in the “low/rejected” scenario, it wasn’t as painful as before. I was able to pivot each negative outcome into an immediate action step with a “lesser ask” that notched me closer to my ultimate goal. We got enough traction to keep going for another year, which my sister, Umbreen, took full advantage of in further developing the product.

Umbreen, a brilliant and talented designer, had come up with a new, unique, and very plush way of weaving fibers to make extraluxurious blankets. The technique she invented used the artisans’ generational skills but elevated them to make softer, fluffier blankets. Unfortunately, the woman whose factory we were using loved the new technique so much she started using my sister’s design and producing the blankets on her own. We had no idea until we went to visit and saw them in the factory—our blankets! And later we saw those same blankets on the website of the boutique hotel she owned. With *her* label. We thought we had a partnership with her and realized that was not the case. We had no recourse—we were Americans in Portugal, her native country, and design intellectual property is notoriously hard to protect.

We were heartbroken. We had poured so much into it. But it was not a workable business model. It was the worst-case scenario, even worse than I could have imagined as the low/rejected outcome, and I was feeling almost all the negative feelings on the wheel. We decided to take a break and step away from the start-up, which was devastating. And I had to sit in those feelings for a while. I took a week or two off to go on long walks and process my failure at scaling a company.

You’re Not a Failure, Even If You Fail.

ATTIA: I’m an achievement-oriented person, and it’s hard for me to remember that I am not a failure, even if I sometimes fail. I can get caught up in rehashing everything that happened and have to extricate my sense of self-identity from the results. I must remind myself of other wins that I have had and of the fact that I do provide great value. I am not to blame because I tried hard and failed. Sometimes things just don’t work out. Early in my career, a former colleague gave me great advice. He said, “Think about everything hard you have overcome in the past. Let your past resilience and ability to move forward give you

confidence that you can do the same in the current situation.” I love that advice and still use it today.

You Are OK.

We may start thinking about all the worst-case scenarios and start doom casting when failure occurs. Our suggestion? Put any mistakes into context—it’s a negotiation, not a military maneuver, and failure does not equal deadly ramifications. Perhaps you worry: *I’ll never find another job. I’ll never be a successful entrepreneur. I’ll lose my house or my spouse. I’ll be stuck in middle management forever.* These things are not true. No matter how hard it is to see an opportunity forward, there *is* another path. And you will find it. We will help you in this book, especially when we talk about building alternatives.

Reframe the Failure.

This step is tricky, because we are now asking you to see the failure as an opportunity. An opportunity to learn, as we mentioned above. And an opportunity to find a new deal. *Ugh*, you may be thinking. *What obvious but unhelpful advice.* Yeah, yeah, we know. So in search of that opportunity, can you identify a new goal? Something to slowly start working toward? Ideally, that opportunity will even drive some excitement to help you gain momentum toward it.

ATTIA: Once I had spent some time licking my wounds, I started putting energy into finding other projects. At first, I didn’t want to share that my time had freed up because I didn’t want others to know about my failure—I was still embarrassed. But that was going to restrict me from using my network, so I had to set those feelings aside. I put feelers out: I knew I loved negotiation and conflict resolution and was available for subcontracting work. *Ding ding*, I landed a couple of gigs. And a few months later, I was free when John asked me to write a book with him on negotiation. And that also meant I was back in Michigan for a while, on a popular dating app, when a Michigan alum popped up. And I saw that he was cute. And tall, even taller than my dad. *Wait, what? He’s a farmer? Well, this will be a story to tell the girls. What the heck, I’ll send*

him an invite. No way he will match me back. Why would a farmer who lived four hours away want to go out with some citified MIT negotiation chick? He's probably looking for a girl with, like, hay-baling skills. But at least I'll get my rejection in for the day.

Ten minutes later: *Buzz!* He matched back! More on that in chapter 4.

Build Resilience

Fail on Purpose.

Most of us panic at the thought of failing at something. It invites a kaleidoscope of negative emotions—from anxiety to depression and even despair, anger, and insecurity. It can undermine our sense of self-confidence and, like rejection, cause us to go to extreme measures to avoid being put in a situation where we might fail. And yet, failure is a part of life. The fact is we can't get better at mastering anything, from football to the violin, from starting up a company to negotiating with contractors, without experiencing an endless round of setbacks and failure. So we must find ways to cope with it. To learn and grow, you need to practice doing things you can't do now. If you never fail, then you are probably not trying to tackle anything difficult enough.

Entrepreneurs have learned to celebrate failure, for the lessons it provides in helping them to ultimately achieve success. In fact, psychologists claim that being willing to risk failure is a powerful sign of mental health. Researchers in one study put the subjects in a room with a dart board and handed the subjects some darts. But there was no mark on the floor to indicate how far away from the dart board the dart throwers should stand. They found that mentally healthy people, on the one hand, tended to stand far enough away that they hit the target about half the time. That made dart throwing a fun challenge and let them practice getting better. The subjects that suffered from depression, on the other hand, stood so far away that they almost guaranteed they would fail.

Which leaves us with a dilemma. We need failure and rejection to learn. But failure and rejection hurt, and we go out of our way to avoid them. They can

discourage us in our pursuits and even keep us from trying. And we know it's going to hurt. But there are things we can suggest that will make it hurt *less*.

Exposure Therapy.

The more rejection you face, the easier it is, as Jia Jiang wrote about in his book on rejection therapy, *Rejection Proof*. The reason we are so scared of social rejection is because we fear that we will find ourselves alone and friendless, potentially destitute and worried about having our basic needs met, from food to a safe place to live. Which, of course, feels like a risky place to be. But if you can put aside that irrational sense of fear that you experience when you fail, you'll find that your friends still like you, you haven't been fired, your partner is still at your side, and your family continues to love you. In other words, the fear may seem overwhelming, even paralyzing at times, but you are actually not risking that much. So we want you to find low-stakes ways to fail, again and again. The goal is to inoculate yourself so each time the sting is a little less.

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EXERCISE 4

Seek Out Rejection

The first part of this exercise is to find a small way in which you can get rejected. Think about the different ways you interact with people in your life and a small ask that you can make that will most likely result in a no. Ask your partner if they can get your car inspected for you. Or maybe ask for a custom dish that is not on the menu at a restaurant you decide to visit over the weekend. Make the ask and receive the no—then, document how you feel. Was it world shattering? Did it physically hurt? Do you feel abandoned or kicked out of your tribe? Our guess is that it wasn't that bad.

Next, step it up a notch and try something a bit more complex. Ask your in-laws to watch your kids over a holiday weekend even though you know they don't like to do overnights. Ask your coworker if they can cover for you during the next holiday weekend. Again, document your feelings and compare them to the prior situation. Was it a little easier? A little less scary?

Continue finding small ways to get rejected, and after three to five attempts, do a gut check to see how it feels: Are you less hesitant to make an ask? Does it feel less foreboding? Have the physical effects diminished?

We would recommend you continue seeking out rejection until it no longer makes you feel incredibly uncomfortable but rather feels tolerable. This way, when the stakes are higher, you won't avoid the negotiation and can cope with the myriad feelings effectively.

JOHN: When I attended the Massachusetts Firefighting Academy, the students were responsible for a lot of book learning. (How hot does it have to be before a metal truss ceiling in a Type II building collapses? About 1,000°F.) And there was an enormous amount of rote practice. First you tie a bowline knot. Then you tie it ten more times. Then you are timed to see how fast you can do it. Then you tie it with your eyes closed. Then behind your back. Then with one hand. The skill building starts out easy, and then they ratchet up the difficulty over time.

They did the same thing with accustoming students to environments that would terrify a normal person. The real kicker was live fire instruction. They have a giant concrete building that they fill up with wooden shipping pallets and bales of straw. Then they light it on fire. Flames come shooting out of the windows, and the whole building fills with black smoke too thick to see through. It's scary. A lot of people panic; some drop out of the program rather than pry open that door and walk in.

They teach you how to follow your hose out if you become lost. They teach you how to bail out the window if the temperature in the building gets too hot. They have you lie down on the floor where it's cooler and let the temperature at standing height get deadly hot. Some people panic at that point. One guy tried to rip his mask off from claustrophobia; we had to hold him down so he didn't end up killing himself.

Then they send you in a different room, just as hot. It's hard to pry open that door to get inside. You are on a hose team with two buddies. No one wants to let their buddies down, so most people screw up their courage and try it. The instructors are ready to pull them out if they are in danger. The first fire they send you into isn't that big. So you put the fire out and spray a mist of water out

the window, which clears the smoke. Later, you are outside with your friends, cussing and giggling about how crazy that was. They let you rest and drink some water to rehydrate yourself. Then they send you back in to face another fire. The fires keep getting bigger and hotter, but each time it is less and less scary.

Strange things are frightening. New things are scary. But if you ease yourself in, starting with simple skills in low-stakes situations, it gets easier. Eventually it even gets boring and predictable, and the students start complaining about wanting something harder.

You can use that same approach in teaching yourself better negotiation skills. When you practice the exercises we have laid out, they distract you a bit from the scariness of the larger negotiation tactic you are trying out, and next thing you know it isn't scary anymore.

Takeaways

NEGOTIATIONS ARE MESSY BECAUSE EMOTIONS are messy, and unfortunately, we can't fully escape from that. But we can learn how to manage and cope faster and better. You will face the emotions we describe in this chapter, and more. And if you're following our advice, you'll hopefully be facing a lot of rejection, because that's how you get better. Our entire book sets you up for rejection, because as you practice the exercises, there are going to be times when you won't get it right.

We recognize that it is often terrifying, gut-churning, and horrific enough that we avoid the risks—but those risks are what help us become more influential and better negotiators. They also lead to some other wonderful outcomes, like better jobs, a wonderful home, a new car we're proud of, and perhaps even a lovely life partner. The key in getting through a failure, whether negotiating for a raise or new responsibilities or dating, is to see it as part of a process.

Being able to deal with rejection and failure is crucial to becoming a successful negotiator. We want you to learn how to lessen the pain of failure, because we don't have a magical solution how to avoid it. You need to practice

managing your feelings and find low-stakes ways to fail to test yourself and develop your skills. That will help you face it with greater courage and even, we hope, encourage you to seek it out. If you do that, your negotiation skills will grow by bounds.

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CHAPTER 3

SAY THEIR NAME

THROUGHOUT HISTORY, IN A VARIETY of literature and lore, cultures have claimed that knowing—and using—someone’s name gives you a certain power over them. In the Grimms’ fairy tale, the queen defeats Rumpelstiltskin by discovering his name. When we use our children’s full names (or our parents use our full names), they know: *Uh oh, trouble*. There are similar traditions in cultures across the world. For example, in Navajo culture, family members don’t refer to one another by their names but rather by their role in the family (i.e., “son” or “mother”). They believe that using someone’s name invokes power over them.

One of the most basic problems in negotiation is, How do I get the other person or party to pay attention? How do I grab and keep their attention to influence a situation?

After reading chapter 1 on reciprocity, you might guess that the best way to get them to pay attention to us is to tap into our social need of wanting to feel seen and heard. If you make the other person feel important (recognized), they will feel the urge to reciprocate. That gives you a better shot at getting their attention. There are several skills that are relevant to building relationships. Let’s start at the beginning, which is to say in the deep part of our brain, at the root of our social cognition. And what’s more deeply rooted than hearing someone speak our name?

Show Them They Matter

ATTIA: My parents put me in Montessori school when I was two. Teachers considered me a good kid, but I encountered a problem when my teacher and I

couldn't agree on how to pronounce my name.

"It's pronounced Ath-ay-yah!" she insisted with a sweeping hand gesture.

I furrowed my little brow. I knew how to pronounce my own name!

"No, it's not. I pronounce it Uh-tdhee-ah," I repeated to her.

We went back and forth several times, reaching no clear resolution.

My parents graced me with a beautiful (but difficult to pronounce) name that stems from an Arabic root meaning "gift." But it isn't really a common name in any culture. I've always been the only "Attia" anywhere I've gone. And I've found people pronounce it differently in various regions. Native English speakers tend to pronounce the middle consonant as a hard "T" sound. Arabic speakers like my teacher soften the double *T* to a "th" sound and harden the pronunciation of the *I*. In the Hindi pronunciation, the double *T* involves a phoneme, a distinct sound pattern that is used in Hindi but not in English, a sort of halfway point between the English "tt" sound and the "th" sound that rolls off the tongue as an elegant "tdh." I have always viewed the Hindi version to be the perfect Goldilocks degree of moderation, and the most beautiful. It's not a coincidence that that's also the version my mother whispered in my ear the day I was born.

That pronunciation is what I associated with myself from infancy, and that's the way I wanted other people to say it. But this isn't just a cross-cultural problem. I have a good friend named Anna from my time living on the West Coast. Her parents pronounced her name AaH-nah, like the princess from *Frozen*. But most people who read her name pronounce it to rhyme with banana, and it drives her, well, bananas. Each time she hears it mispronounced, she must decide, *Is it worth taking the time and effort to correct them?* And while hers is easier to catch on to, there are consequences for both her and the other party in the case of a mispronunciation.

Back in Montessori school, I noticed that teachers started to avoid using my name because they realized they weren't sure how to pronounce it correctly. When I raised my hand, they would point at me and say, "Yes?" if I was lucky. And sometimes I would be passed over entirely, which I found immensely frustrating and upsetting, as a young student eager to impress her teachers.

So from an early age, I changed the pronunciation to drop the Hindi “tdh” phoneme and make it a hard “T” sound in the middle of my name. Even as a toddler, I wanted to be called by my name. I made the unconscious decision to adapt my name to my circumstances, to ensure my teachers and classmates would use it rather than avoid it. The same thing happened when I started graduate school at MIT in my late twenties. I had decided to give the proper pronunciation of my name another try. It seemed like the perfect time—I had moved to a new place, with a new group of people who hadn’t heard or learned the incorrect pronunciation. They were well educated, and we were immersed in a diverse population at school. It seemed like the optimal environment for success. And yet I encountered the same issue—people began to avoid using my name, for fear of mispronouncing it a second or third time. Sitting in a lecture hall at Sloan, I would get the same point and “Yes?” response when a professor called on me. I was several decades older, yet I was just as eager to be called by my proper name. In the face of that, I reverted to the easier pronunciation. Why? Because it was far more important for me to hear my name called out than to hear it pronounced correctly. And it felt OK because it was my choice to fall back on my “alternate” version.

Over time, the way my name is pronounced became a marker between various “versions” of myself. We all have a variety of roles we take on—parent, child, student, employee. For me, the different versions of my name became associated with different roles in my life. The Hindi pronunciation became what I was used to with those closest to me, when I’m being a daughter and a sister. The American pronunciation, with the hard “T,” was for work and school—my public life.

It got tricky when I started dating Isaiah, who I quickly knew was special. Isaiah is a sixth-generation farmer from northern Michigan who didn’t have experience with the Hindi sound pattern. Was it worth it to try to get him to pronounce my name the given way? I reserve my attempts to do that for only the closest people in my life. As he started becoming closer to being one of those core people, the way he pronounced my name felt increasingly important to me.

When we moved in together, I decided to work with him on the correct pronunciation. I told him that I knew it was hard, and I didn’t care how many

times he messed it up. He was so sweet about it. He even asked for a sound recording of it and later confessed he would listen to it and practice while driving his truck around the farm. He has gotten pretty good, though there are still some slipups here and there. He doesn't give up trying, and neither does his family, which feels so good to me. But it was a lot of work. With the birth of our son, we had a lot of family names on both sides to consider but only focused seriously on the ones that both sides of our family can easily pronounce. We ended up with Zavian, which doesn't have any phonemes, but we have ended up with a "Zah" versus "Zay" problem. It's Zah.

My point is that hearing one's name pronounced by another person touches something in us that is deep, instinctual, and universal.

Those consequences I mentioned earlier continually come into play. Some people feel too embarrassed to get it wrong even once and avoid the name entirely. With others, if there have already been a few efforts of gentle correction on my part, I feel too self-conscious to continue correcting for fear of embarrassing them. In some cultures, name pronunciation has become so difficult that people will adopt completely new names that are grounded in their new environment. I have a friend from Shanghai who was in my graduate school program who never offered us his given name. When we asked, he waved away the question and said, "It will be too hard for you to pronounce; just use Wilson."

The Psychology: Why Does a Name Matter So Much?

YOU ARE DOUBTLESS WONDERING, why does this matter when it comes to negotiation? Surprisingly, often, it can matter a lot.

Studies have shown that hearing one's own name triggers unique cognitive activity around one's level of engagement with a given topic. Additional studies have shown that even when a person is in a persistent vegetative state (PVS), clusters of neurons are activated when they hear their name.

This is intriguing, because in a patient in a PVS, only the portions of the brain that regulate baseline, autonomous functions, such as breathing, heart rate, and body temperature, remain functional. Yet the brain seems to consider hearing one's own name a part of core functioning. When someone hears their name, it speaks to their core identity and personality at a deep, instinctive level.

That means you can use someone's name to get their attention, which is very important in a negotiation. First, you will trigger their internal awareness, and their participation will be more profound and resonant. And second, people can almost always help you, and this is one step in encouraging them to feel inclined to do so.

Grab Their Attention

ATTIA: An early step in getting someone to warm toward you is connecting with them. As we describe above, one quick and easy way to do this is to remember and use their name.

I'm usually traveling on a monthly basis to see my consulting clients, which means I have to deal with the increasingly challenging logistics of air travel and harried airline/car rental/hotel agents. These agents are constantly dealing with passengers who are upset, frustrated, and often melting down due to travel mishaps. It's no wonder that they aren't always delighted to speak with you.

I had a particularly bad experience trying to get to Charleston, South Carolina, the Sunday after Thanksgiving for my client's annual meeting that I was facilitating. It was also a day of winter storms sweeping across the country. My first flight out of Traverse City got delayed, and after running to the next gate in Detroit, I learned I had missed the flight by seconds because they had closed the gate five minutes early. I was out of breath, livid, and hyperstressed. The airline representatives told me the earliest they could get me to Charleston was noon the next day, even though I was supposed to be standing at the podium at 8:00 a.m. in front of a group of forty-four people presenting their next year's strategic plan. The airline had automatically rebooked me on that next-day flight, and there was a queue of twelve others behind me. I could see the

agent already dismissing me and glancing to the next person behind me. I took a deep breath to calm myself, looked down at her tag, and said, “Hey Regina—I know it has been a terrible day with the weather and people trying to get home.” Suddenly, she snapped back and made eye contact with me, and then slowly nodded. “Yeah, it’s one of the busiest travel days of the year and with the storms we are swamped.” I nodded and made a sympathetic sound. I had taken the first step to grab her attention. Let’s pause for a moment to see how I was able to do this.

The Cocktail Party Effect

Imagine yourself at a crowded cocktail party. Friends are grabbing drinks and appetizers while engaged in a dozen conversations, from politics and work to raising kids and managing personal relationships. It can be more than a bit overwhelming. Yet we find it relatively easy to cue in on the conversations that are interesting to us and to join one of those groups. The cocktail party scenario raises some interesting questions about human cognition: What mechanisms in our brain allow us to manage drinks, appetizers, and foot traffic while maintaining a conversation, with so much other chatter going on around us?

In fact, the human brain is amazingly well adapted to cocktail parties and other situations in which we are bombarded with multiple streams of information simultaneously. Vertebrate brains contain a distinct bundle of nerves referred to as a reticular activating system (RAS). In addition to regulating sleep/wakefulness and fight or flight, this neural circuit allows us to filter everything we hear—approximately eleven million pieces of information—for relevance. The mind can’t function without this system; it can only process about forty pieces of information at a time. The multiple conversations occurring at our cocktail party would quickly overload our brains, like an electrical panel blowing a fuse. RAS allows our brain to scan information and to only pick up on the things that we find relevant. Think back to a recent event you attended, with several conversations going on around you. A conversation about the most recent case brought to the Supreme Court might grab our attention, or a conversation about a feud between two pop singers, but when it shifts to last weekend’s college football game, we zone out. In a negotiation, it’s

important to recognize the “cocktail party effect” because it shows us that most stimuli get filtered *out*. So how do we get ourselves *in*, in terms of getting others’ attention?

The “cocktail party effect” also highlights our ability to shift our attention from one conversation to another based on subtle stimuli. We’ve all encountered situations at a party when someone seems focused and engaged in a conversation with us, only to suddenly shift their attention to another conversation some feet away. RAS is a blocker, but it is also running a continuous background scan of your surroundings. And guess what is one of the most impactful triggers to shift our attention and make our heads turn? You got it! Hearing our own names.

ATTIA: If we go back to my nightmare travel story, when I used the Delta agent’s name, it immediately jumped me up to the top of her attention and focus. She was grappling with half a dozen other people and things that were commanding her attention, but hearing her name served as a personal awareness buzzer that got me back to the top of her attention list. In addition to that, I was able to reset the tone by offering words of empathy acknowledging the tough situation she, too, was in. Too often we get stuck in our own misery and despair and can’t recognize it in others whose help we need. Now that I had her attention, I went on to explain my work conundrum. Regina was now engaged with my problem. With some creative maneuvering, she was able to reroute my flight through Atlanta and get me a seat on a connecting flight from Atlanta to Charleston arriving that evening, so that I was on the podium the next morning to open the event.

Finding ways to use the other person’s name in a negotiation becomes vital in any sphere where you are trying to exert influence. When you use someone’s name, it instantly causes them, unconsciously, to pay more attention to you. Using someone’s name is an effective first step in getting them to feel like you care about them, which then in turn makes them notice you.

Make It Personal

ATTIA: When I first started writing *Never Settle* with John, I had just moved to Traverse City, Michigan, and was living on Isaiah's farm. At the time Isaiah was my boyfriend. Looking for something to do in between book writing, I decided to restart the u-pick cherry business on the farm, whereby people could pick their own cherries and pay by the pound. After a couple of summers, I turned the running of the business over to some high school students. One of the most important pieces of training I passed on? Teaching them to recognize the locals and greet them by name. A "Hey, Jayne" or "Hi, Charlie" made people pause and smile rather than immediately getting their bags anonymously and going out to pick. By engaging with them personally, I noticed that they were much more willing to hear about our new offerings of donuts, honey, and maple syrup. And while they might not buy donuts today, they may offer to write us a glowing review and send others our way, which is how we ended up with one of the most popular u-picks in the area, with hundreds of positive reviews.

Our first exercise revolves around learning and using a stranger's name, and how that can change the dynamic of your relationship. Learning and using someone's name more routinely can feel awkward and hard at first. Let's start with a low-stakes environment, with someone you recognize on a regular basis but wouldn't normally engage with on a first-name basis. Watch for the difference in your interactions after learning and using someone's name.

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EXERCISE 1

Practice Learning and Using a Recurring Stranger's Name

CONTEXT: Pick someone you routinely interact with but generally don't tend to have a conversation with. This could be your barista, bartender, doorman or security guard, waiter, or farmers market vendor—ideally someone you see every week or two who provides you with a service.

STEP 1: If you don't already know their name, ask them. Sometimes they may have a handy name tag on their shirt or blouse. Commit their name to memory. Ask them questions about the origins of their name or about their background, heritage, upbringing, or current neighborhood that will help you to create a mental picture of them that you can recall later.

STEP 2: Start using their name every time you see them. Even a simple "Thanks, Jen" or "Good morning, Steve" is sufficient.

TIP: *Be cognizant of how many times you use their name. In a brief interaction, once or twice is a reasonable goal. You don't want to overdo it. Try using their name at the beginning and end of an interaction. If you forget their name in a subsequent interaction and you haven't seen them in a while, you can always ask again. "I'm so sorry, you told me your name last time and it completely slipped my mind. I'm Attia, could you remind me of yours?" If you forget their name more than twice, and rarely bump into them, it's time to move on and practice with someone else.*

STEP 3: In future interactions, mention something you particularly like about the service the other person provides. "Tim, I love your lattes; that triple shot sets up my entire morning" or "It's such a nice touch when you add an extra olive to my martini, Maria" or "You make the best martini in town." See if that becomes a standard touch and point of connection.

STEP 4: Over the course of several interactions, see if there are any changes in the other person's behavior. Do they take the initiative and say hello to you first some days? Try asking them for a small modification—a muffin, an extra shot of espresso, or whole milk rather than 2 percent, if that is what you would like.

Look to see if your interactions have resulted in any changes in behavior. Does your coffee come faster? Does the other person ask you if you would like more foam or less or more milk or a flavored latte? Do they do something that implies they are taking special care of you in some way? Is the other person calm, engaged, making direct eye contact with you? Do they smile when you use their name? Or are they too harried to notice because they are juggling three things at once? Do they notice you despite the fact that they are juggling three other things, because you trigger the RAS? Test the power of your interactions under different conditions and over several weeks to get a sense of when it's most and least effective.

How do you feel about your interactions? Do you feel a greater sense of connection at being recognized and greeted as a "regular"? These kinds of positive

feelings can make a difference in your day. And research shows that even small social interactions of this nature can have a positive impact on our mood and emotions. And our daily negotiations.

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You'll have achieved a significant measure of success when you naturally start using people's names in your interactions without thinking about it. We recommend that you try to make it second nature in all your interactions. We think you'll notice how the atmosphere around you changes when you casually and easily recognize and acknowledge the people you interact with daily by saying their names.

JOHN: This doesn't only work to build individual rapport; it can help bring people into an organization as well. I work in a volunteer fire department in Carlisle, Massachusetts. We get lots of people joining every year, but many of them don't stick around. It turns out to be harder than many expect. But even more, it is a close-knit group; the old regulars have been there for decades. It can be hard to feel like you belong. But if the old-timers learn the newbies' names, they're more likely to stay. "What's your name again? Jeff? OK, Jeff, here's what we're gonna do to pump water out of this pond." And later, "Don't worry about it, Jeff; we all mess that up the first time."

Once this has become a daily part of how you interact with those around you, you are ready to focus on the next skill—using those warm feelings to make others more receptive to an ask you wish to make. We have another exercise to recommend when it comes to remembering a person's name. It involves taking notes after your meeting and grouping "like" people together for easy reference in advance of your next interaction.

EXERCISE 2

Grouping

When you leave an event where you met several new people (or when you have a quiet moment to yourself), create a list on your phone around that event. We recommend doing this every time you have interactions with people of the same “type” (e.g., parents you see every semester at parent-teacher conferences, Friday after-work happy-hour acquaintances, or members of a sporting club).

Come up with a title for the list that you can easily reference or recall. For example, if you’re at a school fundraiser, create a list with the heading “School Fundraiser” and list the people you met there. Before you attend the next event, study the list in advance to refresh your memory. It will help boost your memory around people you only meet occasionally or in specific settings or at specific times of the year.

TIP: *If you have a few moments, add one or two details about the people on the list that you’ve learned in the interim, such as the birth of a child or the marriage of a son or daughter or the retirement or death of a parent.*

How many times do you need to reference the list? Our guess is that it will be very helpful the first few times, but you may find you won’t need it as much after a while because you will be able to recall many of the names automatically. Or you’ll only need to scan the newer names on the list, which takes but a few moments.

The use of someone's name unconsciously encourages them to engage more actively in the conversation. And remembering their name from an earlier meeting makes them feel important and valued. Imagine the power of that when you're partaking in a negotiation. It can start any conversation on a more positive note and build goodwill with the other party (even if they aren't conscious of it).

Once you've mastered remembering and using their name, there are a couple of more advanced skills you could work on. The first is getting to know more about the other person and building a deeper connection and then using that to make them more receptive to an ask that you have.

Learn About Them and Show You Remember

NOW THAT YOU'VE MEMORIZED THE person's name and, ideally, some information or detail around it, the next step is to solidify the memory of their name in your mind by creating a mental picture so that you can call it up quickly in the future. The mental picture will include not only the person's name but also some key details about them that take you a step further in knowing and remembering them. This is what philanthropist Andrew Carnegie used to do. He would get details about a person and draw a mental picture in his mind of that person—for example, with their dog to their side, a paintbrush in their hand, and mountains in the background—including any unique details to help them stand out. He would then imagine their name in large letters at the top of the mental drawing to store in his memory bank. This add-on takes the skill of remembering their name a step further, so that you can recall something specific about them to bring up in future conversations. It is exactly the kind of detail the other person will be impressed by—not only did you successfully remember their name but you remembered specific details about them, which speaks to the extra effort you've made.

ATTIA: My first job out of college was working as a management consultant based out of San Francisco, specifically helping clients realize the value of customer data when making strategic decisions. Most of the clients I helped support were executives at Fortune 500 companies. It was tough to come in as a young minority woman fresh out of college and try to command respect and credibility in a roomful of mostly older men. I was often immediately dismissed. I was even told by some of my colleagues that my job was to sit back and absorb information for problem solving later. Well, that really didn't work for me—I wanted to be seen and heard and involved. Growing up, I had seen my mom break similar boundaries by ingratiating herself with people, so I started paying attention to the idle conversation that happened before and after meetings. What football teams did they follow, how old were their kids, was there any impending bad weather we had to worry about? Did someone have a fun trip or vacation on the horizon? After a couple of weeks of identifying these tidbits, I started to cautiously chime in, starting out with college football in early fall. Having gone to the University of Michigan, usually one of the top football programs in the country, it was easy for me to contribute. At first, they were a little surprised, but it was a comfortable topic for them to engage with, and we started riffing back and forth on the weekly college football rankings. Of course, I also started using their names and remembering who followed which team. This continued to evolve as we reached the winter holidays. I would connect with them on travel plans: “Louis, I’ve been to Spain a few times and would be happy to offer a few recommendations if you’d like...”

Let's pause here to discuss another psychological concept, that of homophily—Greek for “love of sameness.” Homophily is similar to the idea of “birds of a feather flock together.” It's the tendency of those with shared interests or values to form connections with one another. Even though at first glance I had very little in common with those executives, I was able to find areas of overlap. Through my efforts, they started seeing me as more like them than unlike them and categorizing me as a part of the group, rather than being separate from it. This skill has been hugely helpful in my career in teaching, consulting, and working in the field, allowing me to build a strong relational foundation with others. It makes my work more effective and influential and has a greater impact.

It also helps me feel more connected to those I'm working with, making our interactions more satisfying for me.

After a few months of building connections with the executives, I tried chiming in during the actual meeting when I had a valuable piece of information to contribute. I started out small and only chimed in occasionally. And because I had become a part of the group, it was taken as a natural contribution that was given some consideration. The cycle continued to evolve: I continued to deepen connections, and my contributions became increasingly respected and ultimately sought after.

JOHN: I can attest that leveraging homophily works, because I've seen it work on me. Years back, a student enjoyed my negotiation class and wanted to be a teaching assistant (not surprising because TAs at MIT get paid very well). Every year I invite students to my house for a barbecue. Some bring flowers or a bottle of wine. But Rachel brought an apple pie. Not only did she use reciprocity but by bringing homemade food she'd made, she took advantage of homophily. ("We're so similar! Both of us like to make food for people!") Then, she casually mentioned, "I saw you left your fire department job shirt on the peg by the door. That made me feel right at home. My whole family is in the volunteer fire department back home. I'm the only one who didn't join, but I was basically raised in the firehouse when my parents went on calls." Which is a kind of homophily at one remove. She isn't exactly like me, but her family is, so that makes her almost like family to me. Rachel didn't just learn the theory; she put it into practice. She got the TA job and now teaches negotiation at Sloan and at MIT's School of Engineering.

Another example was even more impressive, because the student didn't have the easy fire department connection. There was a brilliant student I wanted to hire as a TA. My problem was, so did several other professors, and she had already agreed to one TA job. So I asked her, "Do you think you have the time and energy to do both?" She asked more questions about the time commitment, thought it over, and said, "Yes, I think I can do that."

She was one of three TAs, and we divided up the papers the students wrote the first week four ways. I could see everyone's grading work on a shared

spreadsheet, and she was the first one done. Next time I saw her I said, “Great job! I was worried you took on too much, but when you say you are going to do something, you keep your word.” She replied, “I wish my father had heard you say that. He would be so proud of me. He raised me to always keep my word.”

She made me think that her father and I were kindred spirits, with similar beliefs. Well, if her dad is almost like my brother, then that makes her almost like my niece. And that makes me feel a kind of nepotistic urge to help her out. She used homophily on me despite being completely different in race, sex, religion, and age. And now we’re writing a book together. When Attia says anyone can use homophily on anyone, she knows what she’s talking about.

ATTIA: I didn’t even do that on purpose, but I did notice afterward what an effect it had on you!

The more you can be seen as “one of the group” by first finding out what people care about and then identifying areas of overlap, the more influence you will have. That leads us to our next exercise—figuring out and remembering things about them.

EXERCISE 3

Create a Mental Picture

Create a mental image of the person you've just met by asking questions that give you more context about who they are.

STEP 1: Go through the exercise of getting the person's name, as is described earlier.

STEP 2: Create a mental picture. Once you get their name, begin drafting your mental drawing. Put their face in the middle of the page or picture you are drawing, with their name in big letters above.

STEP 3: Ask questions to get some unique piece of information about them to add to your mental picture. As you talk with them, look for something unique to add to your drawing. What did they do over the weekend—kiteboarding? Sailing? Tennis? Hosting friends for dinner? Miniature Civil War battle replicas? As you get more information, add it next to the picture you've drawn. Add to the drawing, to reinforce your image of them and their name. This works even better when it's something you have in common with them, because of the power of homophily.

TIP: *Try to pick out unique things for your mental picture. For example, Joe with a dog may not be descriptive or unique enough to help you recall the image in the future. But Joe holding an award-winning poodle that won Best of Breed or Best of Show should work better.*

What generally helps solidify the name and image for you? Asking questions and picking items that resonate or overlap with your own life may be helpful to reinforce the connection. For example, if you both love dogs or sailing or cooking or knitting, that may help you build a stronger connection. Your goal is to create a story in your mind about the person's name, and home in on specific details so that your brain can create a picture (or links) and associate it with the person's face. The more you engage with the person's name and the facts that you know about them, the easier it will be to remember them in the future. You've forced your brain to create links to the person's name rather than letting it slip through the cracks, by adding as much detail as possible.

Put It All Together

A PERSONAL TOUCH NOT ONLY makes the other person feel valued but also serves as a bridge to establish warmer feelings between the two of you. Think of these small acts as relationship chips that you can later cash in when you want to establish a deeper relationship down the road. Similar to our theory in chapter 1, using someone's name and remembering them is a free gesture that most people want to reciprocate. Our last exercise focuses on how to use all these skills together to make someone more likely to agree to an ask that you have.

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EXERCISE 4

Make the Other Person More Receptive to an Ask

Seek out someone new at a dinner or cocktail party who you don't have a great deal in common with yet. It may be someone you have seen on occasion but haven't attempted to interact with. Ideally, it is also someone you know you'll run into again in the coming months.

STEP 1: Quickly recap exercises 1–3: Start a conversation, learn their name, and pick a couple of things about them to draw a mental image of who they are, with their name emblazoned in big caps across the top of your mental drawing. Next, make a concentrated effort to focus on that drawing and their name, committing it to memory. After the interaction, add their name to a list in your phone describing the group they are associated with.

STEP 2: The next time you see them, go up to them and say hello, using their name: “Hey Paolo! How’s the garden you’ve been working on coming along?” Pay attention to the way the conversation unfolds. Mention something you’re passionate about to them. Continue these kinds of small social interactions when you see them again.

TIP: *If they look panicked and you think they may have forgotten your name (which is likely), remind them when you first approach—“Hi, Susan, it’s Beth Jackson. We met at the Bridgewaters’ holiday party a few months ago.” They will appreciate it and feel much more comfortable in the conversation—and more interested in engaging with you.*

STEP 3: After a few such interactions, follow up to see if they would be willing to participate in something that requires giving time, money, or some other action: Are they amenable? Will they donate to your cause? Will they volunteer next Sunday for the mentorship program you’re hosting? Are they interested in joining your yoga class or voting for you in an upcoming election?

Again, be aware of how many times you use the other person’s name in your interactions. In a brief conversation, once or twice is a good goal. Attempting more than that may start to feel overdone. If your conversation goes on for several minutes, find a way to use their name again.

Observe the other person’s reaction when you use their name the next time you meet them. Do they engage with you more easily, with more warmth and possibly a smile? Do they break off a conversation with someone else to come over to speak with you?

Next, gauge their involvement as you talk about something of interest to you. Do they seem interested in what you have to say? Do they ask related questions of you?

In subsequent interactions, do your conversations become more personal, exhibiting more warmth? Does the other person seem more interested in you? If you bring up a specific concern or make an ask of them, do they seem amenable to helping you?

You'll know you have succeeded when you enter a room and the other person makes an effort to engage with you in some way. Try the same approach with someone else you would like to be closer to.

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ATTIA: In 2023, the apple market collapsed, and Isaiah and I needed to sell thousands of apples to cover our picking costs. We were able to reach out to our u-pick email subscriber list to share a one-for-one donation campaign with them—for every bushel a subscriber purchased, we would donate an equal amount to the food drive to feed the hungry. Because we greeted our u-pick customers and knew them as friends and members of our community, our appeal to them turned out to be incredibly effective—even more than we had anticipated. We hit our goal and sold the necessary bushels of apples within the first month, drawing on the goodwill we had built up over several years to promote our campaign.

JOHN: That's a good one, but I think I can top it. Our second son, Pete, had started college online during the COVID pandemic, and didn't like it much. So he took the next semester off, drove out to Colorado, and got a job at a ski resort. But then he owed that missing semester, and so he graduated in January rather than in May. And that's not when companies in his industry were hiring. So he moved back in with his parents. Which was fine with me, because now I didn't have to take the trash to the dump or mow the lawn.

One day he was at the dump and saw a woman unloading the garbage out of her minivan, and he noticed she had a license plate frame from Occidental College, which is where he went. He walked over, said "Io Triumphe" (the school motto), and started helping her unload the bags of trash.

"Oh my gosh, thank you. You went to Oxy?"

"Yeah, just graduated in January. My name's Peter."

"Jessica. I was class of 2015. What did you study?"

"Pleasure to meet you, Jessica. I studied geology."

"Wow! I was a geo major! You must know..." What followed was an extended discussion of the geology professors—who had retired, who was still teaching. "Where are you working?"

"I'm doing some construction but looking for a geology job. I have an informational interview next week for a job in Wyoming. They told me it

probably won't lead to anything, but I'm trying to learn more about the companies in the field."

"Which company are you interviewing with?"

"ERM Consulting."

"That's where I work! I just heard that someone is leaving from the Hartford office. Who are you talking with? I'm going to call them."

By the end of the week Pete had leapfrogged two steps in the company hiring process. A week after that he had a full-time job with a surprisingly good starting salary. All from saying hi to a stranger at the dump. (When Pete tells this story, he calls it the "Transfer Station.")

Dear reader, you might be thinking, *That doesn't prove anything; that's just incredibly lucky*. It was very lucky. But the more chances you give yourself, the more often you are going to get lucky. Think about it like a hand of poker. If you are dealt a random hand in Texas Hold 'em, there's about a three-fifths chance you will get a pair. That's like saying hi to someone, learning their name, and now you have a pleasant little chat with the barista every time you pick up your coffee. About once every forty-six times you will get three of a kind. That's like learning that you and the person you just met both have daughters on the high school cross-country team and, actually, it would make sense to carpool. About once every seven hundred times you get a full house (a hand with three of a kind and a pair). And that's like Pete finding a great job at the dump. Sure, it doesn't happen very often, but if you say hi to a lot of people over the course of many months, and learn a little bit about them, something like that is likely to happen. And Pete says hi to a lot of people. It was almost inevitable that something good would come from that.

It's hard to overstate how important this concept is. There was a guy a year ahead of me in law school. We had a couple of classes together. One day he pulled at my sleeve on the way out and said, "That was a really great comment you made; it made me see the issue we were discussing differently." He was the president of the law review, so he was a big deal on campus. I felt ten feet tall. He made me feel I was special. Later I saw him make similar comments to other students. He took every opportunity to meet others on campus and make connections. And it seemed to have worked for him down the line. His name

was Barack Obama. I think it's fair to say he knows something about building relationships, and that contributed to his success.

Takeaways

OVER TIME, AS THE SKILLS you develop to remember people's names become habitual and ingrained, remembering the names of the people you meet will become second nature. Your brain will automatically start the process of creating a mental picture and categorizing the group the other person best fits in. From there, you can start building on that initial connection to establish deeper bonds. You may find it changes the nature of your relationship. Remember, using the other person's name is free. Nonetheless, the power of using their name can have very real and tangible benefits for you. It is the perfect follow-up to the concept of reciprocity discussed in chapter 1, making the other person more amenable to responding to you.

What is the next question in a negotiation? Knowing what you want, so that you can make the right ask. Which leads us to chapter 4, understanding our interests in a negotiation.

CHAPTER 4

Decide What You Want

NOW THAT WE HAVE ESTABLISHED how to build a positive relationship with your negotiation counterpart, the next step is figuring out what's at stake in the negotiation. This means understanding each party's underlying motivations or interests. Rather than focusing on what someone says they want, which we call "positions," we focus on *why* they want that, which we think of as their interests.

Let's say that outside, it's a crisp fall evening with a light breeze. You want the window to your bedroom open at night, to enjoy the autumn air; however, your wife wants it closed. These are your positions. Now let's think about your interests, or why you want those things. Your interest is enjoying the fresh fall air while listening to the gentle hum of the crickets. Your wife's interest is to be warm and cozy as she reads before falling asleep. How can you reconcile those two positions? Before you or your wife gets up to close the window, you could offer her a heavy flannel blanket, so that she remains warm despite the cool outside air. Our most powerful interests revolve around basic human needs: security, subsistence, a sense of belonging, recognition, and control over one's life. These needs are easy to overlook. Too often we assume that most of our interests revolve around things like money or power or control.

Negotiation theory largely assumes that we know what our interests are. But this isn't always true. That makes getting what we want challenging, because we haven't defined or clearly identified the "what." Most of us have had some variation of the conversation below:

YOU: Where do you want to go for dinner?

HIM: I don't know, anything is fine.

YOU: OK, let's go to the Mexican place on Broadway.

HIM: We just went there last week. We should try someplace new.

YOU: Fine, let's do Chinese. There's a new place—

HIM: I don't feel like Chinese tonight. It's too spicy. Let's get something lighter.

YOU:...

Sure, this is a trivial example. But it's the sort of thing we run into all the time, isn't it? And the same dynamic applies to more serious problems, as well. We often don't know what we want, and, what's more, we often don't know that we don't know. We discover it when we have to make a decision and find it harder than we thought it would be.

We Don't Know What Would Make Us Happy

"WHAT DO YOU WANT?" is a question we pose to clients asking for negotiation advice. A shockingly high percentage don't have an answer.

ATTIA: One such person, Dolores, recently came to me for coaching about a situation at work. Dolores was a professional in her late thirties living in Silicon Valley, working for a large technology company. She had worked at her firm in business development for several years and had just landed the company's biggest client yet. She had taken full initiative on the project. She had reached out to several executives working at the prospective client to build relationships and pitch her company. She found the appropriate stakeholders and gotten everyone on board. It took months of work, and it made her company tons of money, as well as created great publicity around their offerings. But at the end of the project, she was miserable—so miserable that she was thinking about quitting.

What had gone wrong? Dolores told me that every month the CEO of her firm recognized the biggest contributors at an all-staff meeting. For three months in a row, he had credited the marketing department for the client she had worked so hard to land. Neither she nor her team in business development had been recognized once, and she was so upset about it that she was on the verge of leaving the company. She asked me how she should approach her boss about the

injustice. So I asked her, “What do you want from the conversation?” She fell silent. I prompted: “Do you want public recognition? A promotion?” Finally, she responded with a soft, somewhat abject, “I don’t know.”

What makes it even harder to determine what we want out of a negotiation is that what we want—our interests—are complex and constantly changing. Of course, we have our rational, financial motives. But we also have emotional needs that want to be recognized. And when they aren’t, we need to look for ways to meet them that don’t lead us into making bad decisions. Part of Dolores wanted to march into her boss’s office and vent her anger and frustration over the slight by the CEO. But she didn’t know what outcome she wanted from such a confrontation. Preserving or improving a relationship is often key in terms of getting what you want. If Dolores *had* blown up on her boss, it likely would have damaged that relationship forever and perhaps even ended her career at the firm—and not by her choice.

Dolores needed a resolution to her hurt feelings and frustration, but I couldn’t give her specific advice on what to say until she figured out what she actually wanted from the exchange. So I gave her a homework assignment: to think through what she wanted from a conversation with her boss (i.e., what her interests were) before taking action. I asked, “What would help soothe your frustration? What action do you want your boss to take and why?”

In this chapter we want to show you how to go about doing that for yourself. We will also provide some ideas on how to share your answers regarding what you want in a way that will benefit you. If you are like most people, you want a beacon that guides you to where you want to go. But like anything worth doing, it’s going to take some work.

It’s Hard to Nail Down Interests

MUCH OF THE TIME, people lack awareness of their own interests. We’ll talk a little about why that is, because it will inform our approach to fixing it.

We React Instead of Planning.

Animals respond to stimuli. They eat when they get hungry and go to sleep when they get tired. For the most part, that works out well. Humans are animals too, which explains our automatic reactions as part of our behavior. But we're also more than that. Unlike other creatures, humans can imagine different possible futures. We can pick one and try to make it come true. We *can* do this—but too often we don't.

Ask yourself how much of your day you spend planning for the future, as opposed to going through the usual daily motions. This is especially true when we're with others. We react to something someone says or does. We usually aren't very thoughtful about what we are trying to accomplish. Test our claim for yourself. The next time you see a friend do something foolish or unwise or risky, ask them, "Why did you do that?" The answer most people give focuses on the past. "Well, because she said such and such." In other words, it's reactive. People who are thinking or acting more proactively focus on what they want to see happen in the future, whether during that conversation or later that night or over time. "Because I was trying to get her to..." Check your responses to the way you interact in your environment. Most of us, when we realize how often we act reactively instead of proactively, are chagrined.

JOHN: When I was working as a litigator in New York, one of our clients was a real estate investment firm. One of their properties, an office building, went bankrupt, and they gave it back to the bank that held the mortgage. The bank kept the property manager in place. The manager hadn't paid the custodial firm that cleaned the place while it was in bankruptcy. The custodial firm didn't want to sue the manager who was still employing them, so they sued my client. My boss, a senior partner, asked me how it was going. "They're supposed to sue the manager, not us. And they know that. It's outrageous. I'm going to kick the hell out of them at trial."

He looked unimpressed. "Uh-huh. How much is it going to cost to kick the hell out of them?" "I don't know, maybe twenty thousand dollars?" "And how much money does our operating subsidiary have in its account?" I checked the file. "Um, a little over two thousand dollars." "Why don't you just offer them

that? Tell them that's all there is. And send a copy of the bank statement.” They took it. My boss was used to having young lawyers who got mad instead of doing the math.

Being outraged by unfairness isn't a bad quality. But you must be careful to double check with your rational mind to make sure the result will actually help. Especially if you are playing with someone else's money.

Goals Are Not Enough.

When we do take the time to think about what we want to have happen in the future, our most common approach is to set goals for ourselves. But having a clear picture of why we want to achieve that goal is even better. Understanding our own interests is important, because that allows us freedom to find different ways to meet those interests or goals.

ATTIA: Let's revisit Dolores. At first, Dolores told me her only goal was to vent her frustration to her boss and then announce that she was quitting. While that might have felt good at the moment, exacting a measure of revenge, the result would have left her worse off: without a job, severance, unemployment compensation, or a referral to help her get her next job. Instead, we asked her to think about her interests. What would be best for her, in the long term? A couple of weeks later I spoke with her again. Here's what she had come up with:

Interest 1	To be seen and recognized as the employee who brought the client in
Interest 2	To receive a financial bonus for the increased revenue she was able to drive to the company
Interest 3	To feel that she is being treated fairly

Looking over the list, it became clear to her that responding in anger (i.e., being reactive) would not fulfill her interests. Nor would quitting the company. Instead, after talking through her situation, she realized that she needed to have a calm, collected conversation with her boss and ask for her interests to be satisfied. Asking for fair recognition of her accomplishments—which were impressive—would serve her better (i.e., she would be acting proactively).

In a negotiation, try to understand your interests before choosing a path or course of action. You may feel upset, or impatient, eager to express your feelings and state what you want, and therefore be inclined to skip this step. Capturing your interests will result in identifying far more ways to meet those interests. You may even be able to get *more* of what you want than you initially considered. In the end, that is what Dolores did, as a result of the coaching. After identifying her interests, she made an appointment to talk to her boss and had a calm conversation with him about her role in bringing in the new client. And the next month, not only did the CEO recognize her in front of the team but her boss gave her the promotion she so richly deserved. By standing up for her interests, she was ultimately treated fairly. Her hurt feelings vanished, as did her thoughts of leaving the company. And her company was able to retain a talented employee who was even more committed and engaged.

We Figure It Out Too Late.

Knowing what your interests are is easier said than done. Let's say you just graduated from college and are looking for your first job. Obviously, there are the standard interests that most graduates consider: money, making a difference, living in an interesting place, doing interesting work. You might not consider, at first, how important a short commute is to your everyday happiness. Or whether you really have a career path at the company. Or how important it is to you to work for a boss who cares about your training and advancement. We don't know what we don't know.

We Don't Weigh Conflicting Desires.

We almost always have more than one interest at play. Any solution might satisfy more of one interest and less of another—which can make it hard to choose. To go back to our recent college grad: Maybe she knows that she wants a job that pays well and gives her a certain amount of responsibility. But she knows in her heart of hearts that she wants a job that leaves her enough free time to see her friends and enjoy her new independence. OK, that's understandable enough. But how much does each of those interests matter to her? If she has to compromise, what matters more to her? Should she take the job in an

investment bank with a big salary—and a well-defined career path—that requires an extraordinary time commitment, working many nights and weekends? Or should she take the job as a financial analyst at a manufacturing company with a lesser salary but regular nine-to-five hours? If she was excited about the prospect of working in Boston or New York City, will she be satisfied with a job in Akron or Buffalo? She needs to weigh the relative importance of each of her interests. How much money is worth giving up some of her free time with her friends?

Without a good inventory of your interests, it's hard to make smart choices. But it also deprives you of one of the most valuable moves: telling the people who care about you how to make you happy.

You Can't Tell Them What You Want If You Don't Know

IN A NEGOTIATION, WHETHER WITH an airline representative or a team of bankers in a merger and acquisition, you will be wasting your time if you don't know what you want. Let's say your boss thinks you're a hard worker and a good employee and wants to keep you. So she offers you a promotion and a company car—but what you really wanted all along was to switch projects or switch departments. There are people in the world who wish you well and would like to please you. But when you don't know what you want, you risk squandering their goodwill. And they feel like they can't do anything to make you happy. So they quit trying.

It may seem surprising, but sometimes others know our desires better than we know them ourselves.

JOHN: When I was in law school, I lived in a house with four other guys. One of them, Rob, had a cultivated eye for the ladies. One day in antitrust class, he whispered to me, "Check out that cute girl in the back row." I pretended to get a pen out of my briefcase behind me and stole a glance. The young lady in question was cute enough but had a grumpy expression. Later I learned that she rode her bike to school that rainy New England November and on top of that, the ceiling always dripped over her assigned seat. She looked a bit like a miserable drowned rat. "She's all yours, buddy," I said.

I ran into her again as a fellow teaching assistant for Roger Fisher's negotiation class. Fisher and his colleague Bruce Patton did the lectures, and then the class divided into six sections, with two TAs each to conduct case simulations and other exercises. After a few days of training, Bruce had us all write a memo about who we thought would make a good partner, and then he tried to give everyone their top choice. I thought, *Here's my chance to help Rob out*, so I made her my first choice, and of course she picked me.

I told Rob that she was going to be working with me. "I'll have her come over here tomorrow to prep for the next day's class, you come in to say hello, and I'll suddenly need to go take care of something and you can use your devastating charisma on her. Who's your buddy? Come on, who's your buddy?"

The next day, right before she was scheduled to come over, Rob came into my room. He said, "You aren't setting me up with this girl; you like her too much. You want her for yourself." I was offended. "Rob, what are you talking about? How can you impugn my commitment to being your wingman? Look at all I'm doing!" Rob said, "Yeah, that's what I mean. Look what you're doing. I've lived with you for two years, and you've never vacuumed your room. And here you are with a vacuum in your hand."

I was shocked. And I suddenly realized that he was right. This girl *was* perfect for me. Three kids and thirty years later, she still is. Rob was totally fine about it.

The point is, we often don't actually know our own desires. It can be hard to figure them out. But not impossible. What follows are concrete steps to get to know your interests better.

Take an Inventory

TOO OFTEN, WE FOCUS ON only a few of the things we want. Our attention goes toward whatever seems most important or whatever is lacking from our lives in that moment. Before you enter into a complicated negotiation or make a major decision in your life or career, take inventory of all the things you want, so that you can fully factor them into your decision-making.

ATTIA: Shortly after I met Isaiah in 2018, I realized I had a major problem. I wanted to live in a big city, and his cherry trees in Traverse City were immovable. After we dated for a time, I realized I was falling in love with him; we had a connection that surpassed anything I'd ever experienced before. But his location was a problem for me.

Traverse City is a beautiful tourist town of roughly fifteen thousand full-time residents on the shores of Lake Michigan. Most of the tourists and summer population leaves during the winter—few want to face the long nights and epic snowstorms of northern Michigan. But Isaiah, as a sixth-generation farmer, was rooted to the spot, working his orchards. Since he couldn't move, he asked me to consider moving closer to him. He had an old farmhouse on an orchard he had bought, which he'd fixed up. He offered it to me so I could have my own space while we dated and while I decided whether I wanted to stay longer.

Traverse City is a long way from any major airport. I had recently graduated from MIT with my master's and launched my own consulting business, and most of my clients were based in major cities. I found myself traveling a lot. I visited Isaiah through the fall and winter, but by spring I knew something in our relationship had to change. The thought of moving to Traverse City gave me a lot of trepidation. But the thought of not being with Isaiah made my heart ache.

As I thought about our future together, I had to answer the hardest question: *What do I want?* My first step was to sit down and write out a list.

My Interests List

Be near Isaiah: Get to know him more deeply, and consider building a life together.

Career: Establish a successful consulting practice. This probably means being easily accessible to my clients, many of whom are in major metropolitan areas.

Be close to nature: Easy access to my favorite outdoor activities: road biking and swimming.

Community: Living among people who share my values and having an opportunity to shape the community I live in.

Be near family: My family lives in the Detroit area.

Travel: For work and pleasure. I love traveling, and it is important to my consulting work.

Diversity: Be around people of different backgrounds and varied interests.

Culture: The opportunity to engage with a broad range of art, music, architecture, intellectual pursuits, and food.

Education: Good schools to choose from for my children, in the future, with opportunities for intellectual growth and achievement.

When you create a list like this, don't worry about getting it right the first time. You'll have a chance to add things, delete things, and put them in a different order later. Allow your thoughts to flow freely; jot down whatever comes to mind.

Even in a similar situation, your list would be different. You might think, *I would never move anywhere for a romantic partner*. Or you might think the opposite: *I would never let anything stand in the way of true love*. Your list is about you. The fact that we all want different things allows us more opportunity to be happy. But remember, what you *really* want may be different from what you think you *should* want. Separate the "shoulds" from the things that you actually want. Sometimes what we think we want is an attempt to live out our parents' dreams or the dreams of someone else we're close to, rather than reflecting what we genuinely want for ourselves. Give yourself the freedom to be honest about what actually makes you happy. Keep in mind that some of those things might be contradictory. You might want to lose ten pounds while simultaneously wanting to eat an unlimited amount of pizza and ice cream. Both desires are part of who you are; acknowledging both aspects of yourself may help you to make better choices in the end.

That's what we want you to do now in the first exercise of the chapter. Since you probably aren't dating a romantic cherry farmer in rural Michigan, focus on a problem you're facing. Make an inventory of the things that matter to you about that decision. Don't worry too much about picking the right problem. The first one that comes to mind is fine for the purposes of this exercise. Ultimately, we want you to make this a habit and do it consistently with every major decision you have to make.

EXERCISE 1

Make a List of Your Interests

Think of a situation in which:

1. You care enough about the relationship to bother investing in it; and
2. The other person cares enough about you to want to make you happy; and
3. There is some sort of conflict or disagreement.

Maybe your roommate is driving you nuts with the way he leaves the kitchen a mess. Or your mom won't stop telling you how to live your life. Perhaps you want your boss to give you more responsibility.

Figure out all your wants and desires surrounding the situation and make a list of what's important to you.

Start with the practical things. Those are the easiest to understand. Then ask yourself some questions, such as: Why would it be better if the situation was different? Would that help me feel better, or make my life easier?

Look at what things are on the top of your list versus the bottom. This should offer a hint at their relative importance to you.

If you are having trouble making your list, start with one particular situation or goal.

What is the first thing you thought of that you would like your counterpart to agree to? Sometimes it is easier to come up with an image or a vision of a better situation than it is to make a bullet point list of the things we want. But then, after imagining your ideal scenario, you must ask yourself: What makes it ideal? What are all the ways in which that situation would be different from the current one? Those differences are good initial nominees for your underlying interests.

Most of us don't think deeply about what we want until we are faced with a choice that forces the issue. With interests, the key is to be specific about what they are. Generalized interests are hard to meet because everyone has a different interpretation of what they mean. Maybe they are really positions, instead, and you can find something deeper lying under them. You ask your boss for a raise. But what are you going to do with the money? Buy a nicer car? Maybe the company could lease one for less than it would cost you to buy. Afford playoff tickets to the big game? Maybe the company has a box for entertaining clients. There might be a cheaper way to get what you want.

Or maybe you will realize you don't even want what you thought you did. A friend of ours, Bill Ho, studied software engineering at Stanford under Don Knuth, one of the founders of the field. Knuth's massive *Art of Computer Programming* was the standard textbook. Knuth made a standing offer to his students: If you find a mistake or can offer an improvement to the book, I will pay you a dollar. Bill made a suggestion, and to his delight, Knuth whipped out his checkbook and wrote him a check. In triumph, Bill went to the bank to cash it. While he was standing in line, he asked himself, "What am I going to do with this money?" He couldn't come up with an answer. He realized his true interest wasn't the money but rather the appreciation from a legendary titan in the field, and the check was proof of that appreciation. So instead of depositing the check, he walked out of the bank and went to buy a nice frame to put his check in so that he could hang it on the wall.

ATTIA: When I wrote down my interests in terms of my relationship with Isaiah, I expressed my desire to be outside more, enjoying nature. But I realized “being out in nature” could be a kind of mental shorthand for a whole host of interests—from a more relaxed, less hectic lifestyle to doing more bike riding and hiking, to being immersed daily in trees, foliage, streams, lakes, and wildlife (what the Japanese call “forest bathing”).

The purpose of the list is to act as a base for thinking through the nature of your interests and using those to problem solve. What are you willing to give up to enjoy being closer to nature? Could city parks and weekend trips to the countryside satisfy that itch? Be specific about what works best for you as you think through what matters most.

Hold on to this list, because we are going to use it in the next set of exercises.

Find Out What You’re Missing

ATTIA: It’s hard to convey how novel a decision it was for me to consider moving to Traverse City. A big part of my trepidation was the fact that I would be part of a very small minority. Would I be treated differently, or more to the point, would I be treated poorly? Would I face discrimination and harassment when I was alone, without my large, tall, Caucasian farmer by my side? I had always specifically chosen to live in cities with diverse and liberal leanings like San Francisco and Cambridge, Massachusetts.

I had been very focused on my education, my career, and in getting ahead professionally. What sacrifices would I be making with my career by moving to a rural part of the country? I had finally found work that I loved, and building my fledgling consulting practice from Traverse City seemed like a recipe for disaster with few networking opportunities and fewer direct flights.

And what about friends? While I was completely smitten with Isaiah, I would need a community too. Would there be like-minded professionals I could befriend?

Thinking even further into the future, was this a reasonable place to raise half-Brown children? Standing up to discrimination as an adult is one thing; the

cruelty and bullying that children can be exposed to is far worse.

Then again, I had never met a guy I liked this much before. My parents are very family oriented and have a strong, loving partnership, which is what I wanted in a long-term partner. As I spent more time with Isaiah, the more I saw that he had those qualities and a similar vision of family. He showcased care for the community, tempered my sometimes-anxious energy, and kept me grounded. He was steady, funny, smart, and kind. I had never met anyone even close to being as good a fit for me and who brought out the best in me.

I was starting to feel a chaotic sense of anxiety build within me as the conflicting interests warred in my brain. The sacrifices felt too high on both sides, and I didn't know what to do.

How should I approach figuring out what else mattered most to me in my life? And then I remembered, I didn't have to make this decision in a silo. One way to expand my thinking was by talking to people I trusted who had made similar decisions. And that's what I did. Here are some of the things I learned:

- I talked to Isaiah's sister, who had just finished grad school and was moving to Chicago, about her experiences growing up in Traverse City.
- I spoke with Isaiah's mom, who had raised her two children in Traverse City, to get a fuller sense of what that was like for her and for her family.
- I talked to my grad school mentor (John!), who understood my ambitions and dreams and was deeply familiar with my field.
- I asked my mom and sister for their thoughts. In some ways they knew me better than I knew myself and had been my confidantes in my romantic and career struggles.

Take this next step yourself. Use your Interests List as a starting point to grapple with what you really want most. Invite other trusted colleagues, friends, family, and confidants to share their experiences and add to your understanding of the specific opportunities, challenges, and issues. Ask them, What do you wish you had known before you took this job? What do you wish you had thought about that you didn't at the time? Consider showing them your Interests List. Ask them if they see anything that is missing from it.

When they talk about their own interests and experiences personally and professionally, see if any strike a chord with you. Are there some that aren't currently on your list?

Identify the Passions That Drive You

WE OFTEN THINK OF OUR interests in purely rational and logical terms: salary or money, health, job security, advancement, our satisfaction with our work and colleagues and bosses. But think back to chapter 2. Many of our interests center around other qualities: respect, friendship, a sense of accomplishment or community, or doing good in the world. Keep in mind that these interests often have a deep emotional claim on us, reflecting the values underpinning them. Often, meeting our emotional interests or needs is what makes us feel complete and satisfied.

Being aware of your emotions will keep you from being surprised or ruled unconsciously by them.

Research shows that being aware of your emotions makes you a better decision-maker. One study followed a group of investors who wrote down their feelings while making investment decisions. The study found that the individuals who were able to identify their feelings while making a decision ended up with higher-performing investments. When you are able to identify your feelings, you can stop yourself from being biased by them.

ATTIA: My Interests List includes both rational and emotional interests. My emotional interests were especially strong. I had been dating for years without finding someone I was deeply attracted to. My friends told me I was too picky, but I wasn't willing to settle. Isaiah was everything I wanted most in a partner: someone who was generous, kind, family oriented, loving, smart, ambitious, and hilarious.

I had strong emotions pushing me the other way too. I was afraid of being discriminated against. I was anxious at the thought of handcuffing my career. I was sad at the thought of leaving my friends and a supportive community.

It's hard to make a smart, informed, rational choice when confronted with a maelstrom of conflicting feelings. The next step is to go back to your Interests List and associate feelings with all the interests on your list. Again, we are all, consciously or unconsciously, powerfully affected by our feelings, as we mentioned in chapter 2. The clearest way forward is to label those emotions, so you can pick each one up and examine it. I went over my list to see if I could catalog all the different feelings I had around the idea of moving from Boston to Traverse City. *Is this something I could manage?* I asked myself. Recognize the complex feelings you have about the choices you face.

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EXERCISE 2

Link Your Interests and Your Feelings Around Those Interests

Start with the Interests List you made in the first exercise. Is there a decision you must make that involves several of your key interests? One where you have to make a choice between competing interests?

Go through your list of interests and try to associate each of them with an emotion.

Some interests are all about feelings. You might want your parents' approval over a career choice, romantic interest, or the region of the country in which you want to live. Or more generally, you might wish you had more friends, or want to stop feeling lonely, sad, anxious, or depressed. Other interests may feel purely material—moving into a bigger, more expensive apartment or buying your first house. But we can assure you, you have emotions attached to those interests too.

Sure, making more money or having more investments or savings is good. But ask yourself, how would earning a bigger salary make you *feel*? How much would you be willing to sacrifice to achieve that higher salary? Would you feel an added sense of accomplishment and see it as a marker of your progress in your career? Would you feel calmer and more relaxed, because the daily pressures of paying your bills would ease? Would you feel less pressure now that you can finally pay off your student debt? Or would you feel anxious because of the increased level of responsibility you would have at work, or running your business? How would not getting that salary increase or promotion make you feel?

Most of all, you want to understand *why* you feel the way you do. Where are those feelings coming from? With each interest on your list, you might decide to confirm that interest—or realize that it isn't that relevant to the specific decision you have to make.

Look for other ways to satisfy those feelings you have around your interests. If what you really want is more security, and that is pushing you to stay in your boring current job rather than competing for one that is more exciting and less predictable, try to find other things that make you feel safe and relaxed. Would saving the cost of a year's worth of living expenses give you the peace of mind you need? Ask yourself what else might give you the sense of security.

Decide What's Most Important

OK, SO NOW WE HAVE a big, overwhelming, messy list of interests and emotions to sort through. Understandably, you may be feeling more confused than when you started. But hang in there. Now that we have the information we need to make a decision, we are going to filter through your interests and emotions and organize and rank them. Some of your emotional interests may not serve you well in your current decision, and those are the ones you want to filter out. For example, you may be hesitating over taking a new job because you fear failure. Recognizing when an emotional interest is unhelpful in making a decision gives you more control. You may be able to find ways to push past the fear and take the plunge. Or you may find a way to ameliorate the potential risks that you see.

JOHN: While I was teaching at Harvard Law, I thought one of us should get a PhD so we could prove our theories with modern research design and statistical analysis. So that is what I did. The coursework was no problem, but I had a hard time getting my dissertation approved. My advisors valued abstract, theoretical work, while I wanted to do something practical that would help real people. And it got a lot less attractive when I realized that going for a tenure-track job meant moving my wife and three kids across the country to chase entry-level positions at other universities. So I quit the program.

But now I had a negotiation problem. My wife wanted to know what I was going to do with myself since I was no longer a full-time student. She suggested I could go back to a law firm. Or get a job in the legal department of a corporation. Some of my interests were obvious: earning enough money to live on, to do work I enjoyed, to work at a job that other people respected, and to work toward Roger Fisher's mission of rescuing the world through negotiation. But by this time, my wife's consulting firm was bringing in a lot of money. We didn't need more. What we really needed was someone at home to take care of the kids, at least while they were little.

I found a job teaching negotiation one day a week as an adjunct at MIT. That took care of some interests. And I could spend more time with the kids. But I

read some research that found that when a wife makes more money than her husband, the likelihood that they will get divorced skyrockets. I worried that could happen to us. Yet someone needed to go grocery shopping, pick up the kids from practice, and make dinner. It's all very good to say that we are so evolved we don't care about traditional gender roles, but it's not clear that deep inside our instincts agree with that enlightened stance. So I had a vague sense that I wanted something that would make me (and her) feel like I was contributing outside the household while also being the parent volunteer at the nursery school.

Then I saw the sign outside our little town's fire department: Volunteers Needed. And that appealed to me, being a volunteer fireman. I could be on call while the kids were in school, take care of them until my wife got home, then be back if needed for more adventures.

What is interesting is that I had driven past that sign for years. It wasn't until I really thought through my interests, even the deeper, hidden ones, that I was ready to realize what I wanted. At that point I was finally ready to spot the sign. I've been volunteering for eleven years now, and I love it. And my wife says she's very impressed with me. And I had time to start working on this book.

A lot of times our most important interests aren't simple or easy to recognize or quantify. And they may not always be logical either, because even if we rationally know something, we still have emotional interests to contend with.

Rank Your Interests.

As you can see from Attia's discussion about whether to move to Traverse City, we often want more than one thing. Sometimes we must choose between two or more alternatives. So our next task is to take our list of interests and rank them. What matters to us the most?

EXERCISE 3

Rank Your Interests

Use the list you have already compiled in the previous exercises. (If you prefer, you can create a new list of interests associated with a different decision.)

Order your interests so that the most important to you come first and the least important come last. Some of these may be harder to rank than others. It's fine to leave some interests as essentially tied. We don't need perfection in ranking our list of interests. Getting a general sense of what matters most to us is enough for the moment. We'll work toward more specificity in the next exercise.

If you find yourself stuck deciding which interest is more important to you, revisit the emotions you associated with the interests. Does that help you in ranking them? The order of your original list—before you had time to think more intently about your interests—may be helpful in ranking them. Sometimes that sort of unconscious ranking can hint at what's more important to you before you think (or overthink) about it.

Weight Your Interests.

Next, try weighting your interests. How important is each one to you? You may find that thinking this way will make your decision clearer. Or you may have some unarticulated interests, or interests that actually have more weight than you originally thought. Once we start putting weights on our interests, things are more complicated than we realized, and we need multiple drafts to successfully prioritize and reorder the list. Don't be afraid of reconsidering how much your interests mean to you.

Compare Two or More Options.

The whole point of assigning weights to your interests is to help make better choices. Score those options on how well they meet your goals and interests. Hopefully that will guide your thinking on which way to choose.

ATTIA: I had more context on my interests by asking others, but I couldn't arrange it all in my head. To organize everything, I listed my two options—move to Traverse City or stay in Boston—and scored each for how it fulfilled my interests. I started with one hundred points for each option, but you can use whatever scale you would like.

Interest	Move to TC	Stay in Boston
Be near Isaiah	35	0
Career	10	20
Be near family	0	0
Diversity	1	10
Education	2	15
Travel	2	10
Be close to nature	25	4
Culture	2	10
	77 / 100	69 / 100

First, you'll notice that the numbers don't add up to one hundred. The process is subjective—for me, no place is perfect, so I wasn't aiming to distribute all one hundred points. I was just trying to get a general sense of how important each of those interests was to me and see how my options lined up.

This process showed some holes in my thinking. I realized that Traverse City is a four-hour drive from my parents in Ann Arbor. Boston is a two-hour flight plus two hours of airport time. I decided that, time-wise, they canceled each other out. I also discovered that being with Isaiah was *far* more important to me than almost anything Boston had to offer. And that being close to nature was more important to me than the diversity of Boston or the ability to travel more easily. In other words, this process gave me an answer. Now I had a chance to sit with it and reflect on how my life would change if I moved to Traverse City to be with Isaiah.

If you calculate the answer to your decision, and you find yourself fighting against the conclusions it leads you to, you might need to revisit the list and think about your weighting numbers again. Something is holding you back. Are there any interests you haven't considered yet? In my case, it would lead me to realize that travel and living in a diverse city, where I would feel more comfortable, were less important than I initially considered. The numbers were telling me to move to Michigan and be with Isaiah. If that conclusion made me tense up, I would have had to sharpen my pencil and go over the numbers again. Instead, when I saw the answer, I smiled and relaxed. That's a good sign that my analysis—the rational side of my decision-making process—was in line with what my heart was whispering to me. In my case, I realized I had made the right move.

EXERCISE 4

Weight Your Interests

Take your Interests List and assign a weighted numeric value to the importance of each one. We suggest using a total of one hundred points and dividing that number among your interests. Then, compare each option (e.g., Traverse City vs. Boston) using your points valuations. Total up the points for your interests and see which wins out.

Once you have a “winner,” assess how you feel about the decision. If you’re not happy with the outcome, there is likely something missing from your list. Or perhaps you overvalued something that turns out to mean less to you than you thought. Perhaps you have a baby on the way, and the exercise makes it clear that stability and time play key roles in your decision at this time of your life. Pay attention to these feelings... you may need to repeat this process several times until it feels right. That’s normal—it’s a feature, not a bug. Some of us are hyper-rationalizers for whom emotional interests don’t register as quickly or easily. We encourage you not to make the mistake of skipping emotional interests. While it may be harder for some to identify them, emotional interests play an outsized role in our ultimate satisfaction. If you don’t pay attention to them, you may end up unhappy with your rational calculus because you have unmet emotional needs.

ATTIA: So what happened in the end? I did move to Traverse City and liked the town—and Isaiah, my farmer—even more than I thought I would. He proposed to me a year later, and I unreservedly said yes. While we were growing in our relationship, and I was adjusting to life in northern Michigan, I also joined in the writing of the book you have in your hand. Traverse City isn't perfect and still has many of the constraints from my list, but my major interests were starting to be fulfilled. I landed a major local client nine months after moving up and secured a lecturing position teaching negotiation and conflict resolution at the University of Michigan in Ann Arbor. I joined the board of a community cooperative to drive more culture and inclusion in the community. I convinced my parents to move to Traverse City in 2022. And Isaiah and I had our first child in March 2024, as I was working on revisions to the book. I needed all the help I could get! I'm now trying to convince my sister and her partner to move closer to us, another series of negotiations that revolve around understanding and meeting their interests, as we will discuss in chapter 5. Being clear on what you want in a negotiation lets you start making plans on how to get it.

Tell Them How to Make You Happy

KNOWING YOUR INTERESTS IS A big step forward in making smarter decisions with less self-doubt. This skill also sets the stage for the next step: telling someone else what those interests are.

Sharing your interests—telling others what you want and what you care about—lets them know how to make you happy or content or satisfied in a negotiation. But it can require vulnerability. That's why there is some controversy around this strategy, notably from negotiations guru Jim Camp. He agreed that knowing your own interests is tremendously important, but he feels that figuring out your counterpart's interests is the thing that gives you the most power and leverage in a negotiation. To him, knowledge is power, and his advice is to keep it all for yourself and not share your interests with the other party. He

writes, “Your job is to get information from the adversary by asking questions, not to provide information by answering questions.”

First, we agree that there is a danger here. But not all interests are risky to share. You can, however, get into trouble when:

- you have a very powerful interest driving your need to negotiate,
- you have no other way of meeting that interest, and
- you don’t have the type of relationship with your counterpart that would keep them from taking advantage of you.

For example, it wouldn’t be a good idea to go to a used car dealer—someone you have no prior relationship with—and say, “Oh my goodness, I’ve been looking for an El Camino like this my whole life. And my favorite color! I *have* to have it!” In this case, Camp is right—you shouldn’t share this information. The likelihood is that the used car salesman will use that information to his advantage in selling you the car you want at the highest possible price. In other words, sharing your interests requires that you use common sense. For example, if you are in a new romantic relationship, should you share that you are looking for something serious and not a casual fling? Of course. It keeps you—and your potential partner—from wasting your time. And it avoids unpleasant misunderstandings down the road.

Knowledge *is* power, depending on how it is used. Knowing your interests gives other people the power to make you happy too. And that might be a power you want them to have.

Sharing Interests Can Build a Better Relationship—and a Better Outcome

A COLLEAGUE OF OURS TEACHES negotiation at Harvard Law. She is extremely accomplished in the field, with more than thirty years of experience; she’s also written several successful books. As a result, she was invited by the Singapore Supreme Court to lecture on negotiation. The staff at the Supreme Court took care of the travel arrangements and booked her into the Weston—at the time, the tallest hotel in the world. When the hotel manager saw the name of the client

booking the room (the nation's Supreme Court!), they upgraded her to a luxury suite on the top floor. She checked in late at night, exhausted and jet-lagged and ready for a good night's sleep. But when she walked into the beautiful room with its dazzling views, she was horrified. She spent a miserable night tossing and turning. The next morning, she went to the desk clerk and asked to be given a different room. The poor clerk was flummoxed. "That will be difficult. We're very full. Is there a problem I can help you with?" Our colleague, still fatigued from a restless night, said, "Please stop wasting my time and move me now." He found a room and switched her.

Our colleague was clear in her request, and she backed it up forcefully. The desk clerk agreed and switched her room. So, was that a successful negotiation? Well, not entirely, as we'll see.

Can you guess what interest made her want to change rooms? It turns out that she suffers from acrophobia—fear of heights. In many cases, acrophobia isn't the fear that you might slip and fall—it's really about not trusting yourself. For people who suffer from this fear, our friend among them, it's about being worried that you will jump. The suite had a balcony at the top of the hotel with floor-to-ceiling glass walls. She couldn't sleep with the balcony right outside her windows. So she asked for another room, but without explaining her phobia, for fear of sounding ridiculous. However, the new room they found for her? It was on the smoking floor. What's worse, it was also relatively high up and featured a small balcony. She still couldn't sleep that night because of her phobia, and now she had asthma too.

She had followed Jim Camp's advice. She clearly advocated for her desired solution: Change my room. The result, however, was a failure. She didn't get what she really wanted, a room on a much lower floor without a balcony.

Others Like You More When They Understand Your Motives.

Imagine being the hotel clerk. From the clerk's point of view, this guest didn't appreciate one of the most amazing suites in the hotel. Without explaining what about the room made her unhappy, she demanded a new room. How much do you like her? How far are you willing to go to make her happy?

Now imagine a different scenario. The guest comes to your desk and says, “Thank you so much for putting me in that lovely room. I’m a bit embarrassed to say, but I’m afraid of heights. And there’s that gorgeous balcony. I bet most people love it, but it is hard for me to relax around it.” How would you react? For most people it is a shift from thinking *What an ungrateful jerk* to *Oh no! That sounds terrible. Let me see what I can do.*

It Offers Them an Appealing Role in Your Story.

Imagine you are in a negotiation with a client or customer, and you’ve asked him what his strategy is. He says, “I want to get all the information that is important to you and not tell you anything. I will then use that information to get what I want, regardless of how you feel about it.” Few of us would say, “Sure, that sounds great to me.” Yet that’s the strategy Camp advocated. Camp is counting on his counterpart not realizing what he is up to. We have our doubts. (While we disagree with Camp on this point, there’s also a lot we learned from him.)

On the other hand, if you say in a negotiation, “Here’s my problem. I don’t know what to do about it. I’m hoping you might have some ideas,” that’s a great deal more enticing. Hiding your interests potentially puts your counterpart in the role of a sucker who gets manipulated. Sharing your interests offers them the role of being the hero who saves the day. Which sounds more attractive to you?

You can’t *make* someone negotiate the way you want them to, of course. You can, however, offer them a role they find attractive. In other words, you can work together rather than battling over control of the process. We have found that letting your counterpart know your problem and allowing them the opportunity to be part of the solution is more likely to get them to partner with you.

They Might Think of Other Solutions.

Most of the time, two heads are better than one. Sharing your interests invites your counterpart onto your team to help solve your problem. Often, your counterpart will come up with an answer to your problem that you couldn’t envision. The Harvard professor with a fear of heights? When she finally left the hotel, the clerk asked about her stay. She hadn’t slept in days and was too tired to

be embarrassed. She confessed that her acrophobia had made her nervous about the balcony. “Oh no!” the clerk said. “If only I had known! When families with small children stay with us, those low railings are a safety concern. There is a keyhole hidden in the wall. The bellman can lock the balcony door.”

If you open up the conversation by sharing your interests, your counterpart may come up with a good solution. Sure, they may also come up with bad or unappealing solutions as well. But bad solutions are a useful resource because they can trigger you to think of something better. A lot of research on creativity focuses on “random provocation”—a fresh starting point that jolts you out of your current way of thinking. Two people working together tend to come up with more creative ideas by bouncing ideas off each other. We’ll talk more about how to do that in chapter 6 on option generation. For now, we want to point out that sharing your interests makes this collaboration possible.

It Can Trigger Your Counterpart to Share Their Interests.

Negotiation experts agree that the most valuable thing in a negotiation is to know the other party’s interests. In chapter 5, we will talk about methods for persuading them to share their interests. Think back to our chapter on reciprocity. There is power in *modeling the behavior* you want to see. Just as they will feel a need to reciprocate when you offer them a cup of coffee, your counterpart will likely feel an urge to share his interests when you share yours. We think in most cases you are better off in relationships where both parties share what they want.

Test these strategies for yourself and see what happens when you share your interests.

EXERCISE 5

Share Your Interests, Watch the Response

Think of an ongoing important relationship where you have an issue, conflict, or disagreement.

Make a list of your interests in the disagreement. Rank and weight them, taking into account your feelings around the issues.

Give your list to the other person. Allow them time to digest it. Don't ask them to do anything. Just relay your interests and see how they respond.

They might tell you that they never knew you felt that way. They might come up with ideas to meet your interests. They might start telling you more about their interests.

By observing them, you will discover how they respond to learning your interests. If you don't get the response you hoped for, acknowledge that and try a different strategy, perhaps asking them to share their interests with you. Their response could also influence your choices about how much to invest in the relationship.

Pose a Problem to Be Solved

WE ARE PROBLEM SOLVERS: We like to be asked for advice. It feels good when someone asks us for our opinions and suggestions. We feel a sense of respect. Invite the other person to think about the situation from your perspective as well. Not only will it make them feel good but it will build buy-in. People are supportive of ideas they helped to come up with.

When Attia showed Isaiah her interests list, first, he stated he was grateful at the thought put into such an important decision. And the list prompted him to figure out how to meet additional interests. As he looked at it, he suggested adding a line in Attia's Interests List for physical activity. Traverse City is known as one of the best cities in the country for cycling, an activity Attia loves. And during winter he promised to take her cross-country skiing and to show her where the best trails are.

EXERCISE 6

Ask for Help

We believe this is true whenever you have a problem to be solved, whether with your spouse, a client, or a clerk at the hotel or airline counter.

Take a moment to explain, as concisely as possible, the problem or dilemma you are experiencing. Be sure to share your interests. Ask the other person if they have any ideas about how to solve the problem. If you have ideas of your own, keep them to yourself for the time being. Pay attention to the way you ask and the way they respond. If you are too demanding in your ask (whether in words or tone), it's unlikely they will work with you to solve the problem. Give them the chance to save the day.

Observe their response. Do they respond positively to being asked? Do they seem to want to help you with your interests? Some people lean into the conversation. People like to feel needed, and if you make them feel that way, watch how much more eagerly they try to help you.

We recommend making this a permanent part of your repertoire.

JOHN: When I was a negotiation TA in law school, I got to go on a trip to teach a class in Spain. My fellow TA Sheila, whom Rob had thought was so cute, went too. Our flight was delayed, we missed our connection, and our luggage was sent to the wrong city. Sheila told me she was going to get us upgraded to business class. I scoffed, “Lots of luck with that.” She went up to an airline clerk and explained, “I have a problem that I don’t know what to do about. The airline lost our luggage on the last flight. Now we are going to fly to Madrid on the red-eye. We were going to sleep in when we got there, but now I have to buy clothes in the morning for work in the afternoon. I’m worried that I’ll have to go to teach a class with no sleep. Do you have any ideas?” The clerk looked in her computer and said, “You know, in business class the seats convert into a bed. You could sleep on the plane and be fully rested for your meeting.” “Oh, what a great idea,” she said. “But we’re students; we can’t afford business class.” “That’s OK,” the clerk said. “I just upgraded you.”

She came back grinning and waved the tickets at me. “Oh, will you look at these!” That’s when I decided I had to marry her.

Share *One* Interest

IF YOUR COUNTERPART SEES YOU as an adversary, as they might in a contentious contract negotiation, they will be happy to take advantage of your trust if you share all your interests with them—just as Jim Camp cautioned.

There is an alternative. If it feels risky to share your whole list, you can try to share *some* of your information, without showing all your cards at once. Remember, people often feel the need to match the generosity shown them. So share one interest and see if they are willing to follow suit. Start by sharing things that aren’t going to give away too much. If your counterpart responds in kind, great. You can share another interest and let them match it. This allows you both to learn more without feeling too exposed. At some point, you could make the framework explicit: “I’m happy to continue sharing information back and forth. I can start off and you can lead the next round.”

What if they don't match your openness? OK—you've only given up one relatively small piece of information. You can't *make* everyone agree to information sharing. But you can increase the percentage of people who are willing to do so by going first.

Takeaways

WE HAVE FOUND THAT MORE times than you would think, people are clueless about their own interests. In a complex negotiation, even when we start the process of defining their interests, it can take a while to develop a complete, ranked list. The process can be challenging, but it's crucial in a successful negotiation. People can't give you what you want unless you know what that is and you tell them. Once you share, we find most people are surprisingly benevolent and want to help you meet your interests. But, of course, that's not true of everyone. If you extend an olive branch by sharing one of your interests and the other party doesn't follow, it is time to try a new strategy.

Which leads us to chapter 5: thinking about what others across the table are interested in. We'll look at ways to uncover your counterpart's interests and how to improve your odds of getting what you want by understanding their needs.

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CHAPTER 5

Find Out What *They* Want

YOU HAVE LIKELY RUN INTO situations where you are pulling your hair out in frustration over a negotiation because you can't figure out what the other party wants. The problem is similar to figuring out our own interests—they probably don't quite know exactly what they want either, which makes it hard to come to an agreement. This chapter dives into helping us (and them) figure out their interests, so that we can start to problem solve.

ATTIA: I often coach women pro bono through my consulting firm. One such coaching session arose in the summer of 2022 with a woman I will call Tasha, the administrative assistant to the CEO of the company where she worked. I had done leadership workshops for Tasha's employer, a booming technology start-up out of San Francisco, the prior year. But with this type of rapid growth, pain points inevitably arise around culture, strategy, and leadership, which is what my consulting firm focuses on. Impressed with the way I ran the trainings and coached the leaders of the organization, Tasha reached out to me to see if she could receive some individual coaching. The CEO had agreed to pay for a few sessions for her, and when those ran out, I agreed to coach her pro bono.

On our first video call, Tasha's unhappiness with her job was clear through her frown, long sighs, and frustrated tone. Her *position* was that either her current job had to change or she had to find a new one. I was surprised, because Tasha had only been on the job six months. We needed to dig in further to understand the pain points, so the first month, I worked to help Tasha identify what her *interests* were, as opposed to her position.

Her interests?

— Doing more work remotely and spending less time commuting.

- Shifting her responsibilities to work solely as executive assistant to the CEO. She was currently supporting the CEO, CMO, and CFO, and had more work than she could handle. She knew she could do a better job assisting Devon, the CEO, if that was her only responsibility.
- Reassigning the general office tasks she was responsible for. They consumed a lot of her time, and it didn't use her core skill set working for the CEO.
- Receiving equity in the company (she had only been with the company for six months; company policy required that employees be employed for twelve months to receive 25 percent of their promised equity).

Tasha had asked her boss for several of these things and had received a firm no. She had been surprised and hurt; the CEO's previous executive assistants had been given these things. She flung up her hands in exasperation—she didn't get why she was being treated differently.

Our first job was to understand Devon's interests (his wants, needs, fears, and desires), as opposed to his position (simply saying, "No, that doesn't work"), because something was going on under the surface driving his no.

Knowing Their Interests Can Get You to Yes...

KNOWING THE OTHER PERSON'S INTERESTS gives you the power to make them satisfied, and people are much more likely to say yes when their needs are met. Knowing how to give others what they want is a formidable tool. Most people will want to do something for you in return. It is the perfect way to trigger reciprocity. Giving them a sandwich is much more effective when you know what kind they like.

... And Knowing Their Interests Makes Them Like You.

Demonstrating concern for the other person's interests is also a great way to build or strengthen a relationship.

Roger Fisher, the lead author of the negotiation classic *Getting to Yes*, loved to tell a story about identifying the other person's interests from a negotiation he helped with years ago. In the early nineties, Roger and his colleagues at the nonprofit Conflict Management Group did some training in advance of South Africa's constitutional negotiations, which was crucial to South Africans in bringing about a peaceful transfer of power. The project was expensive, but Roger had a friend, we'll call him Bill, who had made a bundle as a private equity investor. He donated the money for the negotiation training. The next time they met, Roger thanked Bill and told him how helpful it had been. He added, "I'm so grateful for your help. Is there anything I can do for you?" Bill replied, "Not unless you know the cure for being a greedy bastard!"

It turned out that Bill was buying small market radio stations across the United States to run as a network. In one location, the station he wanted to buy was jointly owned by three partners. Bill had made a deal on good terms with two of them, but the third owner, who had been running the station, demanded an exorbitant price. Bill was preparing to use control of two-thirds of the stock to force him out and make him sell. But that meant a legal fight and who knows how much damage to the operation of the business.

Roger asked, "What does he want to do with all that money?"

"What do I care?" Bill responded. "That's his problem."

So Roger asked, "Would it be OK if I talked with him?"

Bill said, "Be my guest, but you won't get anywhere." After a moment, he asked, "What are you going to say to him?"

"Nothing," Roger responded. "I'm going to listen."

Roger called the station owner and started asking questions. It turned out, the guy who wouldn't sell loved running a radio station. He had taken the station from a money-losing operation to becoming the number one station in town, and he thought he could grow it even more.

He figured if he was forced to sell, he would find another station somewhere and turn that around too. Maybe in the same town, going head-to-head with his old station. The reason he was reluctant to sell was that his wife was head of her church committee, president of the PTA, and chair of the local United Way. As Roger put it, "She ran the whole town." The owner was terrified of telling her

they had to move. But he thought that with enough money, he could make it up to her.

When Roger got back to his friend Bill, he told him “He really doesn’t want to move. His wife has a lot of roots in the town. Why don’t you tell him he can stay on as manager? You know he’s good at it. And you can let him keep some of his equity. He thinks the station is still growing.” Bill called Roger back the next day: “You’ll never guess! He fell for it! And at a good price too!”

Roger laughed. “He didn’t fall for anything. You solved all his problems! Of course he agreed.”

Meeting the other side’s interests in a negotiation may be the best trick in the book. When the other party sees that you are interested in understanding and meeting their interests—when you do something special for them using that knowledge—they can’t help but feel touched. And your kindness to them more often than not makes them feel kindly, in turn, toward you.

ATTIA: So how did Tasha and I discover what Devon’s interests were? She was getting fed up and on our second call had already found some other positions online to apply for. “It’s great that you’re doing research on alternatives, but you don’t need to give up on this job yet,” I told her. “Give me a little more time to help you through this. He is saying no for a reason.” Luckily, she agreed, so now we had to figure out *why*.

Ask More Questions

THE SIMPLEST WAY TO FIND out the other person’s interests is to ask them. Friends and family, of course, are usually happy to tell you. However, people who don’t know you, or don’t trust you, may be more reluctant. But the foundational skill is to ask. And when they tell you one of their interests, keep asking. There’s always more. Keep asking, as long as they are comfortable answering your questions, until you’re satisfied that they’ve told you everything that could help in the negotiation.

ATTIA: Devon probably didn't have a list of his interests. Tasha needed to find a way to ask Devon questions to better understand his hesitation around her interests. She was skeptical—"He said no. How will this help?" "Well," I said, "you can't change his mind if you don't know why he has the opinion that he does. You mentioned that he had a great relationship with his former executive assistant, Sakura. Here are some questions you can ask him to start digging into that why."

- What made Sakura such a great executive assistant? What did you particularly appreciate about her work?
- How did Sakura support you as your executive assistant?
- Is there something I can help you with today/this week that I'm not handling?

You may have to try a couple of different approaches. Everyone is different. The questions that will unlock their thinking will vary from person to person. But Tasha does have a huge advantage here. She's been working day in and day out with Devon for the past seven months, so she already knows a good deal of his thinking and concerns. Which leads us to our first exercise: asking about the other person's interests.

EXERCISE 1

Ask About Their Interests

Ask someone questions about their interests. Start with a specific situation: a search for a job or an apartment, or just “Where do you want to go tonight?” It’s easiest in a simple, nonconfrontational setting—having coffee with a friend and talking about a choice they face.

Next, you can move that skill into actual negotiations. Here are some examples:

- Negotiating a contract with a vendor: “Do you have any additional concerns with the contract for next year?”
- Negotiating with a subcontractor: “Do you have concerns around the scope of the work to be done at your house, or at your business?”
- Negotiating when buying a car: “What hesitations do you have when thinking about buying this particular vehicle?”

Be careful to maintain a neutral tone. Don’t ask a series of rapid-fire questions; you don’t want your questions to feel like an interrogation. Rather, this is an opportunity to learn more about the other person and whatever you are purchasing. We suggest limiting the number of questions you ask to two or three, to start with, so that you don’t set off alarm bells with them.

The key is to make it feel like you are reacting to them, not guiding them through a survey. Your second question should relate directly to their answer to your first.

Consider:

- “Any hesitations about buying this car?”
- “Well, I’m worried about gas mileage.”
- “I see. Do you have a long commute?”

Compared to:

- “Any hesitations about buying this car?”
- “Well, I’m worried about gas mileage.”
- “But don’t you want to make a statement when you pull up to the valet?”

When you respond to what they say, they feel like they are leading the conversation, and they are less defensive about volunteering information.

ATTIA: Tasha learned that Sakura understood Devon's concerns and fears so well that she was able to meet a lot of his needs without Devon even needing to ask. He grew to trust her implicitly.

Devon's interests:

- To have a proactive executive assistant looking out for his needs, so he can take routine tasks off his plate and think about company strategy.

In our next call, Tasha was tapping her fingers impatiently as she shared Devon's interests that she had identified. "I can at least ask him about working remotely now, right?" I shook my head, and Tasha blurted out, "I don't know if this is going to work. It has been a couple of months, and we haven't made any progress!"

I had to smile a little, because I knew exactly how impatient Tasha was feeling. But I also knew the consequences of acting too soon. Tasha had really just taken the first step. She needed to better understand Devon's interests, because she still didn't know why he had turned her down. She needed to show him that she had taken his interests and concerns to heart. I shared with her some of my experience with my neighbor Jared, which mollified her, and she reluctantly agreed to follow my lead.

Here are two easy follow-ups to gather even more information and detail.

Go Wide

MOST OF THE CHOICES WE face professionally and in life are complicated. There is more than a single interest at play in our decisions. The more of the other person's or party's interests you understand, the greater ability you have to offer a solution that will appeal to them. We recommend that you broaden your questions to find additional interests that they may not have shared yet so you can get a clearer picture of their needs.

JOHN: When we first moved to Cambridge, Massachusetts, my wife and I only had one car, because we only had one parking space that came with our condo. But our old car kept breaking down; it was time to get a new one. At dinner, my wife announced, “I think we should get a Prius!” I had been thinking about a truck, an F-150. But sometimes I’m smart enough to follow my own advice; I didn’t start pushing back or risk getting into an argument until I learned more.

“What do you like about the Prius?” I asked.

“It gets great mileage—fifty miles a gallon. Have you seen the price of gas?” she responded. “It’s also much better for the environment. My friend Jean just got solar panels put on the roof of their house. I feel like we should be doing our bit for the environment as well.”

John: “You want to save money and have us do our part to save the planet. Got it. What about an all-electric car?”

Sheila: “I want to drive out to Nebraska to visit my parents this summer. I’m worried about how far battery-operated cars can go on a charge. I don’t want to worry about finding a charging station every time I need one along the way. And I don’t want to spend an hour or more at a charging station to fill the battery.”

John: “OK. So you want a car that is better for the environment but with the ability to travel long distances. Anything else?”

Sheila: “Well, Toyotas have a reputation for being extremely reliable, and Consumer Reports says they have low maintenance costs. And my cousin has one. He says it never breaks down. And it has really good visibility all around.”

John: “Reliability and visibility, OK. You’ve really thought about this. Is there more?”

Sheila: “No, I think that’s all. So, what do you think? Sounds like you’re with me on getting a Prius?”

John: “We still haven’t talked about what I want in a new car.”

Sheila: “Right, of course. So... what do you want?”

Darn, I hadn’t completely formed my own interests, and I should have known she would ask me. I took a moment to think about it and then responded.

John: “When we take the dogs to the park, they’d have to be in the back seat in the Prius. That makes it harder for people to sit there.”

Given my wife's preferences, I realized an F-150 was going to be a tough sell. I didn't work on a farm or in construction, where a truck might be more of a necessity. But knowing my wife's preferences, I could suggest another model that might fly. Toyota makes a hybrid version of the Highlander SUV. In a Highlander, Sheila can sit up higher for even greater visibility, and while the mileage isn't as good as the Prius, as a hybrid it is still impressive and among the best in its category. And it qualifies for those electric vehicle vanity plates that Massachusetts offers. The Highlander was something I was able to sell based on her interests, while still meeting my interests of a larger vehicle with more cargo space.

Get in the habit of asking the other party for their interests, and *keep asking*. Again, assume there are more than one. And you'll find that the important ones aren't always the ones that first come to mind. That's what Attia recommended to Tasha. Tasha needed to nail down more of Devon's interests. This is also our next exercise for you—how to wrap your arms around more of the other person's interests.

EXERCISE 2

Ask, “What Else?”

You have already asked for their interests once. When they give you something, keep asking for more. Your goal is to make a list of all their interests, much like you made a list of your own in chapter 4. Their desires are probably as varied as yours. Ask until they run dry to better understand what motivates their actions, thinking, and behavior.

Interests:

- save on gas
- help the environment
- long trips
- reliability (save \$, hassle of going to mechanic)
- ???

Remember, make your questions as broad as possible and let them direct the conversation.

As you broaden the scope of their interests, let them control sharing whatever comes to mind.

ATTIA: Here are some examples of additional questions I gave Tasha to ask Devon:

- Are there special challenges or concerns you are dealing with this week? This quarter?
- Can you think of any negative experiences you or the CMO or CFO have had with executive assistants in the past? If so, what went wrong?
- What do the new CMO and CFO think of my work?
- Given how busy things are at work, is there something more I can do in the office to help pick up the slack?

Tasha discovered that there was an important investor meeting later in the quarter for all the major shareholders. Devon was feeling under pressure to show exceptional metrics for the start-up, as well as to organize dinners and social events while the shareholders were in town.

In addition, because both the CMO and CFO were new to the company, and were still getting used to their new positions, Devon had asked Tasha to support them, because she knew the ropes.

Bottom line, with her second round of questions, Tasha had captured many more of Devon's interests. We now had a much clearer picture of his needs and concerns.

- He needed someone who could help manage the transition of his executive team into the company culture.
- He was nervous about the state of the company's financial performance. Would the board and their investors feel the company's growth was strong enough to warrant another round of fundraising?

We now had a much longer list of Devon's interests. But I knew we still needed to dig into these interests to better understand the office dynamics and Devon's concerns.

No one wants to make a deal that doesn't meet their needs. So the better you know their needs, the better deal you can craft. And the more motivated they will be to make a deal that meets your interests. That was our next step.

Go Deep

NOW THAT YOU HAVE A broad landscape of interests, start asking more specific questions about those interests to get a deeper understanding.

Ask, “Why?” Or “How does that affect you?” Or “How does that help (or hurt)?” There’s almost always more to their stated interest. If a certain topic warrants more exploration, do that. It is especially helpful in a negotiation.

Some people are delighted to be asked about their interests and have a lot to say about them. Others will have to struggle a bit to figure it out for themselves. Give them as much room as they need. Don’t put a time limit on understanding someone better.

You can use a better understanding of the other person’s interests in a negotiation to help get them what they want or need. But remember, it’s also an end in itself. And this might be the most important thing about learning interests—it can be the key not only to a successful negotiation but to a happier relationship as well.

Every November, when people travel home for the Thanksgiving holiday, the US media seems to run articles about how exasperated people are by their extended family’s political opinions. News outlets from the left and right have stories about how to “win” against your relatives in political arguments. That’s the worst advice ever.

A smarter approach, we would argue, is to turn a discussion about politics into curiosity about the relative in question. Maybe you don’t agree with all of Grandma’s opinions, but you’d love to know more about her life and her experiences that led her to her beliefs. “Grandma, why does this topic feel important to you? Does it remind you of political issues in the past, before I was born? I’d love to hear about those. What does this issue make you afraid of? What’s the life lesson that you wish your grandchildren could take away from this discussion?” After all, the chance that your vote or her vote is going to decide an election is absurdly small. What’s at stake is your relationship with her. Focus on that. Family relationships are a big part of what makes people happy and mentally healthy. Don’t throw that away over issues that you won’t even remember a year from now.

On the other hand, remember that some family members may feel so strongly about an issue that disagreement on the subject could cause serious rupture in the relationship. If it seems like the conversation could veer that way, you'll have to make a judgment call on whether to keep going or let it go.

Learning the other person's interests at a deep level is a smart precursor to several other effective negotiation moves. But don't forget it is a gift all by itself.

ATTIA: Noticing Devon's anxiety about the upcoming investor meeting, Tasha automatically followed up with some questions in the moment (she was a fast learner!):

- What are the investor's biggest needs or concerns at this stage of the company's growth?
- What information would make you feel more prepared for the meeting?
- Is the agenda of the investor meeting set? What aspect worries you the most?

By being persistent, Tasha learned that the reason Devon was feeling anxious about the meeting was because the investors and the board wanted to focus on the performance of the company's remote workers. Were they working productively, or was there a drop-off in performance and engagement? Devon was still gathering the data, but he felt they might have a point. Employee efficiency might be lower, he confided to Tasha. He had become frustrated at times, himself. He missed not being able to just turn to his assistant or colleagues when he wanted or needed their input. Calls, emails, and Slack slowed him down and lacked the spontaneity he was accustomed to. Maybe it was time to start bringing employees back into the office, at least two or three days a week. The investors might have a legitimate point.

Be proactive, I encouraged her. After conferring with Devon, Tasha offered to help Devon plan the agenda, as well as arrange the dinners and social engagements with the investors, to ensure that they were both fun opportunities for relationship building while still offering enough privacy to conduct confidential discussions about their concerns. But Tasha was proactive in

another way as well, reaching out to the right analysts to compile the data Devon needed on remote work and employee efficiency.

As a result, she now better understood why he was hesitant about Tasha working outside the office. She was ecstatic on our next call when she shared that she had *finally* figured out the why: He wouldn't be able to turn to her as easily when he needed something from her. In addition, he relied on her to pull him out of meetings he got stuck in. She was grinning—this was a problem she could solve!

Devon had previously agreed to let Tasha work remotely when he was traveling. That gave Tasha an opportunity to test some new software tools to make her more easily accessible to Devon. She found, for example, a light pod that let her change colors remotely. She purchased one for the company's conference room, telling Devon she would switch the light from green to yellow to red when he needed to leave the meeting. And he loved it! She also got approval for a second work phone, to which only Devon had the number, allowing him instant access to her.

Within a couple more months, Tasha was able to fulfill many of Devon's needs before he was aware of them. At this point, Tasha was finally in a position to make her ask. I coached her to start small, because she was still establishing an increased level of trust with Devon. When she asked if she could work remotely on Fridays, not surprisingly, he said yes. And when their work relationship continued to go smoothly, he agreed to let her work remotely for a month in the winter.

Tasha also learned how to be more proactive with Devon by continuing to ask about his interests. When she told him she was feeling stretched thin because of her responsibilities in assisting the CMO and CFO, he agreed to bring a new executive assistant on board to support them—as long as she agreed to train the new assistant. This led to her being promoted, with a requisite pay raise, to oversee the training of the other administrative assistants in the executive suite.

The evolution in the relationship between Tasha and Devon took six months, but ultimately Tasha was able to get many of her interests met. She has a much more rewarding and fulfilling relationship with her boss. On our final call, she

was all but glowing as she shared that she had never liked her job more, and all thoughts of leaving the company had melted away.

We mentioned earlier that it is easy to become impatient in these kinds of long-term relationship negotiations. But if you can learn to play the long game in situations like this, you are likely to get much more of what you want in the end—and without resorting to ultimatums or unpleasant arguments.

What If They Won't Share?

OF COURSE, NOT EVERYONE IS ready to share their interests when you ask them. Some just haven't spent a lot of time thinking about what they want. Others essentially agree with negotiations guru Jim Camp—believing that it is safer to keep them secret. Still others come away with a general feeling of discomfort when they trust you with that information. And that's OK. There are plenty of ways to fish for the same information. The benefits of knowing their interests are so valuable that it's worth trying other approaches.

Make Your Best Guess.

The fact that you have thought about your interests and theirs gives you an advantage. You can suggest to them what their interests might be and give them a chance to confirm or correct your guess. Let's say you and your spouse are planning to turn your garage into a gym. Picking out all the features could be a tough negotiation, especially if your spouse isn't sure what she wants. It is a lot easier to answer, "Do you care if your gym has a sauna?" than it is to list all the factors that would make the ideal gym.

How hard is it to figure out the other person's interests? With the right technique, we believe you can guess effectively. Back in the late 1990s, Natasha Kohne, a brilliant student working as a teaching assistant for the negotiation summer class at Harvard Law, was leading a preparation session that involved guessing the other side's interests in a negotiation. Some of the students doubted that their guesses could be accurate. So Natasha devised a test. She told the class, "I've been thinking about cutting my hair, but it's hard to decide." Natasha had

flaming red hair so long she could sit on it. “What would you guess are my interests for and against doing that?”

Intrigued, they made their guesses. Natasha organized them in two columns. If you would like to test your own skills, grab a piece of paper and list the possible reasons for and against before continuing.

The list the class made was as follows:

Reasons for Natasha to cut her hair	Reasons for Natasha to keep it
She's bored/curious, wants a change	Too long to grow back if she doesn't like it
Long hair is hard to wash and maintain	A salon is expensive
Will look more professional	Perhaps she's dating someone who likes it
Easier to manage playing sports	It's her signature look
She could donate her hair to a charity that makes wigs for chemo patients	

Natasha was delighted with the results. Not only did the students successfully guess many of her interests but they also identified several she hadn't thought of, such as donating her hair to a charity.

Our point is, you can do a better job than you think of guessing what the person opposite you in a negotiation wants. And the more you know about the other party, the more accurate your guesses are likely to be. Try the exercise below and see how well you do.

EXERCISE 3

Cut My Hair?

This is a great exercise to do on a long car trip or on a date where the two of you can take turns guessing each other's interests. It also helps you get to know the other person. Or to test how well you think you know them. The exercise features two players: the Decider and the Guesser. The Decider describes a decision they must make. Should I go back to school? Should I attend my friend's wedding? Should I get a new couch, or an ergonomic chair? The Guesser creates a list of the interests pushing the Decider in each direction. You can either make a physical list on a piece of paper or on your smartphone or talk through each of your ideas in order, one by one. You get +1 point for each correct guess, -1 for any incorrect guesses, and +3 for guesses they hadn't thought of. Then switch roles.

Check how accurate you are. You might be pleasantly surprised. And you will probably find that you get better over time. In addition, we've found that getting to know the other person's interests typically makes you *like* them more. And when they know your interests, that typically also makes them like you better (which is one reason this exercise is so good to do on a first or second or third date).

The point is to get in the habit of figuring out interests every time you talk to someone. Just trying is half the battle. And like anything else, you get better the more you practice.

Nowadays Natasha works at Akin Gump in San Francisco. If you're looking for a lawyer out there, they don't come any smarter than her.

Guess Out Loud.

Once you have practiced this exercise several times with colleagues and friends, you're ready to attempt it in real time in a negotiation. It's harder to do, of course, when you are under the pressure of a negotiation or dispute. That's why practicing when the stakes are low is so useful. If you have the time—you have an upcoming scheduled negotiation, such as an interview for a job or a meeting over a request from a customer or client—think about their interests in advance as part of your preparation. That way you'll be ready in the actual meeting or discussion.

If they haven't thought about their interests in advance, you make it easy for them to say yes to your suggestion. And if they are aware of their interests but feel reluctant to tell you, naming their interests first often loosens them up. *Oh, what's the use of hiding it? She already knows.*

You can tell your counterpart your guess about an interest of theirs and ask if you are correct. Usually, you'll be able to see by the expression on their face when you guess right. And at that point they may tell you more or become more interested in your interests. If you are wrong, they will almost always explain why.

One interesting thing about this is that they almost never get mad if you guess wrong. Just the fact that you wanted to understand them seems to be enough. In some countries, if a tourist tries to speak the language, locals are annoyed at how badly they do. In other places, locals are delighted that the tourist made the effort. When it comes to understanding interests, most negotiations seem like the second sort of country.

Don't Get It Twisted.

Once you've gotten the hang of getting, or guessing, the other party's interests, you're ready to raise the difficulty bar once more. And that is the case when there is a dispute around opposing emotional interests. It's especially hard if the negotiation is with someone you care about. In that case, you can hardly walk away from them. So, you will need to try other things to convince them. One of the most common—but also the most dangerous—is by making a strawman of

their interests. That is, describing their interests in a negative way. Married couples, like political opponents, have a habit of misrepresenting the other's interests—often not intentionally. When we feel we need to get our way, it is always tempting to make their interests sound selfish, unreasonable, unfair, or immoral. But such tactics always backfire.

People almost always describe their interests in a way that sounds admirable. Their opponents in an argument will usually describe them in a way that sounds unreasonable and immoral. If you ask some Democrats, Republicans only have evil and selfish motives. And if you ask some Republicans, Democrats only have bad motives. As stupid as that is as an approach to politics, it's even worse with someone who matters to you.

The more difficult—but more useful—version of this tactic is to describe their interests the way *they* would describe them—not the way that you think helps you win the argument. If you can't describe their interests in a way that they will agree is fair, then you are probably doing more harm than good to the relationship—as well as to your chances of reaching an agreement.

Roger Fisher used to say that the trick is to describe their case as if you were their lawyer, not the lawyer arguing against them at trial. We tend to describe others' point of view in the hope of making them say, "You are right, and I am wrong." That almost never works. The trick is to describe their point of view and then ask, "Did I get that right?" to make them say, "Yes, that's what I'm saying." Chris Voss describes this move as getting them to say, "That's right!" instead of trying to get them to say, "You're right." You want to put their view in the most favorable light—because that's how they see themselves.

The benefits to doing this are huge. It makes them see you as a collaborator rather than an enemy. And it makes them curious. In a disagreement, we always have our own reasons for believing what we do, and they seem very persuasive to us. If you don't agree with me, the typical conclusion to draw is "You just don't get it." But if you can describe my interests fairly, you prove that you do get it. That leaves me with a puzzle. If you haven't agreed with me, then there must be more to the story. That will often make me curious to learn what is motivating you.

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EXERCISE 4

Get to “That’s Right!”

First, we should mention that we didn’t invent this exercise. Fisher used to say that a competent negotiator must be able to describe the other side’s interests to their satisfaction. Chris Voss improved on it by setting the goal as “That’s right!” This is a classic.

Think of a situation in which you have an ongoing disagreement with someone important to you. Maybe it’s an ongoing Thanksgiving dinner conversation with an aunt who frequently has opposing views to yours.

Make a list of their interests relevant to this disagreement. Show it to them or describe their interests out loud. If they say, “No, that’s not it,” revise it and show it to them again. Repeat the process until they say, “That’s right.” It sounds simple, but we’ve had students who needed multiple attempts to get it right, especially when the other person is someone close to them.

Do you find it difficult to express their views in a way that they agree with? If so, try to take a step back and name the emotions coming up in order to give yourself some distance from them, then try again. Think of yourself as an anthropologist or researcher trying to better understand this particular topic. After you succeed in describing their motives and interests fairly, what do they do next?

What If They Are Scared to Share?

IN OUR EXPERIENCE TEACHING NEGOTIATION and practicing it in the field, a significant number of people just don't want to share. It feels scary to them and makes them feel too vulnerable. *Why should I trust you?* they think. *How do I know you won't use this against me?*

We have some recommendations that may help you with such hard cases. But remember, they are in charge of their own behavior. You can try to talk to them, try to show them it will be OK, but at the end of the day, they must decide whether to share that information or not. The best you can do is to maximize the chances that it will seem like a smart chance to take. That said, these techniques work on a lot of people! Many will take the step to trust you. But be careful what you do with their trust. If you use that information against them, you can forget about them ever trusting you again.

Go First.

Chapter 1 was about reciprocity, because that is one of the most basic and powerful of human instincts. This is another place in a negotiation when you can use reciprocity. If you want to get the other person to share information, an easy first step is for you to share some of your interests first.

When we state our interests, instead, it allows for collaboration and an exploration of possibilities that works for all parties, which is usually much more constructive.

What If They Don't Like You or Trust You?

GOING FIRST IS ABOUT MAKING a bid to get them to trust you. And if they trust you, they tend to like you. If it works, great. If not, there is a move you can do that works *because* they don't like or trust you. If someone dislikes you, they tend to enjoy pointing out your mistakes and shortcomings. That urge to criticize an opponent can feel irresistibly strong. That's your opportunity. All

you have to do is give them something to criticize. That might be a list of their interests, or it could be a proposed agreement.

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EXERCISE 5

“Tell Me Why I’m Wrong”

You are involved in a negotiation in which the other side seems reluctant to share their interests.

Offer them something about you or your efforts to criticize. It could be a list of their interests or a proposed agreement. After you present it, ask, “What’s wrong with that?”

It can help if you come across as a little smug, overly confident, and generally insufferable—an attitude that makes them want to dunk on you even more. If you offer a list of interests, you might say, “I’ve got you all figured out, don’t I?” Or if you are suggesting a possible point of agreement, tell them, “Now what could possibly be wrong with that?”

Every correction they make to you identifies another one of their interests. Afterward, add these to your list of their interests.

Have an Explicit Conversation—Go “Meta.”

Most of the moves we’ve discussed in this chapter are subtle and often go unnoticed. People will join in sharing interests without ever making a conscious decision to do so. But that doesn’t work on everyone. Another tool you need to have in your collection is the ability to have an open conversation about sharing interests.

Jim Camp suggests that you can create a situation in which one side freely shares information while the other side does not. Call us skeptical. Anyone smart enough to be a serious challenge isn’t going to fall for that. Especially in an ongoing relationship. Ultimately, the choice is between a relationship where both sides share information and one in which both sides hold back in the hope of taking advantage of the other. We think that’s an easy choice.

This move is about making that choice an explicit one that you take together. It’s basically an invitation to the kind of negotiation you would like to have together. Or if you like, it’s “meta”: It is a negotiation about the negotiation you are going to have.

The problem with practicing this move is that it just doesn’t come up that often. You would need a situation in which you were in an important negotiation, you want to swap information, and they are unwilling. Most of us will be waiting awhile for that. But what you can do is to get ready for that day, assuming it will come. Start-up entrepreneurs talk about creating an “elevator pitch.” It’s a rehearsed speech in which you describe your new company and why a person should invest in it, and it’s short enough to give in the time you have before a person gets off the elevator they are trapped in with you. Here’s one example:

You know, sometimes I feel nervous about sharing information in a negotiation, because the other person could use it against me. But I think we can do a better job of reaching an agreement together if we each talk about what would make this deal work for us. The more you tell me about how to make you satisfied, the better job I can do at that, and vice versa.

So we can either share information, or not. We can go a bit at a time, of course, and I'll offer to go first. What do you say?

You're welcome to borrow that one verbatim. But it will sound better and more authentic if you write it out in your own words. You will also have an easier time remembering it if you've made it your own.

Now, someone might agree to your proposal but not want to honestly share information. But those people are rare, and you can usually tell pretty quickly if that is the case. But we've found that the great majority of people who make that deal with you will keep it.

Why is learning about their interests so valuable? Because of what can happen if you don't. We'll leave you with a final example.

ATTIA: During the COVID-19 pandemic, I was asked to help mediate a land dispute among four siblings. Their father had left them a beautiful parcel on the water with a mile of beachfront property. The value of that property had skyrocketed as people sought to escape cities during this time. What should have been an easy thing to figure out between siblings who had always been close to one another became fractious and tension filled. Two siblings, whom we'll refer to collectively as Julie, for simplicity's sake, wanted to sell, while the other two, whom we'll refer to as Betty, wanted to hold on to the family property. Julie and Betty had had a wonderful relationship before their father's death. They lived a mere half mile away from each other and had raised their families together. Their kids grew up playing together every day.

But this issue had created an emotional divide—a rupture—in their relationship. Betty reached out to ask for my help. My first step, predictably, was to understand each side's interests.

To Betty, maintaining their family's property and the beach they had grown up near was very important. She wanted to pass the property down to her two children and grandchildren.

Julie, on the other hand, had had a difficult relationship with her dad, emotionally, and didn't feel as close to him. In fact, the beachfront property brought up painful memories that she preferred to forget. She saw the sale as an

opportunity to move on in her life and to make a significant amount of money, which she wanted to use to spend time with her four kids, who were spread out all over the world.

I sat down with Betty and suggested to her that they share their interests—and their feelings—with each other. Then we could look at generating options that would work for all parties (our next chapters).

But there was an issue that created an imbalance in the negotiation: Julie was the managing partner of the trust that held the land, and she had the power to do whatever she felt was best, without a vote of the four siblings. And to Betty's chagrin, Julie listed the property with a real estate agent without consulting with her siblings.

Unfortunately, Julie's action set off a maelstrom of emotions. What should have been discussed calmly between the four siblings became something of a pitched battle. Betty was distraught. She felt Julie was abusing her power and completely ignoring Betty's feelings. "My dad never would have wanted this. She is destroying his legacy." Julie, however, was adamant and felt confident in her position: "Half the siblings want to sell," she pointed out. "My other two siblings can't just stop us from selling the property when we could use the money—that's unfair."

Each side had made themselves out to be the sympathetic party, while the other was ignoring their interests and intent on doing them harm. Moreover, Julie had the authority to decide without the input of the others, and she seemed determined to do so. She had no interest in meeting with her two siblings who wanted to block the sale, so she refused to come to the table at all.

My point to them was that it didn't have to be this way. There were opportunities to salvage the negotiation in a way that everyone could win. I had seen this dynamic play out before in negotiations, especially where issues around property and money, legacy and love collide. As I told Julie, if she continued down the path she was headed, she might get what she wanted financially, but it could very well irrevocably damage her relationships with the rest of her family. She scoffed at my concerns, downplaying the potential emotional damage. It was just business, she had convinced herself. And she brushed my concerns aside.

Knowing that Julie was set on going ahead, despite her siblings' anguish, I advised Betty not to hire me. I just didn't see how I would be able to help her when her sister seemed determined not to be dissuaded. A genuine negotiation can take place only if the parties are willing to come to the table and talk. And Julie had no intention of doing that. As I found out later, Julie adjusted her position somewhat, and they did achieve something of a compromise. Julie sold half the property, while Betty held on to the other half. But neither side emerged from the battle intact. The process had become so unnecessarily contentious that Julie and Betty didn't speak with each other for years afterward. And they had spent tens of thousands of dollars on lawyer fees.

And that is the danger in a high-stakes negotiation—a hostile takeover in business, a bitter divorce, a contested inheritance or will. High-stakes negotiations often involve heightened emotions, which can end up undermining your efforts at meeting their interests and at reaching an agreement with which you are satisfied. Don't let this happen to you. Don't let yourself get sucked into a reactive response where your emotions take over—and you lose the very things you most hope to gain. We encourage you to respond rationally and strategically and to remain in control of your emotions, to fulfill your interests—and theirs.

The negotiation didn't need to end with ruined relationships and high financial costs. We don't want this to happen to you. Our purpose in recounting this story is to help you see the consequences of getting sucked into a reactive response where your emotions control you. We want you to respond rationally and strategically and thereby maintain full control. If Betty had been able to manage her emotional response and identify Julie's interests neutrally rather than negatively, there may have been an opportunity to bring Julie to the table and find common ground in the negotiation. But as soon as they both dug into their positions, driven by their intense emotions, the negotiation lost all hope for a collaborative outcome. So if you find this happening to you, remember to identify and manage your emotions from our recommendations in chapter 2. Once you've cooled off, find a way to frame all interests neutrally to bring everyone to the table for collaborative discussion in which both parties generate options—the subject we discuss in chapter 6.

Takeaways

- Knowing what the other person wants and needs is the key to making them happy. And that is the key to getting them to do what you want.
- The easiest way to find out is to ask. And keep asking. Ask for more interests, and ask what makes those interests so important.
- Just thinking about their interests is a great head start. If you are having trouble guessing, then you know what to ask about.
- Sharing your guess about their interests can go two ways. If you are right, they will feel understood, and that makes them relaxed and comfortable with you. If you are wrong, they usually correct you, and then you know more.
- Sharing interests works better when both sides are actively involved. You can start and let them reciprocate, or you can have a discussion about whether you are both willing to do that.

We realize you may be somewhat taken aback that we are now several chapters into *Never Settle* and we haven't even started to discuss how to set terms or how to fight about money. Trust us, taking the time to inventory interests—yours and theirs—sets you up for success in the next phase.

Negotiation is a process. It's complex and messy because people are complex and messy. That's what makes it infuriating and scary at times. But it can also be fun and interesting, as we hope these exercises have shown. So let's dive into the next section of the book—working through the critical components of a negotiation, starting with generating options to strike a deal with your counterpart.

CHAPTER 6

GIVE THEM CHOICES

WE HAVE SPENT A LOT of time on interests—yours and your counterpart’s—in chapters 4 and 5. We now get to dig into the meat of the negotiation and start framing out possible solutions that meet both your interests and theirs. You must be thinking, *Finally!* Yes, we finally have our foundation of a positive relationship and information on interests that we need to start constructing a deal. The kind of deal that makes both sides better off and maximizes your outcome. And what do we need to solve the puzzle that is deal construction? Options.

The Tug-of-War over Tiwintza

PERU AND ECUADOR BOTH FACE the Pacific Ocean. They also once shared a claim on some territory on the other side of the Andes mountain range, in the Amazon basin. A few hardy souls from both countries would climb over the mountains to hunt or harvest rare wood out of the forest. Their countries each claimed the land where, as best they could guess, their people had been working.

As often happens when countries expand into sparsely populated territory, Peru’s and Ecuador’s claims overlapped, much like both the British Empire and the United States claimed British Columbia and Oregon in the 1840s. In 1942, Peru and Ecuador agreed to a treaty called the Rio Protocol, setting the boundary, but Ecuadorians thought the United States had pressured them into signing it and were unhappy with the boundary lines. Later, they discovered that the boundary had been incorrectly set—before satellites it wasn’t easy to survey a disease-ridden jungle, dodging snakes and tarantulas all day. The Ecuadorians declared that the treaty was therefore invalid and that new negotiations were

needed. The Peruvians rejected their claim. The conflict got heated, and both sides sent troops into the barely explored region.

The story goes that the two groups of soldiers had no plans to fight and tried to stay away from each other. But it is easy to get lost out in the Amazon jungle, and apparently the Peruvians strayed from their base and ended up almost bumping into the Ecuadorians. The Ecuadorians discovered them and assumed that the Peruvians were sneaking up to ambush them. So they ambushed the Peruvians and killed several dozen Peruvian soldiers at a tiny jungle town called Tiwintza. Of course, the Peruvians were outraged and considered it a shameful attack. But for the Ecuadorians, it was the greatest military victory in their history. The public on both sides began to obsess over Tiwintza, the only place in the disputed zone that anyone had ever heard of.

Both governments badly wanted to end the conflict and spend their money on development, not helicopters, but now they were trapped. In opinion polls, more than 80 percent of the population in both countries opposed any peace agreement unless their country got possession of Tiwintza. Let's pause for a moment to frame what's happening here.

My Position Versus Your Position = We Both Lose

IN EARLIER CHAPTERS WE MENTIONED how most people enter into a negotiation with positions: specific demands rather than interests. Positional impasse, or that battle between two ideas, yours and mine, is a tricky spot to be in. And unfortunately, this often happens in life-or-death situations, like with Tiwintza. Which idea wins might be important. But the fight can take on a life of its own, and the decision becomes less important than who wins. One of the main tactics isn't even to boost our own ideas but rather to bash theirs. That's hard on any relationship, and it means that the winning outcome will look inferior to the people involved.

Even worse, by wasting our energy fighting a pitched battle, we lose the chance to do something better with that time: create a better outcome together.

We all know the pain of having to fight to get our way—the frustration, agitation, and lingering resentment by whoever didn’t “win”—but usually we don’t even notice how much better the outcome could have been if we had been able to work together.

Going back to our story, the president of Ecuador, Jamil Mahuad, had studied at Harvard’s Kennedy School of Government. While there, he had taken a negotiation course, so he called up his old professor Roger Fisher and asked for help. “Could you work on how we can settle this thing? I’m going to bump into the Peruvian president, Alberto Fujimori, at the inauguration of the new president of Paraguay next month. How can I start this off?”

Roger thought, and said, “You should get a picture of the two of you working on the problem together. That might start to accustom the public on both sides to the idea of a deal.”

Mahuad said, “Great—I can find a room and get a picture of me and him sitting opposite at a table, hashing it out.” Roger pushed back. “That still looks like you are adversaries, just in a more peaceful way. What I’d really like is for you and he to be sitting side by side, looking at a chalkboard or a map together.”

It turned out Fujimori was also desperate to stop the conflict. Mahuad convinced Fujimori that it might help to take some pictures together. They couldn’t find a chalkboard with a desk in front of it, but they got a snapshot of the two, sitting side by side talking.

Pretty good, but to make it even better, Jamil pulled out a pad he had been writing notes on and showed it to Alberto.

And the next day, that photo was on the front page of the main papers in Quito and Lima.

Later, Fujimori commented, “We made that picture to soften our people to the idea of talks. The strange thing was, it started affecting me too. I started thinking that Jamil and I were a team, trying to get both of our countries out of this mess.”

Holding Off on Negotiations

The two presidents hoped that first move would soften their publics’ hearts, but they were still worried. Mahuad told Roger Fisher that even holding

negotiations was politically fraught and could give opposition parties the chance to attack him for being “soft on Tiwintza.” Roger said, “That’s fine; we won’t do any negotiations. As a professor who studies international conflict, I can invite anyone I want to a seminar. We’ll have a seminar at Harvard about this war, and we’ll invite Ecuadorians and Peruvians. But nobody is negotiating anything.”

Mahuad loved it. “Perfect, I’ll send my vice president to attend.” Roger said, “Nope. Even at a seminar, your vice president represents you and your country. He has to be careful what he says. I want people who are knowledgeable and important, but not your employees. The kind of person who could get you on the phone but who doesn’t work for you. That way if they say the wrong thing, or if the public hears about the seminar and gets mad, you can say it isn’t anything official.”

They ended up making a list: retired generals and admirals, the newspaper editors of the main papers in Quito and Lima (which was also good for influencing media reporting), retired diplomats, business leaders from both countries. Because they weren’t official representatives, those people were free to talk, and to listen.

Forging Friendships

On the day of the seminar, the first task was to get the people involved to know one another and to relax in one another’s company. Rather than have them do regular introductions, Roger asked them to go off in pairs, each with a Peruvian and an Ecuadorian, interview each other, then introduce their partner to the group. When it was time for them to come back, two of them were missing. They were gone almost an hour. That really ticked Roger off. He was worried the attendees wouldn’t take the seminar seriously, and he would waste this chance.

He had a gimmick, that when he was mad he never yelled. His motto was “You can have emotions, without having to act emotional.” The way he would do that is to whisper very slowly, about what was upsetting him. That got attention. That’s what he did here. Barely audibly, he said to the two, “I don’t know if you understand how upset I am right now. We are trying to stop a war.

And that wasn't important enough for you to get back on time?" Ordinarily, people he did that to would cringe in embarrassment. These guys just smiled and shrugged. "Yes," one said, "we were talking about something more important to us. We found out that we each have a severely autistic teenage daughter. We talked about the ways we have tried to help them, and I think we each got some really good ideas."

Roger beamed at the man's response. "Oh," he said, "that's different."

And it was. The whole reason he had sent them off together was in the hope that at least one pair would find a special connection that would help them establish an alliance across the table that cut against their national loyalty. Later, there were a few moments when the attendees got mad and started yelling. But the two fathers would immediately get together and start planning how to calm everybody down (they both had practice at that) and get the meeting back on track.

Remember that foundation of positive relationships we talked about? This is an example of how crucial that step is before getting into the details of negotiation terms.

They spent a day talking through one another's interests. At that point, with the help of both governments, Roger and his team pretty much knew their interests. But a meeting feels different when you get a chance to *say* what's important to you, and they made sure everyone got that chance. And it makes a difference hearing the other side's interests from them directly, rather than reading it in the pages of a summary or a report.

Roger took the guys out to dinner, with an open bar, with the stipulation that there was at least one guy from each side at every table.

The next day they got down to business. What do we do about Tiwintza?

Options, Options, Options

A CRUCIAL STEP IN FRAMING a deal is to maximize the number of options you consider. By "options" we mean different possible things you could agree to with the other party. The bigger the list, the more likely it's going to have something

good on it. Think about different ways to solve the problem. Try to be creative. Have fun; you're just making up ideas.

Making a list on your own goes a long way toward finding options. But an even more powerful tool is working with the other party to make a joint list of good options, because it brings both of your perspectives to bear. And it can change the inevitable battle between your ideas and theirs into a team exercise in finding the best solution for both of you.

This isn't a new concept. Back in 1953, an advertising executive named Alex F. Osborn was frustrated that his team wasn't coming up with creative ideas for new campaigns. He told the team members that he wanted them to gather in groups and attack the problem jointly, a process he called "brainstorming."

Two people can come up with more ideas than one person can. Osborn's point was that they come up with more together than alone. And because they each have different experiences, different expertise, and different biases, they can come up with more variation in their joint list. In addition, both parties have their own reactions to the other's ideas, and that will likely create even more ideas.

But making such a joint list brings challenges too.

First, my attention may be so focused on your suggestions that I don't come up with any ideas myself. I'm too busy reacting to you. Second, our natural reaction to new ideas is to point out why they won't work. And now we are distracted from the task of generating more ideas. Remember, quantity counts. Last, there's a problem specific to brainstorming in a negotiation. I may be reluctant to share ideas for fear that you will take my additions to the list as a concession. Hey, it was your idea! Luckily, each of those problems has an easy fix.

Make Your Own Lists

First, take a moment to come up with your own individual list of options. Share them only once you each have a list. Once they offer up their ideas, you can devote the necessary time to thinking about their suggestions, because you've already preserved your own. Even better, suggest to your counterpart the day before that you each bring multiple suggestions to talk about.

Agree on No Agreements (Yet)

If I'm concerned that you may take an idea I come up with as an offer, I will have to be more careful about what I say. That's mental energy that gets taken away from creativity. To prevent that, explicitly agree in advance that generating options and making a commitment are two different things. You can separate them by time—creating one meeting to discuss options and a second to decide which is best. We like to start negotiations by saying, “What I'd like to do today is to learn more about what you care about and kick around some ideas that might make us both better off. But I'm not going to decide on anything today. And you have the same right. So I hope we can agree that there will be no commitment today to any of the ideas we come up with. We're just exploring potential options.” People are a lot freer tossing around ideas when they have an explicit guarantee they won't get penalized by doing so.

Don't Criticize (Yet)

The proper response to any idea, at this early stage, is to say, “Thanks for contributing; let's put that on the list.” Don't comment on what you consider bad ideas at this point. And if the other person or party criticizes your ideas, it's easy to deflect that criticism by saying something like, “You're probably right. I bet we can come up with better ones. What else have you got?” The point is to keep the idea generation going and leave the decision stage for later.

And this is what Roger did as the next stage of figuring out what to do with Tiwintza. Roger told the group that first, they were just making a list of things that could be considered, and he set the rules of engagement:

- Nobody is making any binding offers.
- There's one list of ideas, and it belongs to both sides.
- Tomorrow we'll talk about why these might be terrible ideas.

Today we're just throwing ideas against the wall. Be encouraging.

One guy suggested, “How about nobody owns Tiwintza. We build a fence around it, and nobody is allowed in.”

That led to other people tossing out ideas:

- The Vatican owns it. They have a church and a war memorial there.

— It's an international nature sanctuary; let the UN administer it.

But they needed more ideas on the list. How do we get creative in expanding our list?

Push for Quantity (Not Quality)

THE MORE VARIATION YOU HAVE in terms of the options on your list, the more likely it is that you will find the unexpected thing you are looking for. It's like a fishing boat throwing out a bigger net. You'll likely catch more fish. Making a larger and more varied list will give you more options to create more value.

There's a lovely book called *Art & Fear* by David Bayles and Ted Orland. In it, they tell the story of a ceramics teacher who divided his class in half. He told one half they would be graded on the number of objects they produced, measured by weight. He told the other half they would be graded on the beauty of only a single piece. In other words, the teacher created a pitched battle between quantity and quality—which approach would lead to the best work? At the end of the semester, the best pieces produced by the class all came from the quantity group. The quantity group gave themselves more room for trial and error—more opportunity to experiment and learn. It turns out you learn more from making one hundred bowls than from trying to make one perfect one.

But I'm Not Creative

OUR BRAINS FACE A CHALLENGE when it comes to creativity, because they are designed to think repetitively, and creativity is the opposite of repetition. So what do you do then, if you're trying to come up with a massive list of unique options? Well, creativity is about alighting on something new. Edward de Bono, a creativity guru in the 1970s and 1980s, used the metaphor of a path through a grassy field. The first time you think about something, you are walking through the tall grass. That squashes it down and makes a bit of a trail. If you cross the field the next day, it's easier to walk over the trampled grass than the untouched tall grass. So you probably follow the same route, thus making it more likely that

you'll go the same way again tomorrow. Eventually, you've worn a dirt path in the field, making it much harder to forge a new route than to follow the same familiar thinking.

The problem is, you're unlikely to find anything new traveling on the well-worn path. So de Bono's advice was to get yourself off the path and out into the weeds, where the hidden mushrooms and strange wildflowers and other species reside. De Bono theorized that the best way to do that was through random provocation. He recommended that when you are brainstorming a list of options, you will likely be more creative by picking a starting point outside of thinking about the problem.

For example, here is one method de Bono liked. Take a book and put your finger on a random word. Use that word as a starting point to suggest possible solutions to your problem. Or you can use any kind of random generation you like: AI, tarot cards, Google's "I'm feeling lucky" search tab.

Once you have that random word as a starting point for idea generation, de Bono suggests that you break down its associations to get even more provocations. Say the random word you pick out of a book is *cake*. Well, a cake has layers. It has a colorful, sweet frosting. It's made of flour, sugar, and eggs. It's often baked for special occasions—birthdays, holidays, anniversaries, weddings. Kids like it. Each of these traits might suggest a new line of thought to you in connection to the problem you are attempting to address.

Our first exercise is practicing making that joint list and then expanding it through creativity.

EXERCISE 1

Make a Joint List

Think about a mutual decision that you and the other person must agree on. Where are we going on our vacation? What city should we live in after we graduate? What kind of house should we look for? In which community?

Suggest that you make a list together. "Let's put our heads together. If we come up with a list of options or possibilities, we can look at it later and decide more easily what to do." If you have time, and the issue is important enough, suggest that each of you put together some ideas independently first and then bring them together. You don't need to take the time, of course, to decide where to have lunch, but to answer the more complicated question of where to move and raise your kids? Definitely.

Additional techniques that can help:

- **AGAIN, BE WILLING TO GO FIRST.** Make your first suggestion something that is designed to meet one of the other person's interests. "Your parents live in Detroit, so that should be on the list. Where do your brothers and sisters live?"
- **REWARD THEM FOR PLAYING ALONG.** If you give the other person a negative reaction to their first suggestion, they will be less likely to make another. You don't have to agree with their first idea, but you can offer encouragement and a little appreciation. And if it isn't that good, you can still applaud the effort. "Great start! What else should we put on the list?"
- **PLACE THE LIST WHERE THEY CAN SEE IT.** Just writing their idea down on a list on your phone excludes them from part of the process. You want to acknowledge their contribution (so don't insult them by playing editor and omitting one of their ideas). If you put the list on a pad or whiteboard in front of you, then it physically captures the idea of the two of you working the problem together. And it makes it easier to get the next suggestion, and the next.
- **RIFF OFF ONE OF THEIR IDEAS.** Use one of your counterpart's suggestions as a springboard for one of your own to drive additional creative options. Like we mentioned, their ideas can be the best ones for random provocation.

If you do it well, now you are in a genuine brainstorming session. Our suggestion: When you decide on a course of action, make it look like it was their decision, even if it wasn't. Nothing is more likely to make them agree with it. We will go into this further in the next section.

And so, they continued their brainstorming on Tiwintza, but rather than using a book for random provocation, they used each other's ideas. They started building momentum and options around what the other had said to expand the list.

- Is there some Indigenous tribe around there? Maybe they should administer it?
- Let's make it jointly owned and make it an ecotourism site.
- No one even knows where it is. It has two spellings. Pretend there are two of them. There's Tiwintza and a couple miles over is Twintza. Both countries get one.

While they were making progress generating creative options, the leaders were reaching peace talk fatigue. They were at an impasse because nothing seemed to appease all stakeholders, which may happen to you in a negotiation as well. So how do we navigate that entrenchment?

Get Unstuck: Offer Two Options

YOU CAN OFFER THEM TWO options to choose from using the list you have already created. This avoids giving them an opening to say no and instead moves the conversation in a positive forward progression. With Tiwintza, Mahuad took a couple of the options and presented them to Fujimori: How about a national park? What about swapping land?

We want you to become familiar with making this move—don't ask a yes or no question but rather offer two options for them to choose from. It is worth a few minutes to reflect on why it works so well, as that will guide you on *how* to do it.

Influence What They Focus On.

Putting out two options is a bid to focus their attention on only those two, and the contrast between them. This is helpful because it narrows the scope of the negotiation. There could be hundreds of options, but when we are stuck, that doesn't help us—we need to focus, and providing two options allows us to do that.

Give Them Agency.

Being social creatures, humans care a lot about their social position. If I propose an answer, and you agree, I'm the leader and you're the follower. If I give you a choice, and you decide, you occupy an important role. *You* are the decider, a role that has status and autonomy. That feeling of freedom is one of humanity's most powerful psychological urges. That's why parents tell their toddler that he can start making choices for himself about how to use his time. Do you want to take a bath now, or in five minutes? My son gets to choose to spend five extra minutes crashing his wooden trains, and my wife is impressed because bedtime goes smoothly.

Give Them Ownership.

Once the other party chooses one offer or another, they typically become attached to that offer. They value it more than they would have otherwise. Economists Daniel Kahneman, Jack Knecht, and Richard Thaler, who studied cognitive bias and decision-making, showed that when we are randomly given either a mug or a pen, people place higher value on the one they were given. Very few people want to trade.

A similar effect happens whenever we make a choice. Whichever course I choose is now the one that I have chosen. It's mine. And I like it better than I did before I picked it. If you make me two offers, and I pick one, it's mine—it is my decision. And because I chose it, that makes my attachment to it even more powerful. Maybe there's no actual money involved, but you can make the other person happier at no extra cost. Our next exercise is about practicing making two offers to see how you can influence the negotiation.

EXERCISE 2

Make Two Offers

In a social setting or a business negotiation, offer the other person a choice between two options. Would you rather go to this restaurant or that one? Do you want the garage door installed with a spring load or an electric motor? Broccoli or spinach? Pork or fish? You can have the senior business school professor do a talk at your conference for X dollars, or you can take his junior colleague for half that amount. Mom, I want a pet. Do you want a dog or a cat? A bird or a gerbil?

Note: The two offers should differ on more than just price. "I can sell you my bike for eighty dollars versus seventy dollars" isn't offering the other person a choice of options. It's just asking them to bid against themselves. "I can sell you my bike for seventy dollars today, or you can pay me eighty dollars next month, after you start getting paid at that new job you are commuting to" does offer the other person a choice. They can have the bike now and pay more later, or they can get a lower price if they pay for it today. The possibility for value creation lies in the differing time value of money for the negotiators. Track how often they object to the choice versus accepting one or the other. Our guess is they won't object at all. Note: This is also a great way to test for the other person's interests. If you aren't sure what their interests are, make two offers that serve different possible interests and see which one catches their eye.

But what if they imitate your behavior? What if they offer you two options? That's fine; you can choose among them. But don't forget to think about things outside those choices. Once you are both offering each other choices, you're halfway toward our next piece of advice: to work together to come up with more choices.

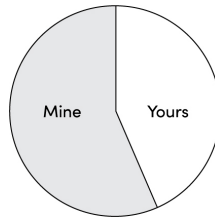
Now, President Fujimori ended up saying no to both options that President Mahuad presented. But what that allowed Mahuad to do was get Fujimori to focus on the problem to which he kept saying no, so they needed external parties involved: have some other countries be involved as guarantors, which meant that the United States could intervene if either Peru or Ecuador didn't uphold whatever commitment it agreed to. Initially, Fujimori had said no to this, but Mahuad used two options and then a lesser request to influence him into saying yes. Why was this important? It allowed them to be more creative with their options, because now there was an external "stick" that would ensure it was upheld.

So back to the drawing board they went, now with additional flexibility in the solutions. Finally, one guy, a retired diplomat, said, "So when this meeting is done, I'm going to go see my old friend from the diplomatic corps. He's in New York at the UN now. But there's a mission from my country where he lives. Although it's located in New York, for legal purposes that building is the territory of my government, just like the Japanese embassy in London is almost like Japanese sovereign territory. You could do something like that."

And that sparked another idea that could work for both parties.

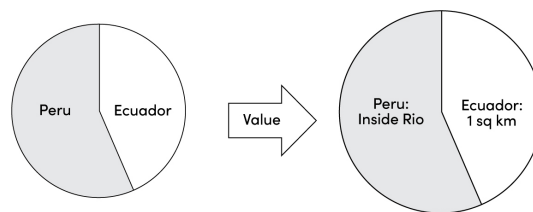
Value Creation: The Hidden Treasure

WHEN TWO PARTIES MAKE A deal, they are better off. They each like what they get more than what they give up. People tend to think that what can be "split" in a negotiation is fixed, like dividing a pie. In the research literature, people consistently underestimate the amount of value creation possible in experimental games.



But an important insight is that the *amount* of value created—that extra profit we can split—isn’t fixed. Depending on the deal we make, it can be more or less. Where does that extra value come from? From the differences in our interests. For Tiwintza, Ecuadorians considered it culturally important because they felt the Rio Protocol treated them very unfairly, and Peru needed a final border that followed the Rio Protocol.

And through those differences in fundamental interests and creative option generation, a higher-value solution was proposed based on the retired diplomat’s suggestion. One square kilometer around Tiwintza became private property of Ecuador. But the border was drawn so that the one square kilometer is located inside Peru. Ecuador can say, “We got Tiwintza; we own it, and we control what happens there.” Peru can say, “We got Tiwintza; it’s in *our* country.”



Description 2

And there was even more value created: The war stopped, nobody else got killed, and both governments spent their money on hospitals rather than attack helicopters. Roger got a medal from Ecuador. It was a big silver sunburst hanging from a ribbon made in the colors of the Ecuadorian flag. And it came with a sash of the same colored silk to wear from shoulder to hip. Once I came into his office and he was just sitting at his desk wearing it.

Make Smart Trade-Offs

ULTIMATELY, ONCE YOU HAVE GATHERED a robust and creative set of options, you still have to decide between them. Generally, in a negotiation, no one gets everything they want, which is actually good. If you take the whole pie, that means there is no value creation, but even worse, there's a likelihood that the deal will fall through. No one wants to be on the other end of a one-sided deal. So how do we figure out where to make those trade-offs? Mathematician, statistician, and game theorist Howard Raiffa had an idea on how to do this, which he called "combinatoric" value creation.

When two negotiators are faced with several decisions to make together, Raiffa recommended that they score the importance of the top options. Then the negotiation becomes a linear programming problem, easily solved with a spreadsheet with a calculation function, like, say, Microsoft Excel with the Solver function. But don't let that scare you off. It's actually pretty simple.

Raiffa was a mathematician and liked using discrete numbers, but we think the easiest approach is to categorize issues more broadly. Create values that reflect levels of appeal—low, medium, or high. That will get you close enough to getting a sense of how attractive—or how painful—an option is, allowing you to create value by trading off what she loves with what you are more flexible on.

JOHN: I got engaged to the most wonderful girl in the world. We decided to get married by the pastor in the church where she grew up, in Lincoln, Nebraska. The wedding was set for June, so when we visited her parents at Thanksgiving six months before, it was the perfect time to schedule the church's premarital counseling. Before meeting with the pastor, we were given a questionnaire designed to find possible marital problems before they occurred. As we sat in Pastor Mark's simple office, he spread the results out on his desk. "Mostly this looks really good," he said. "You have very similar values about what's important. You want the same things for your family. There's only one issue that I see: You both score very high on wanting to have your own way. That could be a problem for making decisions together." We nodded and furrowed our brows.

“Yes, we’ll watch out for that,” we said. But privately, we didn’t think that was much of a problem. After all, we were both negotiation experts.

Fast-forward five years. We lived in a small condo in Cambridge. Sheila was eight and a half months pregnant with our first child. On July 6, 1999, it was 104 degrees Fahrenheit. You may wonder why I remember that date and temperature so specifically. Being very pregnant in the heat is hard. I went to Home Depot to buy some window air conditioners, but they were clean out. So I thought I would bring my wife to Boston Harbor to walk around and enjoy the breeze. We took the ferry out to Castle Island in the harbor, where there was an old fort that was used to defend against the British. But there wasn’t any breeze in the harbor or Castle Island, just more humidity. And poor Sheila was sweating from the heat until she stopped from dehydration. I got her some water as quickly as I could and took her home on the next ferry. But the damage had been done. When you get dehydrated, your blood clots more easily. And that can stop the blood flowing through the placenta to the baby. He stopped kicking that night.

The next morning, we went to see the doctor. She hooked Sheila up to the ultrasound, and right away, to our immense relief, she detected the baby’s heartbeat. He was alive! But the doctor said, “His heartbeat is decelerating every time he moves or tries to kick. He’s not getting enough oxygen. I’m going to send you over to the hospital now.”

I said, “We’ll go home and get the bag we packed for an emergency and head over.”

The doctor looked at us and said, “How about right now? In fact, there’s no time for an ambulance. Go downstairs to the cabstand, and tell him to step on it.”

Four days later we were in the neonatal intensive care unit at Brigham and Women’s Hospital. Our son survived an emergency C-section. His platelet count had improved, so they were no longer worried about him bleeding to death internally. And his jaundice had cleared up, so he wasn’t as orange anymore. We were starting to be confident that he was going to live.

Then one of the nurses came in and said, “We have time to fill out the birth certificate. What’s his name?”

“We’ll get back to you on that,” I said. That’s when the fun started.

We had talked about names, of course, but we hadn’t agreed on one at the time of Sheila’s cesarean. Before the emergency, we thought it was easiest to put it off. After all, we hadn’t met him yet. As soon as we saw him it would be obvious, we assumed. And it was. To each of us. But with separate names.

I told Sheila that my first choice was Clarence, for Christian Slater’s character in the movie *True Romance*. Turns out, Sheila wasn’t a fan. “Are you trying to get him beat up on the playground?” But that was fine, because I didn’t really want Clarence; that was to make my next choice look better by comparison. Syd, after my uncle, who was killed piloting a bomber in World War II.

Her choices were Colby (after an ancestor of hers who ran the Freedman’s Bureau school in Arkansas during Reconstruction) or Riley, or Rye, just because it sounded cool. Then she suggested combining them to make Colby Rye. “That’s a cheese and a bread. You’re trying to name our son after a sandwich? What’s his confirmation name going to be, Prosciutto? How about Black Forest?” That put a stop to Colby Rye.

But Sheila wasn’t done. We were taking turns holding the baby and when it was my turn, I fell asleep with the baby on my chest. She called my father and asked how he felt about naming the baby Sydney, after his brother. When I woke up, she told me that my dad worried that when someone dies young, that makes it bad luck to use their name. Another one down.

This went on for several days—we both built our lists of names and discussed options. We were having fun, but the nurses were getting increasingly agitated. Toward the end we were down to Robert (mine) and Ben (hers). Naming a child was a deeply emotional and important decision to both of us. We both had personal reasons for our choices and felt attached to them. But I finally did something smart. We were stuck, and I could feel some weariness setting in for both of us. The one smart thing I did in this argument was to take a step back from arguing and get to a more rational mindset. I could tell this was important to her. “OK, your choice: We can go with Robert, or I’ll agree with Ben, and I get to choose our next kid’s name.” I could assign a lower value to this round but verbalized that naming our next child would be high value for me. She was OK with that, and we named our son Ben.

Now maybe we were so stupid or stubborn because we had just gone through the trauma of thinking our son was going to die, or because we hadn't slept for days while he was in the NICU. But I think it was an example of something important and common: deadlock. It had stopped being about the name and became about not wanting to lose.

Our advice in such a situation? Maximize value creation first, then tackle the distribution. To slip that deadlock, we had to go through the process we described above to get to value creation: generate options, expand that list creatively, narrow down the option list to the top choices, then make a smart trade-off.

Sheila and I have been married thirty-two years now, with three kids, and I'm still crazy about her. And Pastor Mark was right; while talking about interests and options help us make the hard decisions about spending money and raising kids, there is a downside. We still fight, of course, but now we also have "meta-fights." We might start arguing about who needs to go pick up the kids from the movies, but pretty soon it gets on to what I guess you'd call inside baseball: "Oh, that's how you demonstrate concern for your counterpart's interests? I guess you never heard of rule number seven of effective negotiation!"

"Me? What about you? That's your idea of using criteria?"

And when our second child did come around, Sheila, being the expert negotiator she is, decided to test the waters to see if she could renegotiate the deal. She turned to me while holding our newly born second son and said, "Let's talk about what names we're each thinking..." But I remembered our original deal and told her, "Nope, it's my turn with this one." While our negotiation was simple in the first round, and we had maximized value for both parties, I had to correct for fairness this round. And so, our second child got my preferred name, Peter.

Takeaways

THERE IS A TON OF research that suggests we leave money on the table because we don't know how to look for it. We assume there isn't any there. And we don't go

looking.

You're a much better negotiator if you have a method for looking. Crucial early steps are to know your interests and to find out theirs. Those are the pieces of the puzzle you are trying to solve. A next easy step is to develop a list of options to help solve that puzzle and capture more value.

We introduced the idea of generating options as a negotiating tool to get you unstuck when a negotiation becomes a battle of wills. And it does that quite effectively. But as we hope you have seen, the real brilliance of option generation is the way it creates more value for *everyone* involved. And that extra value doesn't come out of anyone's pocket. It is a gift that you and your counterpart give to each other. All you need to do is reach out and use a little cleverness, systematically deployed. We believe you'll get your money's worth on the price of this book the first time you use it.

Creating value by learning your interests and the other person's interests, and generating additional options, however, doesn't solve all your problems. You will make a bigger pie that way. But you still have to cut it up. And that part of negotiation—distribution, or value division, as we refer to it in the classroom—is the part that everyone hates. But we have some help for you there too.

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CHAPTER 7

USE CRITERIA TO DECIDE WHO GETS WHAT

THE LAST FEW CHAPTERS HAVE been about the parts of negotiation that our students love when they study them. You can make everyone better off by learning their interests and coming up with the most elegant solution that creates value. But the hard part is still waiting for you. You still must divide whatever it is you are negotiating over: money, workload, time.

We Hate Arguing About Money

THERE'S A PART OF NEGOTIATION that's about making the best possible deal between two parties, and then there's the part about who gets how much. Academics call this second part "distributive negotiation," or "claiming" versus creating. The part where you fight about money. That's the part that makes people feel queasy, the part they actively avoid. And that's because of our emotional reaction to it.

Why? We Get Scared.

JOHN: Kids in my family mature slowly. Growing up, I was shorter than my classmates, and scrawny. I tried to make up for that by proving I was smarter, so I always raised my hand to the teacher's every question. Whether because I was such a mouthy twerp or just because the culture was different back then, I got beat up a lot.

One Saturday I biked over to the school playground with my brothers. They were playing a game with some other kids. I went off to the rusty jungle gym to

hang upside down and daydream. A bigger kid, a couple of years older, showed up and announced that this was his spot and that I had to leave. “I got here first,” I told him.

“Get out of here before I kick your ass,” he explained helpfully, and pushed me in the chest with two hands, the standard ritual before starting a fight. I was so sick and tired of getting bullied that I snapped. “No, *I’m* going kick *your* ass! You want some? Let’s go!” I probably added some other thirteen-year-old tough guy talk. Just as I started to think that this was a bad idea, the strangest thing happened. His eyes bulged out, then his gaze dropped. His whole expression went from anger and contempt to... fear. Somehow, he was afraid of me. He turned and left. I had stood up for myself, and it worked! I couldn’t believe it.

Exultant, I turned around to tell my brothers the news. I didn’t get one step before I bumped into my big brother Jimmy, who had been standing right behind me. He was holding a street hockey stick, and had his mean look on his face. *Shoot*, I realized, *I’m not the one who scared him off*. I was still happy that I had stood up for myself. But I didn’t think I was up to scaring the bullies off yet.

In the years that followed, I grew a foot taller. I started lifting weights—a lot. I joined the wrestling team in high school, studied martial arts in college, and signed up for a boxing club in law school. And I waited for the day when some other bully would pick on me. I would demolish him. But that moment never came. When you are ready for the worst, you act a lot more relaxed. And a lot fewer people want to try you.

But I always remembered that sick, shaky feeling of being afraid of an aggressor. And I felt that feeling again the first time I went to buy a car, when I was twenty-four. The salesman I was introduced to must have been sixty and was much taller than me. I told him what I was looking for, and he said, “I have the perfect car for you.” Looking at it side by side, he put his arm around me—which was really uncomfortable. “Because I like you,” he told me, “it’s only nine thousand dollars.” I didn’t know what to say, but I recognized that queasy feeling. I knew that I couldn’t accept that price. But I had no idea what else to say.

I felt the same kind of fear in that negotiation that people feel before a fight. And I wasn’t alone. We’ve talked about how the research shows that anxiety

about negotiating is almost universal. And it hinders our performance. And like we discussed in the emotions chapter, we can also become filled with fear or anger.

What pretty much all the behavioral economists and social psychologists agree on is this: People are not “rational.” The study of economics posits that humans are “rational value maximizers”—they act in a manner that they calculate will get them the greatest return. But it turns out that isn’t true in real life. People make decisions based on their emotions. How they feel about an offer makes a bigger difference than whether it increases their net wealth or not.

But We All Care About Fairness.

People aren’t just irrational; they are irrational in predictable patterns. One of these concerns has to do with fairness. People hate being treated unfairly. When they are treated unfairly, they get angry, and they look for revenge on the person who treated them unfairly. They also (though less strongly) want to be fair themselves. Experiments show we are willing to leave money on the table with an offer that is perceived as unfair. We care more about how we are treated than we care about the actual dollar amount.

Wait, Did I Win?

JOHN: Like a lot of American college kids, I did a year abroad. Madrid, Spain, in my case. During a break I took the train and ferry down to Morocco. While there, I discovered these rough-spun woolen jackets, called “djellaba.” I thought I would look cool in one walking around campus back in the United States. So I went to a lot of shops and spent a long time bargaining. Finally, I got one for seventy dirhams. On the train back to Madrid, I was sitting next to a French Canadian girl wearing the same thing. She asked, “How much did you pay?” I smugly replied, “Only seventy dirhams.” “Hah!” she shouted. “I paid thirty-seven!”

Now, my djellaba was worth more than seventy dirhams to me. I wouldn’t have exchanged it to get my seventy dirhams back. But suddenly I felt like a complete idiot, a loser with that slight queasy feeling creeping up again. And that is true of a lot of people in a negotiation. They often leave a negotiation full

of doubt. How many times have you walked out of an agreement and asked yourself, “Wait, did I win?”

Now, perhaps you are different—maybe you enjoy these kinds of negotiations. Maybe you don’t get sick to your stomach, mad, or confused. You are clearheaded throughout. That’s great! Congratulations. This chapter, however, is for the rest of us.

And the key insight is, all the terrible things about distribution—about who gets what—come from the battle of dominance between our ape ancestors tens of thousands of years ago. Typically, we are ruled by our emotions in a negotiation, wondering how tough we dare to be. The good news: You are not an ape. You have a wealth of resources available to you that they didn’t have. You can draw on culture, philosophy, morality, books, podcasts, lectures, motivational speeches, and webinars to guide your way. Remember, you are looking to provide reasons for the other person to say yes to your offer.

We Let Ourselves Be Ruled by Our Feelings

PEOPLE INSTINCTIVELY CARE ABOUT FAIRNESS. It is hardwired into our brains, as opposed to something we are taught. Scientists have identified similar behavior in other large primates. Primatologist Frans de Waal has described cooperative hunting by chimpanzees. A group of chimps will surround prey in a tree, for example, and then close in. Whichever chimp catches the prey will share it, but only with the other chimps who helped in the hunt. If a chimp helped in the hunt and the hunter that caught the prey won’t share it with that chimp, all the other chimps are outraged. Similarly, if a lazy chimp who didn’t help in the hunt tries to cadge a bite, the other chimps are united against him in telling him to get lost. Our beliefs about fairness are reinforced at home, as early as when we’re in kindergarten, as well as in our churches and mosques and temples. The desire for fairness goes bone deep.

But how do we know what equal division looks like? For example, what is equal division when buying a car? The “players” in this case are in different situations. And they each have different facts. In such complex situations, how

do we determine what is fair? In real life we get ideas about fairness from religion, philosophy, and law. People study human interaction and past practices for ideas about what is fair. Anyone who has two or more children has seen this dynamic in action. “You made me wait until I was eight to get a bike, but you got one for Sally when she was only six!” People are natural analysts and rule makers. It’s hard to make your counterpart in a negotiation not care about fairness. But convincing them what is fair? That’s your opportunity.

JOHN: Deciding who gets what—what we call distributive negotiation—was scary to me. When I walked onto that used car lot in my twenties, the salesman, who was older, bigger, and taller, leaned into me and told me nine thousand dollars was a great price. I had no way to know whether this was true or not, but I had taken Bruce Patton’s negotiation course in law school. He suggested that we should use market standards, or criteria, to determine the price. For a car purchase, that criteria would be something like the Kelley Blue Book, which would give me a relative range, depending on the model, year, and condition of the car. But this was long before Kelley Blue Book was available on a smartphone, and I didn’t have the Blue Book with me. However, Patton had also taught us something else. “Criteria is a sword but also a shield. You can protect yourself from their number by demanding that they justify their offer with criteria, and tell you where their number came from.”

I realized the sales guy knew the Blue Book price. And I could try to get that out of him. So I asked him point-blank, “How did you decide on the price of nine thousand dollars? Where did that number come from?” His face dropped. He fumbled for a moment, then the next thing he said was “How about eight thousand dollars?” The queasy feeling started to subside, and I was able to take a deep breath, my entire body relaxing. I had shielded myself by asking for data; I no longer felt anxious and pressured by a “good deal.” In the end, I didn’t buy a car that day—I realized I didn’t trust the guy. He never gave me an answer about where he came up with the number or why he dropped so much so quickly. And I came away from the exchange with something much more valuable. I had learned that deciding who gets what was a game I could play successfully, thanks

to this criteria thing. Having these external standards or benchmarks was like having my big brother standing behind me with a hockey stick.

Today, distribution isn't my favorite part of negotiation, but it has become routine and low stress. This is how I do it now.

I get a call from an investment bank. Let's call them Morgan Deutsche Barclay Goldman. Someone at MDBG is looking for a three-hour speaker for a weekend retreat of their M&A department and heard from a friend at another bank that I did a great job for them at theirs.

Before discussing my fee, there's a lot of information that I need to gather. How many people are coming? Do they all know one another, or are they coming from different cities? What makes the bank want to have a negotiation component? What kind of negotiations do they do? All that stuff about their interests is crucial for value creation, but it also comes in handy for a distributional negotiation—a discussion about price—as well. The more my services are worth to them, the more I can ask for.

Use Benchmarks to Figure Out What's Fair

EVEN HIGHLY TRAINED NEGOTIATORS OFTEN leave the distributive part of a negotiation for last, because it can feel so unpleasant. A study was done that said 60 percent of Americans don't talk about money. It is culturally taboo to bring it up, and because of that we never learned how to bring it up, which means we become highly uncomfortable when we do need to in a negotiation.

But there are a lot of things that can help you negotiate better. We're going to take you through how to make you stronger and braver in that conversation. But the first thing we want to give you is the move that makes the other person back off. And that's what using criteria—that is, market standards or comparables or benchmarks—does.

In the classroom, when we refer to what we call "criteria," we are referring to a reference point—a standard, a benchmark, a comparable, like using Glassdoor to see what others get paid at various companies and in various roles. In real estate, a comparable is a similar house (with several similarities like location,

square footage, yard size, amenities, etc.) in your neighborhood that was sold recently. Having several valid comps means that the price the seller put on the house isn't just made up out of thin air—there is a basis for the price, which relies on valid data. Kelley Blue Book serves that function when it comes to the price of a used car, and Zillow does the same thing for real estate. But there are many kinds of standards or criteria, some external source of information that you can point to and say, “That’s why what I’m asking for is fair.” In other words, it’s a way to get the other person to say yes to your offer—or to show them why their offer is too high and persuade them to come down in price.

JOHN: The year before our son Ben was born, we were looking for a condo in Cambridge. Sheila loved the jacuzzi tub in the primary bath of one place we saw, so we were motivated to try to buy it. We made an offer on the condo contingent on getting a building inspector approval. The building inspector pointed out to me that the water heater in the basement of the building held twenty-five gallons, but filling the tub took sixty gallons. So I called the developer who had bought the place and fixed it up to flip it. I said, “We have to knock the cost of a bigger boiler off the price, or the tub isn’t usable.” The developer said, “I’ve been fixing up houses for decades. You’ve never owned any property before. That boiler is more than big enough for the tub.” I figured there was no way this very experienced guy was going to back down to a twenty-eight-year-old kid who had never bought a house or a condo before. Even if I was a lawyer (albeit one who had quit his prestigious New York City law firm to make \$8.50 an hour as a researcher), no amount of chest pounding was going to help me here. But I had been playing around with using criteria in negotiations for a couple of years. So I asked the developer, “Does the tub manufacturer have a recommendation on the size of the water heater?”

He paused, and said, “OK, I’ll have a bigger boiler put in by the weekend.” Because the manufacturer was standing behind me with a hockey stick. Now the negotiation wasn’t a face-off between me and the developer; it was the developer versus the manufacturer of the tub in question, who is much more knowledgeable about the water tank requirements than either the developer or

me. The developer can tell me I don't know what I'm talking about, but he can hardly say that about the people who made the tub.

Why Do Benchmarks Work So Well?

When You Use Them, the Other Side Knows You Are Less Likely to Back Down.

ATTIA: I landed my first job out of college working for IBM as a management consultant, based out of San Francisco. Feeling great that I had a job lined up, I graduated early so I could spend the spring semester traveling and headed to Australia and New Zealand for three months with just a backpack and a sense of adventure.

Two months into my trip, I received an email from HR: We are changing your home office location to New York City or Chicago instead of San Francisco. That was it, the full extent of the information provided. I was flabbergasted, then livid. I had chosen the job because it allowed me to live in San Francisco. I wanted to eventually work at a start-up, and a professor advised me to get a job in San Francisco because of its proximity to the Silicon Valley start-up community. It would be much easier to make my way once I was there.

I was ambitious and had big plans. The email had thrown a wrench into my future. I found an internet café and called my parents, asking, "What should I do?" My dad, an immigrant who wanted a good, stable job for his daughter, told me I had to accept the change in location. "Don't rock the boat," he told me. But that has never been my style, which I get from my mom. She has always told me never to settle.

So I emailed IBM's HR department, using criteria as my shield against their change in plans. I told them that the terms of my employment had been made six months ago. I had already made my plans for the move to San Francisco. I told them that I was unsettled by the change in the terms of our agreement, referring to the contract I had signed. And then I asked them for their help—could they figure this out?—as it was very important to me.

The woman in HR told me she would have to check with the management team but that space in the San Francisco office was limited. I decided to wait it out. I had said my piece—the ball was in their court. And she got back to me one day later. She said that they didn't realize I had “finalized” my decision to move to San Francisco and thought I was open to New York or Chicago. They apologized for the confusion and agreed that I could remain with San Francisco as my home base.

I was incredibly relieved. With limited space in San Francisco, they had probably sent similar communications to many others to see who would accept the move to a new location. Holding my ground and relying on objective criteria—in this case, the terms of my contract with the company—helped to shield me against their change in plans.

I was so glad I did, in the end. Not only did my next job after consulting for IBM end up being a start-up based in downtown San Francisco but I also met my best friend, Caroline, in the city.

Using Criteria Helps You Save Face

One of the universal problems in negotiating is that no one wants to back down or lose face. In chapter 6, we saw that if there is a disagreement about whether to go with your idea or mine, we can escape that trap by generating more options. But what if we agree on what the basic deal is and just disagree on the numbers? I want to buy your skateboard, and you want to sell it, but at what price, yours or mine? Again, the best answer is “neither.” Finding a criterion allows me to say, “There is a number that isn't *yours* but instead is set by an objective outside source”—and by objective, we mean the outside source feels fair to all parties.

The ability to sidestep the painful struggle between one person winning over another is only one reason benchmarks work so well. As we shall see in more detail below, there are other explanations for why criteria are so effective, including Daniel Kahneman and Amos Tversky's work on anchoring, Thomas Schelling's work on salience, or prominence, and Robert Cialdini's work on social conformity. But knowing that criteria work still leaves us with some obvious questions:

— Where do I get these standards?

— Which one should I pick?

JOHN: In negotiating my speaker's fee with the investment bank, the first concern I have is that I must be careful to charge enough. I almost lost a great gig that way back in the day. A prestigious law firm in Boston was looking to hire someone to teach negotiation to their new associates. A former TA of mine from Harvard Law was working there and had been put on the committee to choose the right instructor. Since it was in town and I had friends there, I sent them a proposal with what I thought would be an attractive number. My old TA called up and told me they were going with another guy who had just been appointed to a negotiation lectureship at Harvard. I was a little shocked. "Why would they hire B____? He doesn't have the experience and isn't nearly as good as me!" My friend said, "That's what I told them. But his bid is for twice as much, so they assumed he was better." I quickly sent them another email, apologizing for a typo in my bid, explaining that my actual bid was for three times as much. And I got the job.

Sometimes it helps to emphasize that your services don't come cheap. "I don't know how familiar you are with this market. The prices can be pretty steep." In similar conversations on the phone, my wife likes to preface the number by saying, "Are you sitting down? I don't want you to fall over when I tell you the price." That way, when you say the actual number, it's probably less than they were prepared for.

OK, so I'm going to quote them a high number, but how much? My limitation is this: If they ask, "Where did you get that number from?" I want to have a ready explanation. In my case, that's easy. There are a lot of other Harvard and MIT faculty who teach negotiation. Having worked at both, I can use examples from either as a standard. There is a price gap between tenured and adjunct faculty, so I have to stick to the adjuncts. But that still gives me a lot to choose from. I can tell them, "My price is the same as my former colleagues', who work at Triad Consulting, or Conflict Management International." Since I've worked with both those places, it is easy to justify being in the same price range. And they are happy for me to use them as a benchmark. The last thing my

colleagues there want is for clients to pay less for my services if I'm working on my own than they would if I were working as a subcontractor.

Learn to Search for Benchmarks

ROGER FISHER LOVED TO SAY, "It's a lot easier to be assertive when you have something to assert." A key skill in a negotiation is to find something to assert before you go in. The internet has made searching for information, including legal precedents, possible for anyone, not just lawyers. Get in the habit of using it as an essential research tool. There's Zillow for real estate prices, Glassdoor for corporate jobs, and Kelley Blue Book for cars. There was a great one for legal salaries called Greedy Associates. You can even use AI to help you in your search as a starting point, but make sure you validate that its results are relevant and legitimate. Find out what it is for whatever you are looking for. But there are ways of searching in the real world too. You can ask people who have worked in that trade or industry—plumbers or furniture makers or mechanics or otherwise who have special knowledge about it. The more you learn about standards and precedents in the fields and subjects that matter to you, the better armed you are. And the easier it will be to look for standards in novel situations.

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EXERCISE 1

Learn to Search for Criteria

There are a lot of resources you can use to look up what things cost. Get in the habit of looking them up online. You will get faster and more creative at it the more you do it. You can also ask people in the businesses you patronize. It makes for an interesting topic of conversation. You can always say that you are “asking for a friend.” Or get on the phone and start calling. For example, try researching the price on:

- 2015 Ford F-150 XL package, crew cab, 110,000 miles
- What piano teachers are paid for hour-long private lessons in your region or city
- Repairing your laptop when it is infected with a virus
- A seven-foot-tall ficus in a thirty-six-inch pot
- How much it costs for three hours of babysitting time on a Friday evening

Once you’ve researched the list and gotten your answers, set it aside for a day. Then, if you really want to prove your mettle, do it again, using different sources. When you look up criteria, think about how many different sources there are. Is there a lot of variation in the answers people provide? What’s the most reliable source for your situation or circumstance? Are you the buyer or the seller? What’s the best source in terms of benchmarks for your counterpart? You want to know what they might bring up (usually it’s more favorable for them) so you’re not caught off guard by criteria you weren’t expecting. If you’re looking up the car, perhaps you start with Kelley Blue Book. But then you realize that there is also Carvana and Edmunds. And even further, you could also check Craigslist and Facebook Marketplace.

Now, you’re ready to apply those skills to your own decisions. Next time you are thinking about making a major purchase, find several prices. Then, look up the price from the store or dealership at which you were thinking about buying it and compare what you found versus their price.

We want to encourage you to get in the habit of looking prices up. It is something you should do every time you are trying to determine the price or value of something you are buying or selling. And something that you should budget time and energy for up front. Take the guesswork out of your negotiation. You will find that often the easiest path is to ask an expert who knows about that sort of thing—or at least can tell you where to look. If you find yourself negotiating a lot, you will likely start to build a “directory of knowledge” about your social network: in other words, who knows what.

If You Can't Find a Standard or Benchmark, Create One

USUALLY, YOU CAN FIND A standard or benchmark by searching the internet or looking it up in the relevant reference book or asking people who are experts in the field, from an experienced car mechanic to a plumber. But sometimes there aren't any readily available standards. The item might be too unique or too personalized to find a standard price, like a signed antiquarian book or a guitar once owned and played by a famous musician. So what if there isn't an obvious path for finding objective criteria?

ATTIA: My husband needed to negotiate a lease on a farm, and the client asked for it to be pegged competitively to market rate. Well, no one around us leases farmland, because farming is such a hard business to be in that the economics don't work. So there was no market data available to compare to. He thought on it for a while and then found a couple of ways to look at it. First, he asked an assessor to come take a look at the property and give a value on the different structures: barns, a couple of rental houses, and a spray shed. Next, he found an agricultural economist to give some insight into the value of leased farmland up here. Using those data points, he came up with a market-based lease price through external experts.

So if there isn't a website you can easily go to that provides you objective criteria, start searching for other third parties who have expertise that they could provide. Remember, it's important that both sides agree that those experts will provide fair information. We have found that you can almost always find some experts on whatever subject you're negotiating; it just might take a little time and creativity.

Criteria can not only be found but can also be *made*. Try comparing the product or service to something similar. Assess the costs of making whatever it is that you want to buy and add a reasonable markup for labor and overhead.

Let's say you want to buy a custom-made, one-of-a-kind tapestry from an artisan while you're on a trip to Mexico. But you have no sense how much a weave like that would cost. Or you stumble across a magnificent weave on your trip but have no easy way to determine whether the price is fair. You may not be able to find an exact price in this case, but you could look up weaves made in Mexico of a similar size, as well as what artists tend to charge for their labor and overhead. That might get you close to a fair number.

Our next exercise is designed to give you practice in doing this.

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EXERCISE 2

Building Criteria

Practice cobbling together a standard for the following situations:

- Sharing a three-bedroom apartment with two roommates. One bedroom is twice as big as the others and has its own en suite bathroom. Say the rent is four thousand dollars a month for the whole apartment. How much should each of you pay? Should rent be split in an objective way? Should the financial circumstances of the others—your future roommates—come into play? Perhaps you are working full time, with a good salary, and roommate is a PhD student?
- Your niece is passionately interested in oil painting. She needs cash to purchase more art supplies. Some of her stuff is meh, in your opinion, but one of her canvases, a 36" x 40" landscape of a snowy woods at night, is beautiful and would look fabulous on your living room wall. What would you offer her for the painting, and how would you explain how you valued it? Would the price you offered seem fair to her?
- You need childcare for your daughter while you are at your job as a dental hygienist. You can't afford full-time day care. Your sister-in-law is a stay-at-home mom who watches her own kids while her husband is at work as an electrician. What should you offer to pay her? How would you talk to her about setting a price for care? Have you looked up how much day care in your area costs?

Once you get used to crafting criteria in these kinds of made-up situations, you are ready to do it in the real world when a situation arises without obvious criteria.

If You Can't Find a Fair Standard, Use a Fair Method

SOMETIMES IT ISN'T EASY TO find a standard that will help you agree on an answer. But at least we can agree on a *way* to decide. As parents know, kids can argue seemingly endlessly about their disputes. A smart parent finds a way to head off the fight, sometimes before it starts. Is one of your kids complaining about being stuck in the middle seat in the back, claiming they had to sit there last time? Suggest a game of rock-paper-scissors to settle the dispute. Or if the child who complains really did sit there last time, use that as a reason for one of your other kids to take a turn. What if the circumstances are different—this is a six-hour drive to Grandma's rather than a quick trip to the grocery store? Suggest that each child take a turn for two hours and let them change seats when you stop for gas or snacks or to use the restroom. Are two kids splitting a single muffin? Suggest that one cut and the other pick. But this kind of approach doesn't only work on kids. It can be used to address all kinds of adult problems too.

ATTIA: I'm a decisive and action-oriented person, and my husband is very good at going with the flow. The balance is a huge asset to our marriage, most of the time. But occasionally I get decision fatigue, especially around choosing what we do for date night. So now, we have a process: We alternate planning date nights. If he's in charge of planning, he gets to choose whatever he wants, and I don't get to complain.

EXERCISE 3

Paper Covers Rock

See if you can invent a fair process for the following problems:

- You work on an ambulance crew in a major city. Last week several people you transported were hospitalized for stomach flu. Now half of the EMTs in your service are at home sick. After you drop the last patient from your shift off at the hospital and head back to the garage, your boss tells you and your partner, “Sorry, but we’re short-staffed over the weekend. I’m going to need one of you to work on Saturday.” You don’t want to work the extra day and neither does your partner. But you both know that without the extra ambulance crew, people could die. What do you do?

As you become familiar with coming up with fair processes in hypothetical situations, move that skill into the real world. Is there a decision facing you and someone close to you? Or a work-related problem you and a colleague must resolve? What kind of criteria can you suggest to act as a benchmark? If the other person doesn’t like your suggestion, ask them to come up with something else.

Once you have become familiar with finding or making standards, you are ready to try to resolve an argument or negotiation and convince the other person to accept your criteria. But that's only half the battle. You still have to deploy these criteria in a way most likely to get you success. For example, if you are walking into a meeting with your boss to talk about your upcoming raise and you have some criteria supporting the fact that you should go from \$120,000/year to \$150,000/year, how do you bring that up in the conversation?

JOHN: After I give the investment firm the price for my presentation, I stop and listen. Sometimes they say, "OK." Sometimes they say, "I'll have to talk to some people." I say, "That's great, let me know if there is any other information you need to help with your internal talks." If they aren't actively pushing back, don't jump in and mess things up by negotiating against yourself.

But I'm prepared for them to push back. And I have a lot of backup arguments depending on what they say. One common response from the client is "How can I justify [to my boss or our committee] that you are actually worth it?" Again, I use a price comparison, but this time not a comparison to competitors. Here's where the earlier inquiry about their interests helps. I tell them, "You are going to fly two hundred people in, some of them from Europe and Asia, and put them up in hotels in New York. I'd guess that's a *lot* more than my fee. And the travel expense is nothing compared to the cost of their time to your business. I'd think you want to make sure it feels worth their while. If you'd like, I can put you in touch with some clients from your industry who could speak to that."

"Sure, sure, but I'd still like to get your price down," they might say.

"I understand," I say. "That makes perfect sense. But tell me, would you rather your people learn negotiation from someone who is able to get a good deal for himself—or from someone who can't do that?"

And if they say, "Oh, that's beyond our budget"? I say, "I understand. Let me know how much you can afford, and I can try to help you find one of my junior colleagues who hasn't done as much of this work and is eager for the

opportunity.” If they bite on that, it gives me a chance to do a favor for a friend who is in an earlier stage of their career. That’s a great outcome too. But if they still want me, the fact that I offered to give the job away suggests that pushing me any further on the price will have a low chance of success. Clearly, I have other alternatives. I’m not desperate to make a deal.

Anchoring: Should I Go First?

IT’S LONG BEEN CONTROVERSIAL AMONG negotiation experts whether being the first one to make a price offer is a good strategy. In the 1960s and 1970s, the consensus answer was no. The old sales admonition was “He who speaks first loses.” The argument against going first is that you might offer a number—an anchor—that is worse for you than what your counterpart was about to offer, and you will end up losing value.

JOHN: When I was teaching at Harvard Law, a cross-registrant from the education school told us about his salary negotiation. This was during the dot-com boom of the 1990s, and he had applied for a job at an online learning start-up. He had been a public school teacher and had no idea what salaries were in the tech world. He went into an interview and told the people recruiting him, “Your competitor has offered me \$100,000 to work for them [they hadn’t]; if you want to hire me you’ll have to beat that.” They looked at him with an odd expression on their faces, and said, “Our standard offer for people in that position is \$183,000. You say the competition is offering \$100K? That’s... surprising.”

Our point? If you don’t know what you are talking about (i.e., you didn’t do your homework and don’t have any data on criteria), going first is a bad idea. And if the other party doesn’t know what they are talking about, you might get lucky by letting them go first. If you sell jackets in Spain and an American student comes in looking for a jacket, by all means, let the student make the first offer.

There were a series of experiments done by Daniel Kahneman and Amos Tversky to delve further into the idea of anchoring or putting a number out there first. Subjects were asked to estimate a quantity, say, “How many countries are there in Africa?” They then activated a spinning wheel that would land “randomly” on either the number ten or sixty-five. It turned out the subject’s guess about the number of African countries was strongly influenced by the random number they were exposed to. Kahneman and Tversky called this “the anchoring and adjustment effect,” although nowadays most people call it simply “anchoring.” They argued that when determining a number to call out, people must start somewhere and then move their estimate. But they usually don’t move that much from the initial number they offer. So controlling the starting point often plays an outsize role in who controls the outcome.

A great deal of research has been done showing that the first number mentioned in a negotiation has a similar impact on negotiation results. The effect might be even stronger, in fact, given people’s fear of conflict. It’s easier to just agree with them, or push back a little, than it is to take a strongly different position.

How Much Do You Know?

So now that you know about anchoring, should you go first? Well, it depends. Are you well informed about the market? Are they? Do they understand market criteria and alternatives, or not?

Our advice? If they understand market criteria, and you don’t, keep your mouth shut and let them go first. Maybe you’ll learn something valuable from hearing their first offer.

And if neither one of you understands the market criteria? Probably best to go home and do more research before negotiating.

But what if you understand market criteria, and they don’t? Well, you might be able to take advantage of their ignorance. Whether that is a wise move depends in part on your long-term relationship with the other person or party. If your family business is based in Marrakech fleecing rich tourists from other countries who you’ll never see again at your knickknack shop? Sure, go for it. The tourist can probably absorb the extra cost. If the other person is your wife,

however, or a close friend or business partner? Think through your actions more carefully before taking advantage of their lack of knowledge. And sometimes your decision is more than mere calculation. Maybe you have a moral objection to taking advantage of someone who doesn't know the landscape. We encourage that kind of thinking.

ATTIA: I hired a high school kid to come mow my lawn every week, and he asked me what I'd be willing to pay. At the time, minimum wage for minors was \$10.61/hour. But my lawn is terrible—there are steep parts and tree stumps. Sure, I could have offered somewhere around that range, but what would happen when he realized he could get \$15 elsewhere (a couple of my neighbors told me that's what they pay)? I would have lost my lawn mower. So I offered him \$17 per hour, and you know what? My lawn looks perfect every week, he takes care with my plants and mower, and he tells his friends that I'm a good employer when I need more help at the cherry stand.

If both parties know the market criteria—you're an investment banker from Morgan Stanley and she works at Goldman Sachs? Then by all means go first and use the advantage of anchoring.

What Are You Comfortable With?

Then there's the question of what you're good at. Former FBI hostage negotiator Chris Voss suggests that you always let the other person go first. Of course, he's been trained to be a lot more observant than most of us, and he's an absolute rock in terms of not being affected by the other side's anchor. He can probably ignore the anchoring effect more successfully than we can. Try one of the methods below and see which one feels more comfortable:

- If you are particularly adept at making a persuasive case with criteria, that may be a reason to go first.
- If you are good at not being affected by the other party's anchoring offer, you could let them go first.

There are several considerations to think about in terms of who goes first in a negotiation. But realistically, that's not how people decide on a negotiation strategy. Often, people decide on their strategy based on their feelings. What

guides most people's choice of strategy is fear. They may not want to go first because they are uncertain and afraid of making a mistake or saying the wrong thing. Once an anchor is offered, however, we usually don't move too far from it. We are afraid of making too much of a fuss or of demanding too much in the negotiation.

Whether you go first or not, we don't want you to make that calculation out of fear. Our goal is to make you capable and comfortable about going first, or nudging the other party to do so, and reacting in a way that will work for you.

Make the First Move.

Whether you choose to go first in a particular instance or not, it behooves you to be comfortable and highly skilled in doing that. Your choice should be determined by the strategic situation in which you find yourself, not by what you can or can't do. We want you to practice going first so you're ready for it should the need arise.

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EXERCISE 4

Let Them React to You

In a negotiation over who gets what, be the first to suggest a division. For example:

- You're taking over the lease for my apartment and you want to keep my refrigerator. I want to suggest a price first, since I know what I paid for it and how long I've owned it. In this case I tell the new renter the price is two hundred dollars.
- We both have things we want to do this weekend, but someone has to watch the kids. I start with my ask, which is that you to take the kids Saturday afternoon so I can see my sister, whom I haven't seen in a while.
- We agree to split the cost of dinner with another couple. But we ordered a bottle of wine, and the other couple didn't have any. So let's suggest we pay seventy-five dollars and the other couple pays fifty dollars.

Remember, after you make your suggestion, give the other party a chance to respond before saying anything more.

We've just focused on the first move, above. If they don't agree, that's fine; ask them what they think is fair. What we want you to get a feel for is how often people will agree, and how easy it is to get them to go along with your initial suggestion.

In a Social Situation

Most of us don't handle actual price negotiations every day. If that's true for you, find a similar challenge. The same techniques, for example, can be used in a social situation. Let's say that your friend group has to decide something—when to next get together. What book to read as a group. Where to meet up for dinner. Which movie to see. Or let's say you are planning a vacation together with your adult siblings, so the kids can spend time with their cousins. Make the first suggestion about where to go, and for how long. You don't have to insist on your suggestion, just be the first one to put out an idea. If you don't usually do this, you may find it a little shocking how often people will agree. Certainly, they will appreciate the effort. Just making the first suggestion gives you a sense of power and control over the process. And we want you to feel that aspect of the process. But truly good technique requires more.

It's Right Because...

ELLEN LANGER, PSYCHOLOGY PROFESSOR AT Harvard, conducted a groundbreaking study in the 1970s that highlights the importance of giving people a reason. Her study showcases the importance of criteria. In the study, she had three test cases with two iterations revolving around people cutting in line to use a copy machine. The first variation was cutting in line to make five copies of a single-page letter; the second was to make twenty copies. The other variation was offering no explanation versus offering basic info (I need to make copies) versus offering some explanation (boss needs it fast) as to why they needed to cut ahead.

So what's important about the test? Langer was trying to understand two things at once. First, does the “type” of reason matter when asking for a favor, and second, does the weight of the ask impact the person's request? Her findings are fascinating. It turns out, *both* the reason and the weight of the ask matter. We're tapping into what people will agree to without feeling put upon or pushing back (what their brain is used to saying yes to).

Langer found that if you give people “real info” with an explanation that makes sense to them, they will help you, even if you're making a bigger ask—if you said you're in a rush because your boss needs it quickly, they are OK with cutting for twenty pages of copying. If you give people little to no explanation, those in line will tend to agree to a small ask (cutting for five pages of copying) but not a big one.

To us, the study perfectly illustrates a profound point: Giving people real reasons to say yes—the *why*—increases their likelihood of saying yes. We have so much going on in our worlds that our brains process a lot of information systematically, so it doesn't have to work as hard to make minor decisions. If our brain is given a request and a plausible reason or explanation, our tendency is to acquiesce, Langer argues, because our brain is wired that way—it is used to agreeing to that kind of simple request as long as it doesn't cost us too much. Remember, our brain wants to save energy whenever it can. Providing objective criteria (i.e., a logical/rational reason) is the perfect shortcut for someone to agree

with the request, without having to think much about it, and move on to the next issue.

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EXERCISE 5

Give Them a Reason to Believe

In a social group: In getting your friends to agree on a restaurant or movie, make a suggestion, and attach a story to it. "We should get Mexican food because it's November 5, which is the half birthday of Cinco de Mayo. And it's hard to get Mexican food on the actual May 5 date, because Mexican restaurants are too crowded."

Notice how often people just say, "Oh, OK." Given any reason, even a trivial, inconsequential one, is enough to affect your friends' decision (and to affect you, if someone else makes the suggestion).

In a distributive negotiation (when you are deciding who gets what): Any random number works as an anchor in a negotiation. But a number with a story behind it is even more powerful. And if that story is derived from real market standards, it is even more powerful yet.

Use the kind of criteria you developed in Exercise 1.

- Blue Book says the price for this car model and year in "good" condition is \$18,375. So that's what I made this check out for.
- I found a used tennis racket by the same manufacturer listed on Craigslist (or eBay) for eighty dollars. Happy to offer you the same.
- Agreed—we should divide up the childcare time equally, but Saturday afternoon is the one part of the week we both want, and you got it last week.
- We're buying dinner tonight because you're in our town. When we visit San Diego, you can pick up the check.

After You, My Friend

AS DISCUSSED, WE THINK IT is usually a good idea to make the first offer, so long as you are informed about market prices and expectations. But sometimes you aren't. And sometimes you are interested in learning about their thinking before making your own suggestion. So it's a good idea to practice eliciting an offer from them as well.

In the exercise above, instead of suggesting where to go to dinner, ask for a suggestion. Asking a counterpart for their ideas or advice can have a powerful effect. First, they will typically like you more afterward. The other person may become more confident offering opinions in the future. And if the group likes the suggestion, the person may become more popular with the group.

If it's a distributive negotiation, ask your counterpart to suggest the first number. A simple, unadorned "What did you have in mind?" works well with confident negotiators. Some people may hesitate. Put them at ease by declaring yourself unable to go first. "I can't really figure out what this thing is worth; I don't know what price to suggest."

Does your counterpart seem reluctant to offer a number? Their reticence is probably driven by fear. It might suggest easy pickings for you if you go first in this situation.

Responding to Their Offer

WHEN THE OTHER PERSON GOES first, the fun starts. Don't let yourself be anchored by their number; negotiate in a way that's beneficial for you. Here are a few moves to try:

Ask for Their Justification.

Do they have strong market standards that support their position? They may not. Or perhaps they tossed out their number on a whim, like that used car salesman from John's earlier story. Or they may be strongly attached to it for

some reason you don't yet know. The first move is to find out by probing for more information.

Be patient and give the other person the space to make their case. You want to know what the strongest argument is for their side. Not that you will necessarily agree, but it can give you a sense of where the opportunities are. Also, people who know they have a strong case don't give up quickly. Watch for their reaction. If they start fidgeting or squirming in discomfort, they probably know they don't have the right kind of persuasive support. That's a good reminder to you: Always have a standard ready to back up your number. If they exhibit more accommodating behavior, including relaxed body language, they will probably have some criteria.

A friend of ours likes to say, "How can I agree to your number if I don't know if it's fair?" Give your response extra weight by asking, "How can I explain this to my boss?" (or my wife, my business partner, etc.). People who can't justify their offer will often back away from it toward something they think they *can* justify. It can make them more likely to agree to your number and justification.

Or maybe they've got a justification, but it's a weak one. Now you're in a disagreement about what's fair. As long as you both keep it civil, that's fine, and you'll probably end up somewhere in the middle in terms of the fairness standards. But that is a very different thing than being stuck halfway between two random numbers.

Or they might have a very good reason for what they are proposing. In that case, consider whether it's smart to admit they have a good point. We think it usually is. More about that next.

Set a Counter Anchor.

Whether you want to get into a rugby scrum in a negotiation about what is truly fair probably depends on what kind of justification you have, how much money/value is at stake, and how much you enjoy that kind of thing.

The downside to letting the other party go first, as we've pointed out, is that they can benefit from the anchoring effect. One response is to immediately set your own anchor, balancing theirs. If you are ready with a criterion or benchmark from your preparation in exercise 1, now's the time to offer it up. At

that point the advantage goes to whoever has the stronger, more relevant standard that both sides agree they can rely on. If the other person is throwing out random numbers, and yours has strong support from a valid source, that's a big advantage for you.

When They're Right, They're Right.

There are costs and limitations associated with the standards-based approach to distribution. It takes more preparation. Worse, once your counterpart is focused on standards of fairness, they may know of one that suggests a better outcome for them. What should you do when they bring up a really good argument? "We each hired a consultant to value the vacant lot between our houses, and they came in very close to each other." If you also have a good argument, you can argue about which is better, or you can suggest splitting the difference between them. But sometimes they'll have a really good argument, and you don't. Our advice in that situation is to admit the obvious and acknowledge that they have a strong argument. Let's say you have a mountain bike that you haven't used in a couple of years, and your neighbor is interested in purchasing it. You've been thinking about getting a road bike instead anyway.

YOU: I'd love to get a thousand dollars for the bike.

THEM: The Bicycle Blue Book says the private-party price is \$750.

YOU: Wow, you've done your research. Smart. Is that for the same brand and condition?

If the other person knows they have strong standards or benchmarks that support their number, the chance of them rolling over is lower. And the chance of them feeling like the outraged monkey if they don't get their way is higher. On the other hand, people love to be told that they are correct; they love to be praised for having made a good argument.

That doesn't necessarily mean the negotiation is over, however.

JOHN: The first time I bought real estate, my wife and I were looking at a condo that was half of an old Victorian house in Cambridge, Massachusetts, as I described earlier. We were looking during a real estate slump, so we thought it was a great time to get a bargain. The seller was a developer who had bought the

place as a wreck, fixed it up, and was looking to turn a quick profit. He had been unlucky in that two previous buyers had made an agreement and then were unable to secure a mortgage. That made some buyers suspect there was something wrong with the condo, so the price was already pretty reasonable. We looked around for comparables that were cheaper per square foot, and after a lot of looking, we found one, about three blocks away. It was a single-family house that had sold earlier that year for \$155 per square foot, less than the \$164.50 per square foot that the asking price on the condo we were interested in bidding on netted out to. So we put in an offer at \$155 per square foot, along with an email for the broker to forward to the seller, explaining our reasoning.

As we learned, the seller was the debate team coach at Harvard, and he knew his stuff. He fired off an email back to us: "I know the house you mentioned. It backs up on the Kentucky Fried Chicken on Massachusetts Avenue. The kitchen exhaust fans are pointed at the house, and it has a layer of grease buildup on the exterior wall facing KFC. There are frequently loud, drunk people in that parking lot late at night. If you buy my condo at the price I'm asking and offer to trade them, I'm pretty sure they'll say yes."

We couldn't think of any decent counterarguments. And since this guy was an expert debater, we knew he wouldn't accept anything half-baked. So we wrote him back and said, "You convinced us. You're right, the place is worth what you say. Our only problem is that we don't have that much to spend. I'm sorry, we can't get approval for a mortgage that big." He wrote back, "OK, how much can you afford?" We told him, and he wasn't unreasonable. We ended up buying the place for less. Not much less, but still.

And we got that price reduction in part by acknowledging our counterpart's good argument. This was the same developer who later agreed to install the larger water heater based on the hot tub manufacturer's standard. If we had ignored or dismissed his argument when he was right, the chances of him admitting when we had a good point would have been much less.

Admitting that the other person has a good point doesn't mean surrendering. But it will probably influence the outcome. They will feel more confident in asking for their price. The downside of this is you may get less. The upside is that you can see this as an investment in the relationship. Even more important, you

now have a relationship with the other person where you can settle disputes by talking about what's fair, instead of who can hold out longer or who is more willing to walk away. That's probably the relationship you want with a spouse or a loved one. A brother or sister. Parents. Kids. Close coworkers. And maybe regular customers or suppliers.

If you want to increase your win percentage in your negotiations, the easiest way is to avoid taking on losing fights. When the other person has the high ground, take what you can get and save your power for one you can win.

Takeaways

DISTRIBUTIVE NEGOTIATION, OR DIVIDING UP the negotiation pie, is a huge topic. And like we mentioned, a significant portion of the population will avoid bringing up the negotiated item, especially money. The first thing is for you to get comfortable with the basic moves we have outlined here:

- Searching for standards
- Leading the price negotiation with a standards-based anchor
- Asking them for their justification on their price or numbers
- Investing in the relationship by admitting when they have a point

That should be enough to get you started on benchmarks and criteria. We hope we have convinced you that criteria are invaluable in setting a price. They will help you bring up the topic and discuss it, because you are more comfortable knowing that you have external data backing you up. You have the “why” on why your proposal makes sense, not based on what you said but on what other experts say. And that helps them agree to it too, because it feels fair and justifiable.

But there's another important tool for distributive negotiation: alternatives, as I suggested at the end of the story about the investment bank that wanted to hire me to give a presentation. That is, what you will do if you can't reach a deal with the other party. What's your backup plan if you walk away?

That's what we'll be talking about in chapter 8.

CHAPTER 8

KNOW YOUR ALTERNATIVES

WHEN WE ASK OUR STUDENTS to raise their hands if they have a hard time saying no, at least 75 percent of the hands shoot up. This may resonate with you too—the idea of saying no to someone, whether it’s a partner, colleague, boss, friend, or parent, can cause such anxiety and tension that the inclination is immediately shut down and rejected. The no never happens, which can lead to other issues down the line, including discontent, burnout, and resentment.

The ability to say no is one of the most important skills to master when working toward becoming an expert negotiator. Saying no means you’re not settling for the current offer. But we want you to be smart about it. So to start, this chapter will review how to make it easier to say no, by developing alternatives. Chapter 9 is about getting comfortable actually saying no.

Don’t Settle for the First Offer

WE HAD A TEACHING ASSISTANT at MIT’s Sloan School of Business in our Power and Negotiation course whom we’re going to call Mary Sue. To call her outgoing is an understatement. She was always hosting dinner parties, organizing birthday drinks, or volunteering for good causes.

But she was so busy with classes and friends and volunteering that she didn’t leave much time to find a job before graduation. Most MBA students looked for jobs in the fall of their second year. When March rolled around, all her friends had jobs lined up. She did not. So she went down to the Career Center, looked

up some companies that had been recruiting for her area of expertise (digital marketing), sent out about twenty résumés, and lined up some interviews.

The first interview she had was with a social media company we'll call DoubleTalk. The company rep decided Mary Sue was perfect for the position they had open and made her an offer on the spot. She was offered an attractive salary for a management position at the home office, where she would have plenty of interaction with the C-suite executives. She thought the company had a great culture, and she loved the idea of working directly with the founders. The company was young enough that she would be a valuable, early employee but far enough along that she felt confident it would succeed. She loved the idea of her job search being over. The next day the interviewer from DoubleTalk called and asked if she was ready to say yes.

But their headquarters was in Pittsburgh. She had never been to Pittsburgh and didn't know anything about the city. What's more, Mary Sue's new boyfriend, Alejandro, who was also graduating from the business school, had just accepted a job in Seattle. Mary Sue's decision on whether to take the job was suddenly more complicated.

We always ask our negotiation students which skills they want to work on. The most common response? How to say no in a negotiation, which makes sense given that 75 percent of the students raised their hand when asked if they had difficulty saying no. More specifically, they don't know if they should take a deal or hold out for more. Even after reaching an agreement, they wonder if they lost by giving in too easily or by being too soft. Sometimes they agree to a deal even though they know they shouldn't.

Mary Sue wanted her job search to be over, and she wanted to make the nice recruiter happy. But something she had learned—and practiced—as a TA in her negotiation class was pushing her the other way.

When students wanted to know how to get a higher salary without hurting the relationship, John would tell the class, "Let's play it out." And he would call on Mary Sue to demonstrate. It turns out that that combination—a little prescriptive theory and a lot of practice—helped her to turn her own negotiation to her advantage.

Mary Sue was experienced enough to know that any answer she could give to the question whether she should take the job would be wrong—*at this time*. She didn't have enough information to know whether there was a better job out there (i.e., an alternative) or whether she might be able to get more from DoubleTalk.

Make Space for Alternatives

BEFORE YOU SAY YES OR no to an offer, you want to compare it with other alternatives out there. That will help you figure out if the offer is a good one or not. You'd rather have multiple offers and pick between them. But developing alternatives takes time and effort. The first thing you need to do is figure out how much time you have.

Ask for Time.

When you receive a job offer from a company, the first thing you can say in response is something like this: "Oh my gosh. That is *such* a great offer. Thank you. This is a really big decision, especially moving to another city. Can you give me time to think about it?"

Sometimes you already have a schedule in mind. At the business school, the school sets a period for interviews between prospective companies that are recruiting MBA students and the graduating students, then asks employers to keep their offers open until a designated date. Often there is no preset length of time. That opens up a mini negotiation about timing. Our recommendation is to bring this up yourself. Rather than let them impose a deadline, try to figure out one that works for both parties. So, for example, Mary Sue could say, "You need to fill this job, so if I can't say yes, you are going to need to talk to another candidate. How much time can you give me before you would have to get started on that?" Of course, they could start talking to others right away, but people tend to be lazy. They might want to know if this candidate is going to accept before taking on the work of talking to another one.

This basic skill—defining how much time you have to make decisions—is valuable for several reasons. First, you almost always learn more about key

elements of a decision with more time. With a job offer, you can talk to employees or former employees of the company and do more research on the city you would be moving to if taking the job would require you to move. You can talk with your friends about the move to get their reactions and opinions. You can discuss it with your family and think through how a move might affect them. You can do some preliminary research on rents in the city you would be relocating to, or the cost of housing, or the length of typical commutes and the availability of apartments to rent. You are in a better position to make a smart decision once you know more.

Waiting, however, isn't always the right solution. If you are trying to rent a vacation house and you wait too long to book one, someone else may have booked the house you want for the time you have planned. So there are constraints on how long you can wait to decide, especially when you are competing against others, as you would for a vacation house rental in a desirable location for a specific period. The first factor you will need to determine is whether the benefit of getting more information outweighs the forces that are pushing you to commit now (such as limited supply). You don't want to make a decision before you have to—but you don't want to wait too long, either, and discover that because of competition from other MBA students, in the case of a job offer, or other families seeking to rent a vacation house in the case of a summer vacation, your options have been significantly reduced.

Ask for an Explanation of Deadlines.

Sometimes your counterpart will attempt to exert pressure on you to force a decision within a set period. Now, that could be because they have a real deadline. Or it might be a conscious strategy to get you to act. Artificial deadlines to drive decision-making are one of the most common tactics in a negotiation. And it can present you with a dilemma. You want to help a counterpart who is dealing with a genuine problem. But you don't want to get stampeded into potentially making a less-than-ideal choice either. Our advice is to inquire about the deadline and decide if it is one you are willing to honor or one you feel comfortable ignoring.

JOHN: In 1987, I went to buy a laptop computer, back when laptops were a relatively new product. I walked into a computer store on Forty-Fourth and Broadway in Manhattan, and the salesman launched into an incomprehensible monologue about graphics cards, modems, RAM, and other features. I was told, “I can cut you a great deal on this machine, for \$1,327.99, but that’s for today only.” Although only twenty-one, I was savvy enough to ask, “Really? If I come back tomorrow, you won’t sell it to me for that price? Why not?” The salesman didn’t have an answer.

You can do the same thing in a trickier negotiation that means more to you. For example, if a job interviewer, in making an offer, says, “We would like to have your decision by tomorrow,” you might ask, “Why? Is there something happening tomorrow that’s contributing to this urgency?” If someone has a real constraint, they should be able to tell you about it. If they are making up a deadline to pressure you into making a decision, asking what that constraint is will either force them to back down or make them come up with a lie on the spot. That’s not easy to do. Watch them closely. Do they seem nervous or antsy? Do you believe their explanation?

Train yourself to resist the pressure to make a decision before you are ready. Bill Ury, coauthor of *Getting to Yes*, made it a rule to never commit on the same day. He was convinced this kept him from agreeing to engagements that he would reject if he had the chance to think about how busy he was. That practice could be slightly annoying to friends and colleagues but can be wise as a rule if you tend to say yes too quickly.

JOHN: When I was working as an intern at the Harvard Negotiation Project, a foreign publisher reached out with an offer of one thousand dollars to publish *Getting to Yes* in Slovenian. At the time, that was the most any publisher had paid for the right to publish a nonfiction US book in that language. When I called Bill to tell him the news, he was delighted. “That sounds great!”

“OK, should I contact the publisher and tell them that you and Roger agree to the offer?”

“Nope!” he said. “I never agree to anything on the day I’m asked. I’ll call you back tomorrow.” Which was fine. Of course, the price of the Slovenian edition

doesn't matter much, especially compared to the authors' desire to spread their ideas. But you may be able to remember times in your past when you would have been better off if you'd had another day to decide. The rule keeps him from getting taken by surprise and then committing to something unwise.

The exercise we suggest for you is a modification of Bill's approach, adjusted to fit the circumstances you are facing. Instead of putting off *every* decision for one day, we recommend that you talk with your counterpart. Figure out how long you have to make the decision and whether it makes more sense to decide now or later.

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EXERCISE 1

Create Space to Develop Alternatives

Any time someone asks you to make a decision, ask whether there is a deadline, and if so, why.

Then ask yourself:

- Do I gain anything (such as key information) by waiting to decide?
- Is there a cost or risk for waiting?

If you realize you want more time, ask them:

- Is there a deadline for making this decision?
- If yes, why is that?

It may be a good idea to have an explanation ready about why you need more time. It can be vague. "I'm excited about the opportunity. Give me a couple of days to think things through, to see if I have any outstanding questions." Or it can be specific: "The company I have been working at has been very good to me. I need to tell them I have an offer, and that I intend to take it."

How does the other party react to you asking for more time? You may find that setting a specific time frame reassures them. It makes it clear that you are taking the offer seriously. Some people, however, may push you to decide *now*, like a pushy salesman at a car dealership. They want to maximize the psychological pressure they put on you and don't want you to have time to look around for a better deal. Ask yourself if this is a vendor, or an employer, you would be comfortable working with? Do they really have your best interests at heart? Or are they only concerned with making the sale, or filling the position?

In the case of Mary Sue, when DoubleTalk called her, she responded, “I’m so happy you are interested in me, but I’m a little overwhelmed with how fast this happened. Do you have a deadline for when you need to get this wrapped up?”

The recruiter paused. “No, but we are going to need to keep looking if you decide not to take the job.”

“I’m very interested. But can I have a couple of weeks to make sure of my decision?” Usually if the company is interested in hiring you, they’ll give you that time.

Setting time parameters for making a decision helps protect you from being too hasty or from being pressured into a decision you may later regret. And now you have space to find an alternative.

Build Your BATNA Before You Decide

IN A NEGOTIATION, THE WORD *alternative* is used to describe potential choices that are mutually exclusive. I might work as a schoolteacher or a stockbroker, but I can’t do both at the same time. In *Getting to Yes*, Fisher, Ury, and Patton made a distinction between “alternatives” and “options.” Options are decisions you could reach together with your counterpart; alternatives are what you can do without them. The distinction is important. At the end of a negotiation, you decide what you will agree to by comparing the best *option* your counterpart will agree to with the best *alternative* you can get without them. (One helpful mnemonic is that *Options* are *On the Table*, and *Alternatives* are *Away from the Table*.) For example, you could buy a Toyota RAV4 or Highlander from the salesman whose dealership you are at right now (the options) *or* you could leave and buy a Honda CRV from another dealership (the alternative).

It’s hard to compare something concrete to a vague idea, such as the idea of a different job offer. If you want to make a good decision, it is best to weigh specific alternatives. Unfortunately, our brains aren’t great at processing a lot of choices. Researchers have called this “choice overload” or “the paradox of choice.” But our brains are very good at comparing one thing to another.

To help you do that, *Getting to Yes* introduced the concept of a best alternative to a negotiated agreement, or BATNA. Knowing your BATNA lets you make an apples-to-apples comparison with the best option. Imagine that you are graduating from college and are lucky enough to have four job offers. Each offers a different mix of salary, benefits, promotion opportunities, and location. Before you sit down for a discussion about salary and benefits with your top choice, you want to figure out which is your second choice. That way you can make an apples-to-apples comparison with the deal you can make with your first choice, rather than a mashup of the other ones. It's too easy to think, *Well, that one has a better salary, and another has a better location, so this deal isn't as good.* Once you decide which offer is your BATNA, then every negotiation is a victory, because either you get something better or you don't take it.

Zone of Possible Agreement, or ZOPA

Between the alternatives of two opposing parties there is a range in which an agreement could take place. For example, let's think back to our example in chapter 7 when we sold our mountain bike to our neighbor. On the one hand, I want to sell my bike, and I have an offer for five hundred dollars from the bike shop where I plan to buy a road bike instead. My neighbor, on the other hand, is looking to buy a used, high-quality mountain bike for his son and knows an equally good model would cost him \$850 from a bike shop. Given that, any price that is more than \$500 and less than \$850 should be better for both parties. That is the ZOPA, or deal zone.

Me: Trade-In Value	Deal Zone (ZOPA)	Them: Other Bike to Buy
\$500	\$500–\$850	\$850

There may not always be an area for agreement. If the bike shop where I'm getting my new road bike offers me one thousand dollars for my trade-in, then I shouldn't make a deal with my neighbor. If we do make a deal, then one of us made a mistake. That typically happens when someone doesn't bother to calculate an alternative or is using a parameter other than money to make their decision.

With this set of concepts—best alternatives (BATNA) and deal zone (ZOPA)—we are ready to jump into learning how to start defining your best alternative.

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EXERCISE 2

Define Your BATNA

Think of a situation where you have a choice to make but don't have a list of alternatives yet. Perhaps you are seeking a new job or deciding what city or state to live in. Or it could be something as mundane as what to eat for dinner.

Make a list. Try to think of five or ten different candidates or alternatives. Start by making a broad pool of candidates before you narrow down.

1. Think broadly. Try to define your problem in a way that encourages more kinds of answers. Instead of asking, "What other car should I consider buying?" ask yourself, "How am I going to get to work?" That opens the pool up to things like:

- Move within walking distance of work,
- Get a bike or motorcycle,
- Take public transit,
- Lease a car, or
- List different kinds of vehicle candidates, from used or preowned cars to new automobiles, and different models at various price ranges.

There is no limit to how many candidates you come up with. And there is no penalty for coming up with a terrible idea or two. Bad ideas impose little cost and might even have some benefits. Thinking about why an idea is bad helps you understand the problem and often suggests better alternatives.

2. Weed out the ideas that don't make the cut. You will be able to disqualify some ideas quickly. If getting an apartment closer to work isn't feasible because of the cost of rent in that neighborhood, take it off the list of possibilities. Or if biking to work from where you live doesn't work in winter, that's fine. Cross it off your list. It will make your pared down list smaller and easier to manage.

3. Compare the good ideas. Hopefully there's more than one. Go back to your interests (see chapter 4, My Interests) and assess how the candidates stack up. There could be an obvious favorite. If there is not, you may need to review some of the exercises in that chapter.

4. Pick your favorite. The last step is to put a circle around the winner from your list. You now know what to compare the offers in the negotiation against. You're ready to talk.

If you don't have any alternatives that survived your scrutiny—OK. It's better to know that than not know it. Don't get discouraged. One reasonable alternative that all of us have is to wait and continue developing the list of alternatives. You don't have to accept a bad alternative.

But We Hate Uncertainty.

Now, you may be thinking, *Waiting and giving up this opportunity doesn't feel like a reasonable alternative*. And that's a fair criticism, because we hate uncertainty. There was a study by Archy de Berker that showed stress maxes out when uncertainty is highest or when people had no clue what was going to happen. De Berker even went so far as to say it is more stressful to be wondering if you are going to get laid off versus being relatively certain of it. That means uncertainty is more stressful than predictable negative consequences.

So how do we manage that? Well, the best path to manage unpredictable consequences is to take action. And that's the whole point of this chapter—to take action by developing other alternatives to your current deal. We want you to do that as soon as possible so you can compare the deals and pick the best one, but we also know that sometimes that isn't possible. So at least develop a list of alternatives, which will help ease your anxiety about turning this deal down while you find a better one.

In the case of Mary Sue, she received a voicemail from the company Travelocity, extending her an offer. On the one hand, the salary was better, and the company was more established. On the other hand, she wouldn't be an early hire, which meant there was less chance of her getting a significant stock option bonus. And she would have limited ability to shape the firm. Travelocity's headquarters were in Texas, so that didn't help her with her boyfriend situation. And she knew Texas could be hot in the summer. Overall, she figured that DoubleTalk was still her best offer. But she relaxed a bit knowing that she didn't have to decide yet. Did she have any other alternatives?

A Good Alternative Gets You More (Even If You Never Use It)

HAVING A STRONG BATNA, or alternative, sets a floor for the negotiation. Even a mediocre alternative is an asset. It always helps to have an alternative; it positively affects your psychology in a negotiation.

Do the Math.

Of course, you're not going to agree to anything less than your best alternative. Negotiators tend to end up near the middle of their deal zone, halfway in between the two parties' alternatives. We aren't telling you to aim that low. With good skills you can get more. But you should be aware that that is what tends to happen. If you are successful at coming up with a stronger alternative, however, you may be able to move the deal zone more in your favor.

ATTIA: I was working with a contractor on getting a quote for a deck extension. I really liked this guy, Alex; he does good work and was my preferred option. I did some research and found objective criteria stating the range for a new deck can be from \$25–\$50 per square foot for the material we were looking at. I obviously anchored at \$25/sq. ft. But his quote was high, really high, at \$63/sq. ft.: Now our deal zone was \$25–\$63/sq. ft. So I found another decking company and got a quote from them: \$30/sq. ft. I took this back to Alex and told him, “Hey, this other guy is giving me \$30/sq. ft., but you are a better craftsman and are willing to do a bit more for me.” He asked me where I wanted to be, and I told him closer to the \$30/sq. ft., and he countered with \$50/sq. ft. So now our deal zone had changed from \$30–\$50/sq. ft. based on my objective criteria and the alternative I was able to find.

In the negotiation with our neighbor about my mountain bike, if the deal zone is \$500–\$850, we might predict \$675 as the outcome. But what if the neighbor did some legwork and found another appealing mountain bike for sale for seven hundred dollars? Now the deal zone is between five hundred dollars and seven hundred dollars, because the neighbor could go get another mountain bike for seven hundred dollars. Given that, we would guess the outcome to be

roughly six hundred dollars. The neighbor may well have saved himself quite a bit, even if in the end he still strikes a deal with me for the bike. That change in the predicted outcome—the extra seventy-five dollars—is the payoff of his effort in improving his BATNA.

Improving your alternative can also make you less risk averse. Let's say a prospective employer offers me \$140,000 to jump ship and join their firm. I want to ask for \$150,000. My alternative is staying at my current job, which is paying me \$125,000. I have to calculate the potential gain of getting more against the possibility of losing the job if they react negatively to my request. The amount I could lose is the difference between my BATNA and the current offer, or \$15,000 in our example. The better I make my alternative (for example, by finding another offer for \$135,000), the smaller that difference becomes (now it's only \$5,000) and the less I have at risk. That should make me more willing to push for more.

A better alternative gives you confidence.

Improving your alternative makes you more relaxed and confident. Anxiety has a negative impact on reasoning ability. When you are relaxed, you notice more information in your interaction. You are more likely to pick up on clues your counterpart is giving up. You can reason more quickly and accurately. When you are relaxed, they can sense it. And it can affect your interaction, as they will feel less likely to attempt to pull one over on you.

EXERCISE 3

Develop Your Alternatives

Start with your list of alternatives from exercise 2. Were you able to think of five or more alternatives? And did you pick out one as your current best alternative?

Go down your list. For each one, consider:

- How could I improve this alternative? Can I talk to the other person about improving their offer?
- How can I make uncertain alternatives more concrete?

To make an uncertain alternative more concrete, what information could you gather to better estimate its value? Is there a way you can find out what other employees are getting paid, for example? Or what employees at similar companies doing the same job and with the same experience are getting paid? Can you find out the percentage of interviewees who receive offers?

Take notes on each question. Then, start making calls as you do your research. The goal is to find an alternative BATNA that is better than your current one.

To see if she had any leverage to increase the offers she had, Mary Sue looked at the list of companies she had reached out to who hadn't gotten back to her. Perhaps she should prod them. She found phone numbers for the hiring coordinators and started leaving voicemails. "Hi, I know I sent you my résumé outside of the usual recruiting period. I have gotten a few offers, but before I respond, I wanted to make sure you had a chance to follow up. I'm planning on responding by next Friday, but we have until then to chat. Thanks for your time." She left the same voicemail at half a dozen companies.

Two of them called her back, Fitbit and Expedia. Both were interested in talking with her before she signed with someone else. Fitbit said, "We were already talking internally about you, but since time is a factor, we would like to fly you to San Francisco to interview this week." And in fact, Fitbit made her an offer. In some ways, it was better than the offer from DoubleTalk. The salary was higher, and she would be in charge of a larger team. And San Francisco is a short commuter flight from Seattle, which would make it easier to meet her boyfriend on weekends.

With that offer in hand, she was ready to talk to DoubleTalk again.

Let Them See Your Alternative.

If you are going to tempt the other person to make you a better offer, they will be wary of offering too much. That's why it helps to let them see into your decision-making, so they know the target they are aiming for rather than inviting them to engage in open-ended bidding against themselves. Now, we also recommend that you wait to share your alternative until later in the negotiation process. It's not something you want to throw onto the table early on because it can make people feel threatened. You want to take the other steps we have gone through in earlier chapters to "set the table" for the negotiation. That way when you do bring up an alternative, you've already built a good relationship and rapport, and they know you're still interested in figuring things out with them. Even more so, you could share it as disclosure: "I love your organization and I wasn't going to mention this, but there's another offer that came up that's ten

thousand dollars higher...” Again, this offers positivity and allows them to problem solve with you rather than feel defensive about my offer versus theirs.

Mary Sue felt “DT” was still the best offer, but if she had to go with Fitbit, it wouldn’t be a big sacrifice. That increased her confidence in pushing DT to increase their offer. She told them she had received a couple of other job offers. She mentioned that her last job title had been Senior Project Manager. DT’s proposed title was Associate Project Manager. She also told them that DT’s salary offer was barely higher than what she had been making before she went to business school. She should be worth more now with an MBA, and the other companies that were making offers seemed to think so too. And she did what we recommended by bringing up the alternative gently and after building rapport: “You’re still my top choice, but I’ve received some other offers that are more competitive on salary, coming in 10 percent higher than you. Is there some room for movement on the salary?”

Now, some people may be tempted to lie about their alternative, so they have more leverage in the conversation. We don’t think it’s a great idea.

Don’t Lie.

Having a good alternative usually makes your counterpart offer more. That tempts some people into lying about their alternative. There are serious risks with this approach. First, you might convince your counterpart that your alternative in not taking the deal is better than the most they can offer. For example, if they have offered you \$130,000 as a salary and you say that you have another offer for \$175,000 (when you actually don’t), they may decide to walk away. Then you either lose the deal or suddenly pivot and say yes to the \$130,000, which is as good as confessing to the deception. Or they might catch you outright. If they learn that you lied, you will have ruined your credibility with them in the future—and potentially with others.

Some negotiators fudge this dilemma by implying that they have other offers, without directly stating it. We heard about one situation in which an investment bank was selling a company. They invited their only bidder to go through the corporate books for their due diligence. They didn’t let them into the records room until Sunday morning. They put half-finished containers of Chinese food

and empty coffee cups in the trash receptacle in the room, as though other bidders had been there the night before. Now, strictly speaking, such stage managing isn't a lie, at least not legally. But if your sole bidder finds out that you tried to manipulate them, it could destroy their trust in you. Whether you do decide to go to such lengths is up to you. We don't think it's the smartest move because of the reputational risk—they won't work with you again and may very likely tell others about your chicanery as well.

On the other hand, sharing your best alternative for them to bid against can be a delicate proposition. You don't want them to become defensive, or to make them feel like they are your second choice or that they will never be able to close the deal. Leveling up on this skill takes time. We highly recommend practicing it before applying it to a high-stakes negotiation.

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EXERCISE 4

Use an Alternative as Leverage

Someone is asking you to agree with their proposal, and you have an alternative.

Wait until they ask you to accept their bid. "Are you ready to sign with us?" Then tell them about your other offer. Here are a few tips:

- **Be positive.** People want to help those whom they like. So be likable and appreciative. "I think you guys have such a great company, and you've been so supportive in the interview process. I'd love to sign with you, but..."
- **Show them the target.** "The reason I can't take your offer is because..." You don't want your decision-making to be the target for them to change. You want to direct their attention toward the weak part of their own offer.
- **Be specific.** We find it helps to give them a nudge on how to improve. That way they don't think they are bidding blindly against themselves. If you were selling a house, you might say, "The thing that is holding me back from taking your offer is that the other buyers are preapproved for the mortgage. Is there anything you can do about that?" Let them figure out what their options are. They could attempt to get preapproved themselves, or they could raise their offer to make it more attractive.

If they are willing to talk about it, it may mean that they strongly prefer you to their alternative, indicating that they still have room to negotiate. If, however, they become defensive, you may already be close to their limit.

Mary Sue's strategy worked. DoubleTalk came back with the title and salary she was looking for. She was thrilled. So, in one sense, her decision hadn't changed. DT was still her top choice. But she was able to get a better title and more money. When you have a good BATNA, or best alternative, you can afford to swing for the fences, knowing that you have little downside.

Again, the difficulty with finding alternatives is that it requires a lot of work: time, resources, and energy. And if your negotiation goes well, you will never have to use it. Our goal in this chapter, however, is to help you see the importance of overcoming the urge to settle too quickly and to encourage you to look for a better alternative before you make your decision.

Takeaways

Developing a good alternative to the deal we currently have is helpful in multiple ways:

- It helps us find out if we are getting the best deal.
- It gives us confidence when negotiating because we know we have a backup.

Skill development trumps natural ability. Maybe someone has great natural ability as a runner. But if he sits on the couch all day while his brother, who is far less naturally talented, trains every day, which one would you want to bet on in a race?

Now that you have multiple deals on the table, or alternatives, you can choose the one that is best for you. But there is still the problem of saying no to the one that you are not going to choose, which is what we will focus on in chapter 9.

CHAPTER 9

Just. Say. No.

IN CHAPTER 8, WE TALKED ABOUT the economics of building an alternative to see if the deal we have is a good one. Now for the hard part—that stomach-tightening, dreaded act of saying no. You know the feeling we are talking about. Your friend calls to ask for your help moving on a Saturday when you were planning on doing nothing. Or your sister-in-law asks you to invest in her business, and you are afraid there is no way it will succeed. Even when the person asking for the favor isn't someone central to your life, it is still painful to say no. Most of us don't even like saying no to telemarketers. That's why there are so many jobs in sales. Often, we end up making bad decisions to avoid the short-term discomfort of turning people down.

Look, we agree—saying no is hard. The good news is that a little preparation and practice will make it easier. Even if you are one of those people who dreads it.

We will look at different kinds of noes that are appropriate in different situations. Sometimes, there is a clear answer, and you want the other person to accept your offer without complaint. Your kids, for example, should know there is no argument about bedtime. Your boss needs to accept that you can't work late anymore after coming back from maternity leave. The sooner they accept the reality, the happier everyone will be.

Other times, you might be willing to be persuaded. You like the job offer, but the salary could be better. In that case, you might want to say no in a way that encourages them to try again or try harder.

We Hate Saying No

THERE ARE SEVERAL REASONS WHY we hate saying no so much. Some are practical: We don't want to upset the other person, fear damaging the relationship, or hate the uncertainty a negative response may engender. Another problem is psychological—how saying no makes us feel about ourselves. We often think that the point of negotiation is to reach an agreement. The top-selling book on negotiation is called *Getting to Yes*, after all. The implication is that a good negotiator is someone who makes deals, not someone who walks away. In relationships, this problem is even worse. Most of us don't want to think of ourselves as someone who turns a friend down. And the more they need our help, the more important the request is to them, the harder it is. Where does this come from?

We Don't Like to Be Disagreeable.

The current state of the art in describing personality is something called the Five Factor Model. If you give a large group of subjects a personality test with hundreds of questions, you will find certain identifiable patterns: Some of the questions tend to get similar answers from the same people. The people who say, "I always show up to meetings on time" also tend to say, "I keep my desk tidy" and "I never take office supplies home with me." Once you have a stable group of questions that track together, psychologists try to name the underlying quality that unites those people. For the questions above, they call the underlying construct "Conscientiousness." Conscientious people tend to be diligent, orderly, and trustworthy, and they obey the rules. Most personality psychologists agree that factor analysis yields five variables, known as "The Big Five." They are Extraversion, Agreeableness, Conscientiousness, Neuroticism, and Openness to Experience. If you are quite high on the agreeableness scale, it turns out that that has a big influence on how you perform in a negotiation.

Agreeable people tend to be kind, empathetic, polite, cooperative, and considerate. If you ask an agreeable person to come to a particular movie with you, they will say yes. A disagreeable person is more likely to demand a different movie or say they want to stay home and play video games. The agreeable person is the perfect dinner party guest, "willing to please and to be pleased," as novelist

Patrick O'Brian put it. Agreeableness is a great quality for relationship building. It makes people like you. But there is a downside. Agreeable people find it harder to say no. They are the people most likely to make the mistake of taking a bad deal to avoid the social awkwardness of disagreement. As a result, agreeable people end up doing worse in distributive negotiations, where you are deciding who gets what, like around salary. In their desire to please, they take care of the other person but not themselves. Women tend to score higher than men on agreeableness.

But you don't have infinite money or infinite time. You can't say yes to everything. No matter how kind you are, at some point you have to say no, so you can say yes to the things that are really important.

We want to offer two ways to help you become more comfortable with saying no. One is to stop and think through the consequences of saying no, so they won't seem so scary. The other is simply to say no more often. Like most things we fear, saying no gets less scary the more often we do it—*exposure therapy*, as we talked about in chapter 2 on emotions and getting comfortable with rejection.

The Consequences of Not Saying No

ATTIA: I was coaching a client of mine, and his biggest trouble was saying no. He loved being agreeable because he enjoyed the feeling of being liked and valued within his job and community. And who can blame him? Isn't that what we all want? Except fissures started to appear. First, colleagues became increasingly frustrated with him at work. He had made a commitment to show up to the weekly team meeting and kept missing it. Then, his wife started getting irate: *You agreed to give that bad mechanic another shot at fixing the car even though he made the issue worse last time?!* And then it was his boss, who was irritated because the big project was delayed by two months because other items had become priorities. And these issues continued to stack up until he felt like he was drowning in unfulfilled promises. He was exhausted, burned out, and felt like an utter failure, professionally and personally.

At a certain point, if we don't figure out how to say no, this will happen to the most capable of us. As we mentioned, our energy is finite. It should go to the most valuable areas, which means saying no to things that would deviate us from that. And while you may feel good in the moment by saying yes, what does it mean for you down the line? It could mean damaging relationships and feeling so overloaded that you become burned out. All with great intention, but the outcome is a lot of suffering. And this also goes for saying yes to a deal too quickly. We had a student who desperately wanted a job and jumped on the first offer she received. But it wasn't in a role that was suited to her, and even worse, she could barely live off the salary. We don't want this to happen to you, which is why we dedicate two chapters to building alternatives to your offer and then learning to say no. And our first step is making sure you aren't getting paralyzed by the worry of saying no.

Visualize the No Rather Than Getting Caught Up on How It *Feels*

IT IS ONE THING TO *know* your best alternative intellectually. It is very different to *feel* comfortable with it. Building that comfort is an important way to ensure you never settle. We are going to suggest three different exercises to help you think about saying no, intellectually. Some might not be right for you. Our goal is to help you to find one that makes you feel more comfortable saying no. The first two may feel familiar, and you're right, we have similar exercises in chapter 2 on emotions. The same feelings of anxiety and fear before a negotiation can also happen when we think about saying no, so it's worth highlighting how to manage those feelings around *no* here as well.

Draw a Comparison.

If you want to make yourself content with where you are in life, or in a negotiation, it makes sense to compare what you are experiencing with something worse. Negotiation coach Jim Camp advised negotiators who felt scared of not reaching a deal to think about Lewis and Clark exploring the

territory that became a part of the Louisiana Purchase. They were lost, starving, and afflicted by disease. Camp told his students, “Compared to them you have everything. Nothing bad will happen to you if you can’t get a deal. You will still live. Your kids will live. So there really isn’t anything to be scared of in a sales meeting.” Now, maybe the worst case for you isn’t Lewis and Clark. But we know you can think of a dire scenario for your comparison.

The point is, you can go over that dire situation in your head—imagine bivouacking in the mud and cold and rain of the trenches in World War I, facing enemy snipers and artillery—and realize that, in the grand scheme of things, your situation is really not that bad. Your life will go on. Other opportunities will crop up. If you don’t get the raise, you’ll find a better job eventually. The people you love aren’t in danger. Now, the result still matters. You should still try to get a good deal for yourself, whatever you are negotiating for. But it’s easier to get good results when you aren’t panicked. Just breathe, and remember, your situation is hardly desperate.

Visualize Walking Out.

Another approach is to visualize leaving the table in a negotiation, to make the prospect less scary. Athletes often use visualization to reduce anxiety—they imagine watching themselves sinking that free throw in a basketball game or making that diving catch in the end zone in a football game. Take five minutes and imagine politely excusing yourself from the meeting room, wishing the other negotiators the best, and walking out. How elaborate that scenario should be to make you comfortable with saying no depends on you. In such a visualization, we recommend that you do at least two things as you walk away—remain polite and professional and then take the first steps toward pursuing your next opportunity. We suggest using visualization so that you can picture exactly how you will handle rejecting this counterpart. You don’t want to find yourself searching for words as you are about to walk out the door.

Identify the First Step.

The inertia that keeps us from walking out has a lot in common with procrastination: It’s anxiety that holds us back. Productivity guru David Allen

wrote a wonderful—and hugely popular—book called *Getting Things Done*. It is about how to stop procrastinating and spend more time being productive. One of his best pieces of advice is to make your to-do list more actionable. Say you are working on an important paper or report. Instead of putting “write next section” on your to-do list, he suggests a smaller, more specific prompt, such as “create a new file, and put the section header at the top.” The reason this works so well is that writing a chapter or a report is big, vague, and scary. Opening a new file, on the other hand, is simple and easy. So you give yourself easy instructions to get underway, because getting started is the hardest part. Once you have that completed, it is easier to take the next tiny step, and the next, and before long you are off to the races.

People sometimes stay in a negotiation because the idea of walking out makes them anxious. We don’t know what we will say, and we often fear that the other party will hate us—will they start yelling, or insult us? Different people have different fears, but most of us have some fear about their reaction to us saying no. Instead of “negotiate with potential new employer” as your best alternative, we recommend something smaller and more specific like “email the recruiter to set up time for a call.” That makes it easier to get started on your negotiation plan. The easier that starting your backup plan feels, the easier it will be to step away from the table on a bad deal.

EXERCISE 1

Lessen the Anxiety of Saying No

Let's say you have an upcoming negotiation that you are anxious about. While thinking through your alternatives, try the following steps:

- Draw a comparison. Think of a much worse situation, and be grateful that your negotiation problem pales in comparison.
- Visualize walking out. How will you look to the other party? How will they look? How will you feel? What will you say to them? Imagine standing up, shaking their hand, walking out the door. Do you have to take an elevator down to the lobby? Where do you end up when you exit the building? Imagine it all.
- Identify immediate next steps if you cut off the negotiation without an agreement. What will you do right after you walk out?
- Adopt a mindset of abundance and choosiness.

Which of these methods did the most to lessen your anxiety? If none work for you, try something else. The point is to find a way to soothe yourself, so you feel less anxious and so you won't act anxious.

No Deal Is Better Than a Bad Deal

THE LIVES OF OUR ANCESTORS were harsh and short. It made sense for them to be risk averse about losing valuable opportunities. We live in a different world, one that is richer, full of more opportunities, and less dangerous. While we have abundant material goods, some of the things we want are mutually exclusive. Like taking a job. Or choosing whom to marry. With these kinds of choices, it makes sense to be careful, and extremely picky.

Imagine you were fishing on a beautiful lake, surrounded by mountains on a beautiful day. Sure, you'd love to catch a fish. But even if you don't, it's great to be out in nature, isn't it, admiring the gorgeous scenery? Let's say the lake has a strict limit: only one fish per angler, but you can stay out as long as you want. You might like to eat fish, but if you don't catch anything that day, you have food back in your rental house or apartment or camp. Should you keep the first fish that comes along, then go back and hang out in your camp or cabin for the rest of the day? Or does it make more sense to throw an average fish or two back until you get a really special one? That is what negotiation is like. It isn't a failure if you don't get exactly the one you think you want. You can still enjoy the process. By being picky you maximize your chance of catching a fish worth telling stories about.

Remember, not getting a deal *today* is fine. It's all part of the search for the best deal you can make. In each negotiation, there are plenty of goals besides just reaching an agreement. You can work on your skills. You can learn more about the marketplace and about your fellow humans. The experience can be fun and fascinating if you let go of the need to agree. Do your preparation on alternatives, and that way when the right deal does come along, you'll know it.

"No." Full Stop

OFTEN, WE DON'T SAY NO to something worse than our best alternative because of the social discomfort of rejecting someone. As we've seen, one way of making something seem less scary is altering how you think about it. That's the basis of

cognitive therapy and exercise 1. Another is simple exposure therapy, as we mentioned. The more you do the scary thing, the less scary it seems. It is like a baseball player warming up with an extra heavy bat, so that the real bat feels quick and light when you step up to the plate. Our next exercise focuses on getting used to saying no. We recommend starting with a firm no, with no explanation.

Changing the Tone Makes a Difference.

One component of saying no is your tone of voice. Tone is an important part of language. It affects the meaning of a statement. An upward inflection in your voice puts a question mark at the end of your sentence. We all recognize that change in tone.

If you ask “What are you doing?” with an upward inflection, you’ve asked a question. You don’t know what they are doing, and you would like to find out. With a downward inflection, “What are you doing?” implies you know *exactly* what they are doing, and you think they shouldn’t be doing it. If you say the second version out loud you will probably put more emphasis on the *doing* than in the first sentence, and you will drop your tone at the end to signal your opinion. Chris Voss makes the point in *Never Split the Difference* that the downward inflection at the end signals certainty and conviction, just as the upward inflection signals curiosity or uncertainty. You can practice the same thing. Try saying, “I don’t want to?” with upward inflection. Compare that with a slow, downward-inflected “I don’t want to.” Hear the difference? If so, add it to your arsenal when appropriate.

When You Are Giving a Firm No, Establish Direct Eye Contact with the Other Person.

Rejection is uncomfortable for both the rejector and the person being rejected, and when we are uncomfortable, we often look away from the other person. But looking away is low-status behavior in animal hierarchies. It indicates weakness, or doubt. When you look away, the other person or side may take it as a sign that you might succumb to the right kind of pressure. Don’t. Look them straight in the eye and keep your expression neutral. Watch them be surprised, even

annoyed, and then shrug and accept their fate. The fear of their reaction is a big part of what leads us to say yes when we shouldn't. Tackle that fear head-on and look right in their eyes as you disappoint them. After a few repetitions it won't feel nearly as hard to do.

Imagine Their Reaction.

What we often fear is their reaction to our no. So, we want you to visualize the worst possible reaction you can. Are they screaming? Do they toss their papers up in the air? Do they storm out? Visualize the worst-case scenario. Now, visualize the best-case scenario. They smile. They thank you for your time and consideration. They shake your hand and politely walk you out. Last, visualize something in between. Perhaps they don't smile but they do politely walk you out. Now that you have visualized all these options, think through how *you* would respond if someone was rejecting you. It's highly unlikely that you will be faced with the worst-case scenario, but even if you are, is it really so bad once you are out of the building? Again, thinking through our worst fear can remind us that it's really not that bad and will likely be much tamer than we think.

ATTIA: When I'm traveling on my own to different countries, I'm often faced with aggressive taxi drivers—always men—trying to push me to take their cab. This is where I use a flat-out, firm no with direct eye contact; they immediately back off and don't bother me again.

Remember, when you refuse a request that just doesn't work for you, you save your counterpart time and effort. And a clear expression of your answer might preserve the relationship. Sometimes it's kinder to be firm.

Let's jump into the exercise below to see how it works.

EXERCISE 2

Give a Simple, Flat No

An unvarnished no can put strain on a relationship. You either want to practice this with a good friend—with a relationship strong enough to withstand a little tension—or someone you don't know, with no previous relationship to damage. That said, the point isn't to hurt the other person; the point is to give you more exposure to potential discomfort.

Wait for the other person to ask you for something. Maybe your wife asks you if you would like to go furniture shopping with her. Or a telemarketer calls with a pitch (one nice side effect of talking to a telemarketer is that you can practice with them).

When your target makes their request, say no. That's all.

Just the idea of this may make you uncomfortable. At first when you respond with a flat no, it will feel awkward. You might get sweaty palms. Your voice might tremble. Focus on working through that by identifying the emotional and physical feelings. Label them to yourself. Soon, saying no will start to feel empowering, and fun. Once you are used to the discomfort, you are ready to go on to the next phase.

Don't say, "I can't." Don't say, "I'd like to but..." Leave everything out except your answer. Your answer is a statement of your own preferences, and nothing more. If someone offers you a cookie, don't say that you have gluten sensitivity. Just say, "I don't want one." If they invite you to a movie, don't say, "I already saw that movie." Say, "I'd rather not."

See if you catch yourself trying to give an explanation to soften the no. If so, that's a measure of your discomfort, and you probably need more reps here.

You can start with easy ones and work your way up. "Can you come out to the bar tonight?" No, thanks. "Can you stay at my place to babysit my cats while I go on a ski weekend? It would mean the world to me." I'd rather not.

How does the other person respond? Do they leave you alone, or do they circle back? If they continue to press, check your tone and eye contact. Are you telegraphing uncertainty? Continue repeating the exercise until you feel more comfortable and until the recipients realize that the no you gave really means no.

The above exercise is a stepping stone, a training drill, rather than a standard part of your repertoire. Giving a flat, naked no is the most difficult version of turning the other person down. Most times, it is easy to soften the blow with a brief explanation or some other form of politeness or pleasantry to make your response less awkward. Once you are used to dropping a no bomb, giving a clear but kind or respectful no feels much less frightening. One element will remain: You want to make sure your no is clear, final, and leaves no room for debate or argument.

A flat no isn't the right tool in most situations, but you can keep it in your back pocket for when you need it. Occasionally, an aggressive person may take politeness as encouragement and keep asking. If a kindly expressed no doesn't stop the requests, you might need to adopt a colder, less nuanced tone: "I've been trying to decline politely, but my no is final. There's no point in discussing it any further."

ATTIA: In February 2019, my husband and I traveled to Colombia for a State Department program to help local farmers move away from coca production that supported the cartels. The goal was to encourage them to work together in cooperatives to grow other crops for sale, such as oranges and avocados. We were both working in the Valle de Cauca. My husband was staying in a small village to the northeast, sharing his expertise as a fruit farmer. I was working out of Cali three hours away, trying to help farmers with the negotiation and organization skills to run a cooperative together. When our work wrapped up, we had planned to stay a few extra days in Colombia to do some sightseeing and relax on the beach. We both needed it. My husband had been put up in a dwelling with no hot water and no electricity at night. I spent six to eight hours daily in the car, visiting two to three cooperatives per day to help them figure out how to work more collaboratively and resolve the inevitable conflicts that would result from the change in the crops they grew.

We intended to get back together in Cali on Thursday and were planning to fly to Cartagena on Saturday. We were debriefing our respective work over

Facetime on Wednesday evening, amid our sheer exhaustion, imagining the bliss of a few days off, when my phone buzzed with an urgent notification. A terrorist threat, called an “armed strike,” had been made by the Colombian rebel group ELN: They demanded a countrywide transportation shutdown for seventy-two hours, from Friday at 6:00 a.m. until Monday at 6:00 a.m. The ELN stated that if they saw cars on the road or public transportation in operation—buses, the metro in Medellin—they would set off a series of bombs. Shocked, I sent the notification to my husband. Isaiah is a steady guy—not much rattles him—but even he frowned and quickly started searching for additional news.

I’ve traveled in some rough areas in the world. I like to think I don’t scare easily, but I’ll admit, at that moment I was scared. The main hub of the threat stemmed from Cali, where I was, and extended outward. I immediately contacted our in-country handler, Carlos, and shared the alert I had received, expressing my concern: We were supposed to fly to Cartagena at the time this threat was going into effect. We didn’t want to get trapped in Cali, the city at the center of the threat. What were our options?

Carlos did something I found incredibly triggering—he dismissed my concerns around the situation. He claimed it wasn’t a big deal, that I was overreacting and that everything would be fine. In fact, he went so far as to say he was offended that I would think so poorly of his country. Offended?! I was irate at his reaction. Colombian guerrillas had issued a terrorist threat of armed strikes over the coming three days—this wasn’t some insulting stereotype; it was reality. Then, briefly, I questioned myself: Was I blowing things out of proportion? So I asked Carlos: Is it safe for us to travel? He paused. He then said slowly that it should be fine—but, he added, maybe we should delay our travel to Cartagena and stay put in Cali. I realized he was trying to downplay the threat—but he, too, thought the threat was real, as he more or less admitted when my questions put him on the spot. I wasn’t overreacting. My fear was justified.

Anger chases fast on the heels of fear, and I was becoming angry. I wanted to shout at him, but I knew that would do no good in resolving the situation. So instead, I told him that Isaiah and I were uncomfortable staying in Cali—what were our options? He claimed we had no other options. Our flight out of the country was in a week, and we had to stay until then.

Bullshit, I thought.

Because we were working for the US State Department, Isaiah and I were even more vulnerable, I realized. The ELN was funded by the cartels, and I had pissed off the cartels already. What if the situation spun out of control and we couldn't leave later?

I paused and took a deep breath. Good thing I remembered my own teaching on emotions, because getting mad at Carlos was not going to help us out of the situation. And to be honest, he was a lower-level handler; he probably didn't have the authority to change the plan. So I asked him to connect me with his supervisor. I was determined to leave the country before the travel ban went into effect. He refused to give me the contact information but said he would reach out and get back to me.

I had little confidence in him. Carlos didn't seem to be on our team or empathize with our concerns. I realized it was time to look for alternatives. I was even more convinced when my husband called me a few hours later and told me Carlos had called him complaining about me. I was furious—not a great move, buddy. Did he think my husband would keep his woman in line? Isaiah went on to tell me that he had been stopped at multiple checkpoints; there were guerrillas with machine guns at checkpoints close to the border. It didn't feel great, he admitted. That certainly didn't assuage our fear, and only heightened it.

I always want to have a backup plan in any negotiation, especially a high-stakes exchange. I had one clear interest: to not get stuck in Colombia with a countrywide terrorist threat in place. There were multiple ways to achieve that interest. The easiest was to get our current flight changed, but what else could I do? Well, I always buy travel insurance when I travel—who knows what could happen? So I called the insurance company to see what our options were. Bingo. They said that terrorist attacks were covered, should we need to leave. Now, this really wasn't my preferred path forward, because travel insurance claims are a pain, but at least I knew I had a backup plan. And it turns out we needed it, because, as I suspected, Carlos did not come through. He said he spoke to his boss, who told him we could make no changes to the itinerary.

I rolled my eyes, but I was feeling more comfortable now that I had an alternative in place. My husband was a four-hour drive away, so I booked the

option that got us out the fastest: two tickets out of Cali on Friday morning to fly us back to Detroit via Miami.

When I told Carlos, he was livid. He hadn't approved a flight change. No, Carlos, it wasn't a flight change; it was an entirely new flight. And while I appreciated his "help" sorting this out, this was the best path forward for us, I made clear.

I contacted the program director separately and told her about the issues we were facing. Our work was done, and I assured her we would submit our project reports by the deadline. And I shared our deep concerns over the threat. Explaining your reasons for going to your alternative goes a long way toward making others feel better about your decision, and the director was very gracious in her response, wishing us a safe trip home.

My husband and I left the hotel at 5:00 a.m. on Friday, arriving at the airport before the travel ban went into effect, and soon boarded our flight. As we sat on the tarmac at 8:00 a.m., I looked out the window for any signs of guerrillas or explosions or smoke. We both heaved a huge sigh of relief when our plane took off. Days later I found out there had been twenty-seven ELN armed strikes around the country that weekend, including clashes with the police and the Colombian army. I was so glad I had followed my gut in saying no and finding an alternative.

Remember, there are always alternatives in a negotiation. You don't have to take what someone offers you. In the end, we removed ourselves from an unstable and dangerous situation, without compromising the work we were there to do.

In hindsight, I wish I had made more of an effort toward Carlos to help him save face. I was too angry—and too afraid—at the time to do that. Carlos's interest was to make sure things ran smoothly on the ground. He wanted to be seen as capable of handling problems without bothering his busy boss. In addition, Colombians have very serious work ethic, and perhaps not solving this problem also made him feel he wasn't getting his job done. My one regret was that I had found a decent alternative for us but didn't do enough to make it easier for all parties. I hadn't considered his interests or paused to bring him into joint problem solving. Another coworker let it slip that their boss chided Carlos

that it was unacceptable for Isaiah and me to take action like this on our own. Maybe there was a way we could have handled it so he didn't look bad with his boss. But I didn't manage my anger and fear as well as I could have—it can still get the best of me. If I ever have to work with Carlos again, I'm sure I would have a lot of relationship repair to do before we could be productive.

Because of the emotions that can get wrapped up around a no—whether it's fear, anger, or discomfort—we can end up saying it more severely than we anticipated. But it can be very helpful in preserving relationships to say no nicely, so let's look at the best way to do that.

You Can Say No Nicely

WHILE BEING ABLE TO GIVE a flat, unequivocal no is an important skill to develop, it's not the goal. Usually, we want to be more polite, even if we find another's proposal unattractive. Why? Because we never know when we will want to revisit that now-closed door. Preserving the relationship can allow a chance to revisit in the future, and we always like to maintain future opportunities if possible.

The standard way to be respectful is to help someone learn why you aren't interested. Here's the problem with that: When you tell the reason you are turning them down, you give them information that they can use to make another appeal or proposal. Let's say you are a young unattached woman. A guy asks you to go to dinner at the local barbecue joint, but you aren't interested in him. If you tell him, "No thanks, I am a vegetarian," there's nothing stopping him from saying, "OK, so why don't we go to Tofu Town?" Now it's harder to say no, because you've given an inaccurate reason for your refusal.

So instead of giving your reasoning, let's discuss other ways that you can give a nice no. For those of you who have discomfort with no, this may be a balm for that, because it allows you to exit gracefully (but still unequivocally).

Be Polite.

Thank them for asking. And you can apologize that you don't have a different answer. "That is so kind of you. I appreciate your asking. I'm sorry but I can't

say yes.” The strength of your answer doesn’t require you to be rude. What makes it emphatic is that you give them a clear, inarguable response.

“It’s Not You, It’s Me.”

Your reasons don’t have to imply a negative judgment. Don’t let your reason have anything to do with them. It is only about you and your preferences. If someone offers you a job and you aren’t interested, you might say:

- “I’m dedicated to my current team.”
- “I’m on a good trajectory and am not interested in moving.”

And our favorite:

- “I’m so grateful, but it’s not the right time for a move.”

None of these present a good opportunity for them to try again. When you consider possible responses to shut down further efforts to persuade you to say yes to a request, try to imagine a workaround. Use obstacles that can’t be solved or resolved rather than something like, “Sorry, I’m not interested in a lateral move,” because they could suggest an elevated position.

ATTIA: I went to an open CrossFit workout when I first moved to Traverse City—it was on Memorial Day and they were doing a brutal workout called The Murph. After we had all completed it, the coach asked me if I wanted to get a T-shirt for twenty dollars. I really didn’t want one... I had a pile of T-shirts I was still trying to cull. So I told him, “Oh gosh, that’s so nice, but I don’t have any cash.” He perked up and said, “No worries. Do you have Venmo?” Darn it. I made the mistake of making my obstacle easily resolvable. I ended up pivoting the conversation to thank him profusely for the workout and then hurried out, feeling awkward by the looming T-shirt purchase.

Keep Your Reasons Vague.

The more information you give the other person about a problem, the easier it is for them to think of a solution. If you are not looking for a solution, provide as little information as possible. Keep your response short and to the point. If they ask for more information, remember, you are under no obligation to share it.

- “I’m so grateful but it’s not the right time for a move.”

- “How come?”
- “There are some exciting internal opportunities, but I’m not at liberty to discuss them.”

If they keep pressing you, push back more firmly. “I’m afraid you will have to accept my decision as final.”

Now, sometimes people do sincerely want feedback on why their offer wasn’t good enough. Remember that you never have to, but if you want to provide that feedback, feel free to do so—just be cautious about offering them an opening to try to draw you back into a negotiation. In addition, be kind when offering the feedback.

Make Suggestions for *Their* Alternative.

A colleague of ours works with a speaker’s bureau. She gives talks at big speaking events and conventions. She is extremely well paid and charges a standard fee. Occasionally, a potential client will try to bargain her fee down. She tells them, “The speaker’s bureau I work with charges all my clients the same rate so I can treat everyone fairly. I know I may not be the right choice for everyone’s budget. I can suggest some of my younger colleagues who do an excellent job and are more affordable.”

There are several reasons why this works. First, it’s clear that you aren’t engaging in a bargaining ploy. Someone who is genuinely interested in a speaking engagement doesn’t suggest the competition, so the customer knows she isn’t bluffing. Second, while rejecting the offer, she is trying to fill the client’s need. And it gives her the chance to potentially push some work to deserving younger colleagues.

Use the tools from exercise 2; look the other person in the eye and give your voice a downward inflection at the end of your suggestion, indicating finality. Watch their reaction. Is there an opportunity to be kind or compassionate in a way that won’t give them the wrong impression?

EXERCISE 3

Say No, Nicely

Again, wait for someone to make a request that you don't want to agree with. But this time, instead of a curt no, make it as nice as you can. That might include:

- Compliment them for asking
- Give an explanation for your refusal
 - That is focused on *you*, not the offer
 - That gives no room for argument
- Suggest an alternative for the counterpart

See how well they take it. Ideally, the counterpart will stop asking but will remain cordial: "Oh well, I had to ask. We can still be friends."

Not Yet: Give Them a Problem to Solve

WE MENTIONED NEGOTIATION GURU Jim Camp in several earlier chapters. One of his suggestions in saying no to a request is to recast the no as a step in a process rather than a final decision. For Camp, *no* is like a pause button that lets people relax. A former football player and coach, he treated a no like the downtime in a huddle between plays. It's a chance to figure out your next play or get the play brought in from the coach on the sidelines. As Camp points out, some people use *no* as a means of communicating that "you'll have to do better than that" rather than as an attempt to shut down further discussion.

Just as you can say no in a way that unequivocally ends the conversation, you can also offer a "not yet" that invites them to make a better offer. Rather than the flat no we speak about above, a "not yet" makes it clear that their suggestion doesn't work, but the door is open for continued negotiation. It could also sound like "This part of the deal doesn't work" or "We will have to do better to make this work for me," which brings them into problem solving with you.

One of the strategies that hostage negotiators love for dealing with a hostage taker is to make everything their problem. In previous decades, hostage negotiators would ask for "proof of life"—evidence that the victim was alive and unharmed. More recently, hostage negotiators switched to a new tactic. When the kidnappers call the number the police leave them, a family member is instructed to say, "I have money, but how could I possibly pay you? I don't even know if my husband is alive." Now the kidnapper thinks, *OK, I have to solve that problem to get my money.*

Why do hostage negotiators love this tactic so much? First, it lures the bad guys into the problem-solving process. Instead of letting them make demands, they are now put in the position of having to offer solutions. Second, once the bad guys come up with a plan for proof of life, it's *their* plan. It isn't something they are doing grudgingly. They become committed to the deal. That makes them more likely to keep their promise to return the hostage.

Why do the bad guys almost always go along with it? Because it makes them feel powerful and in control. They solved a problem. In the movie of their life, it

was a small win in the negotiation for ransom money. As a hostage negotiator, that's the response you want when you offer them the chance to solve your problem.

ATTIA: In my negotiation with Carlos when trying to leave Colombia, I could have brought him into the problem solving by reframing the situation: "Carlos, Isaiah and I are uncomfortable staying with this threat. We plan on leaving by Friday and would love your help figuring out the best way to make that happen." This would have made it clear to Carlos that his proposal of sticking it out wouldn't work but that we wanted his help and invited him in to find a solution that worked for everyone.

Our point is that "not yet" offers a world in between "yes" and "no" where you can get more out of the deal. The way in which you frame the not yet is important because you want to pose it as a problem for them to help solve, which will drive their buy-in to the solution.

Our heroine from the previous chapter did this brilliantly. When we left Mary Sue, she had an improved job offer with DoubleTalk in Pittsburgh. But of course her boyfriend, Alejandro, is relocating to Seattle. That aspect was not ideal. One of the firms she turned down had offered her a position in Seattle, but it was a bigger, more bureaucratic organization, which didn't appeal to her. The only thing right about it was the location.

When she was telling us this story, we remarked, "Wow, the classic dilemma between love and career. Which will you pick?" Immediately she said, "Career." We were surprised, but she explained: "I like him. A lot. But we've only been together for three months. If I give up my dream job for a boy and then we break up, what kind of fool would I be? It's too early to know for sure, and that means it's too early to commit. And if I make that commitment before *he's* ready, it could scare him off."

After thinking things over, she did some more research on the internet and discovered that DoubleTalk had a small office in Seattle! When they called back to ask for her decision, she told them honestly, "Oh my gosh, I'm so conflicted. I love your company. You are clearly my first choice. What makes it hard is that my boyfriend is moving to Seattle to take a job, and I have this other offer in Seattle.

If only DoubleTalk were in Seattle, that would solve everything.” The recruiter said, “I’ll call you back tomorrow.”

In fact, the recruiter called back later the same day. “I talked to our two founders. They both agree that work-life balance is important. They also want to work closely with you, to make sure you understand their philosophy. That means you would have to work in Pittsburgh for a year, and then you could transfer. In the meantime, however, they said you could work out of our Seattle office for one week every month. You would get to know that part of the business, and you would be a liaison between Pittsburgh and Seattle.”

Bottom line, Mary Sue landed her dream job, and also got to enjoy time with her boyfriend one week per month. She and Alejandro are still together, and they have a beautiful baby daughter named Mila. To make it work, she only needed to pay close attention to the timing for each decision she made, think through her interests, and develop alternatives. Her superpower was waiting for the right time to make a decision.

Takeaways

WHILE PERSONALITY ASSESSMENTS CAN BE helpful, we argue that in negotiation, skill development is more important than innate talent. That’s great news for you. With a little application, you can be among the top 10 percent of negotiators. That’s a huge advantage in life. Whatever your innate endowments, you can get better. If you are naturally agreeable, tend to give in too easily, and have trouble saying no, you can learn to set reasonable limits and gain comfort with saying no. If you’re naturally disagreeable, you can learn to showcase your limits nicely.

When it comes to saying no, we find it to be a superpower in negotiations. Whether it’s a not yet or a firm no, it can help you get the best possible deal for yourself. It can also help you set appropriate boundaries. You can learn how to lessen the discomfort of saying no (we won’t promise it will completely go away but it can certainly be less), which can save you a lot of trouble and grief down the line by not agreeing to something you didn’t want in the first place.

CHAPTER 10

Putting It All Together

WE THINK BEING A BETTER negotiator will make you much better off. And, for the world, having better negotiators can drive huge positive impact. The virtuous cycle of getting more value for yourself by driving more value for others means a better world for all of us. You get more *and* I get more? Yes, please.

Our goal for this book was turning generally accepted negotiation advice into specific, actionable skills to help you become a better negotiator—and giving you exercises to practice them. The next step is to turn these ideas into a customized program for your personal improvement.

We can't design a full negotiation training program for you. We don't know you well enough. We don't know what you are good at now or where your skills need work. We don't know your goals. We don't know what is required in your job or what would help most in your family life. We don't know how quickly you learn new skills.

Designing a program to strengthen your negotiation skills just needs a little bit of your time and attention. The optimal program depends on the following:

- What are you good at now?
- What are your current struggles with negotiation?
- What do your work life and your personal life need?
- What is your social environment like?

Identify your biggest challenges and areas where you want to improve to have the most impact on your daily life. The techniques in this book are a jumping-off point. When we prescribe exercises to our students, we often hear back on how they tweaked them to fit their own circumstances. That's what we hope you will do.

ATTIA: I had a student who started her new job before the semester wrapped up. In the job, she was working in a small team of four, and she was facing some animosity from one of her new colleagues who had been on the team for several years. When she created a training program for herself, it included reciprocity to build goodwill with the colleague, as well as understanding her interests to learn where the hard feelings were coming from. It turns out the colleague was feeling insecure about someone new joining the team, and my student was able to turn the relationship into a positive one.

JOHN: One of my students was so uncomfortable with asking for things that instead of asking her neighbor to borrow a screwdriver to fix her drawer, she went across town to the hardware store and bought a new one. She labeled the aversion as being conflict averse because she equated asking for something with conflict. She created an exercise for herself: For one week, she needed to ask for something at least once a day. This was an excellent exercise for her to focus on, because if you don't ask, you'll never get what you want.

What would “the situation” be for you? We want to start with low stakes. Is there something that bothers you but isn't that big of a deal? Maybe your spouse takes forever to leave a party, or your neighbor makes a ruckus early in the morning with his leaf blower, waking you up. Once you've identified something, we now have some advice on how to design the program itself.

Components of an Ideal Program

IN THIS CHAPTER WE WILL offer some ideas on how to design your negotiation skill improvement program—things we have learned from athletes, musicians, and first responders about how to practice and maintain new skills.

To create a perfect training regimen for yourself, we suggest you consider the following components:

- Gamify your negotiation practice,
- Find a buddy to practice with,
- Determine your order of practice,

- Journal about your practice daily,
- Teach someone else the skills, and
- Identify your motivation for improvement.

Make It a Game.

The idea with the exercises in *Never Settle* is to turn the process of learning the material that seems scary into a low-stakes game where rejection doesn't come with significant consequences.

Here are some general approaches to help with this:

- Start by practicing in low-stakes situations. This is something we've raised repeatedly. Don't attempt to use *anchoring* for the first time by asking your boss for a raise. Go to an antiques shop and offer less than the price on the tag. Even if they refuse to bargain, the important thing is that you asked. You faced your fear of rejection and overcame it. Start with small steps toward improvement so when the stakes *are* high, you're already well skilled to navigate the negotiation with a high degree of competence.
- Gamify your improvement plan—give yourself imaginary points for trying and succeeding. And give yourself more points for attempting the harder exercises.
- Everything is more fun when you do it with a friend. That's worth thinking about in more detail...

Who's Your Buddy?

You get better playing an instrument (or a sport, or a new game) a lot faster if you play with other people. You learn things from watching them. On one hand, it's more challenging to mesh with other players. But it helps, at least partly, because you don't want to look incompetent in front of them. You practice more alone because you want to show them at the next session.

You'll improve your negotiation skills a lot faster if you are working together with a friend. Or a couple of them. If you're competitive, it may even get you to

practice a bit on your own. Think about passing along a copy of this book to get them started.

In picking partners in crime, here are a couple of things to think about:

- Who already has the skills you want to improve? They can coach you.
- Who do you trust enough to risk making a fool of yourself in front of?
- Who do you want to get to know better?

But most important, who would be fun to work with? It could be your knucklehead roommates. A few years back there was this house full of Russian, Polish, and Bulgarian guys going to business school at MIT. All four of them were in our negotiation class. They all started doing these experiments on one another. They all cleaned up the kitchen to spark reciprocity, and then all accused one another of trying to manipulate the others. They all started accusing one another of doing negotiation experiments even when they weren't. Sounds like fun.

It's also a lot of fun to do as a couple. It makes you really pay attention to each other and probably makes you appreciate what your partner is good at.

ATTIA: My husband, Isaiah, says I have a negotiation “voice.” He says he always knows when I'm using a technique on him because that voice comes on. He doesn't mind it, however, because he knows I'm just trying to help improve the situation. But he wants me to know he knows it. And he now uses some of his favorite techniques back on me—the best is when he uses an emotional label when I'm feeling angry or frustrated or overwhelmed. It quickly helps me release the emotion whirlwind, and while I know what he's doing, it calms me, and I'm grateful for that.

In What Order?

In our experience, it's hard to work on more than one negotiation skill at a time. If you can concentrate on more than one, that's great. But we have found that working on just one is the optimal path for improvement. That raises the question, What should you work on first? Here are three suggestions:

Follow the book order. We put the chapters in the order we did because we think it's easy to understand that way. And we think the skills ramp up in difficulty, in the sense that those at the end are the most challenging for most students to use. We also tend to use the sequencing of the book in our own negotiations—start with relationship building, then understand interests, and so on. If that works for you, great.

Start with your weakness. Your game is only as strong as its weakest link. That probably means starting with the one you least want to do. It's OK to do some easy ones first to warm up to it, but we find that the ones we most want to avoid are often the ones we need to improve on the most.

Let your partner choose. We recommended above that it helps to have a partner, a crony. Presumably that person knows you pretty well. Let them pick. We are positive your partner has plenty of ideas of what you should work on. Our partners are happy to offer us skills to work on—often and sometimes unsolicited—but we did open that door, right?

Work On It Every Day.

You get to choose a tempo. How often do you want to fit in an exercise? Our recommendation is to schedule it daily, but perhaps weekly feels more achievable to start.

It doesn't have to take a long time. It could be the five seconds when you ask that person their name. Or when you tell the group that is going out after work, "Hey, I know a place we should go." It could be ten minutes when you ask your spouse what they care about most when they start a new job search.

While practicing a skill doesn't have to take long, it should be hard. Challenging. You don't get stronger in weight lifting by doing the same weight. You must add more weight or do more reps or focus on different muscle groups. And your muscles can be sore the next day after a tough workout. In the case of negotiation, the pain is often rejection. But that's the price you pay to get better, and the pain diminishes the further you develop your skills.

Keep a Record.

What do weight lifters and musicians have in common? The serious ones keep records of their progress. Lifters write down every session, with exercises, weights, and repetitions. Partly that's so they can lift a little heavier weight the next time or do a few more reps. But it also helps them track their progress. If they stall out, they try to figure out, *What do I need to do differently? Do I need more sleep? To eat more? Should I train more frequently? Less frequently? Alter my exercise program?*

Musicians do the same. Bluegrass banjo players try to set the metronome one beat per minute faster each time. They make recordings and listen for mistakes they might have missed while they are playing.

The same thing helps with learning negotiation. Keeping a journal gives you a more objective sense of what's working and what's not. It helps you know when you have succeeded at a skill and are ready to move on to the next.

It does something else that's even more important. It keeps you motivated.

JOHN: I used to do a lot of mountain climbing. Everything from hiking the forty-eight four-thousand-foot mountains in New Hampshire to technical, glaciated summits like Mount Rainier in Washington state. Motivation is always a problem. Sometimes you are incredibly tired, so it feels like a huge relief when you get to the top. Sometimes you realize that what you thought was the top is a false summit and that you still have a ways to go. It's a moment when a lot of people get discouraged and head back down. What I've found helpful in that moment is to look down. Looking at all the way you have already come, and seeing the progress you have made, can give you fresh energy to keep going.

A journal is how you do that. When you look at the early pages and see how inexperienced you were (compared to now), it gives you fresh hope to keep working and keep improving. You'll look back and see how far you've come, and it will motivate you.

And as you go, the journal makes you pay attention, keeps you on track. Back in the 1970s, it was fashionable to do studies on plants. It turns out that if the owner or gardener talks to the plant, it does much better. OMG! They can hear us! It's a psychic bond! Nah. If you stand in front of your plant every day and

talk to it, you end up noticing when it needs water or has aphids or whatever. A journal is you talking to yourself like the gardener or plant owner talks to the plant. It keeps you paying attention, and as a result you do a better job tending to your skill development.

You can also use the journal to score yourself. Here's a game: Make a list of things you need to do that day and assign points for completing each activity. Maybe I get two points for every person I introduce myself to and learn their name.

- Introduced myself to the guy at sandwich shop. His name is Jose. 2 points.
- Told my boss I wanted to talk to her about a raise and mentioned that a friend is getting \$10K more for same job at competitor. 40 points (that was hard). Meeting set for next week. What skill to try in there?

Teach Someone Else.

As educators, we like to think our students learn a lot from us. They're smart; they pay close attention (most of them). But the teaching assistants who work with us learn ten times as much. Why? Because they have to know the ideas cold—well enough to explain them to someone else. Once you start getting comfortable with the techniques, see if you have a willing student who wants to learn a bit about negotiation—perhaps it's a colleague you go out to lunch with a couple of times a month or your roommate, your sibling, your parents, or a best friend. We are sure you know someone who will appreciate some pearls of wisdom on negotiation. And sharing that wisdom with them will not only help them but will also strengthen and deepen your understanding of the concept.

Prepare for Your Negotiations.

The more time you spend preparing for any given negotiation, the better you will do. Most people don't prepare at all. We think that's because most people don't have a clear idea of how to prepare. We have put a template in the appendix that you can use to do just that.

Preparation will make any negotiation go better. But it does something else, something even better. It makes all your future negotiations go better too.

Musicians are told, “When you’re on stage, don’t think about what you’re doing. Just turn off your brain and let it come out of you.” The time to think about the music and how to play it is in rehearsal. Preparation is like rehearsal for the negotiation. It’s one of the times you get better (the other time is during the training exercises in this book). The exercises build your skills. Preparation builds your ability to think quickly and accurately about negotiation, as well as helps you know the facts relevant to this deal.

Motivation Is Key to Success

Now you have the tools to create your own coaching program. But we have one more piece of coaching to offer on motivation, which is the key to implementing that plan.

JOHN: I started lifting weights a long time ago, and I got pretty strong. But I reached a plateau—deadlifting about 250 pounds. I just didn’t care enough to put in all the work to get stronger. But once I joined the fire department and began working as an EMT, I would find myself one of two people carrying a plus-sized patient down the stairs. Deciding whether to go to the gym now meant being able to carry a patient safely to the hospital without dropping them. Pretty soon I could lift 350 pounds, just because now I had a reason to care.

Most people are motivated extrinsically—by external pressures, rewards, and praise, like a deadline or positive word from a boss. But self-improvement generally comes from intrinsic motivation—an internal desire to accomplish a goal. That one is harder because we have to find motivation *within* ourselves to create a plan for improvement, find time for the exercises, and then actually execute. It’s often easier when we have someone holding us accountable. So we want you to explore how you might find your own intrinsic motivation to improve your negotiation skills.

We all have feelings of insecurity and vulnerability, and as you work through these exercises, you’ll certainly run into that. But what helps get past those feelings—whether it’s loneliness, fear, or anxiety—is the drive and determination

to get better. We want you to find that drive for yourself. Think about what it means for you to get better at influence and negotiation, because that means you will stick with it.

What is it that you want? What do you dream of happening this year? What would be a huge win? Do you want to land a new job and achieve a 20 percent higher salary? Do you want to improve the balance of household responsibilities with your spouse and have less tension at home in the evenings? Do you want your brother to stop asking you for money? Do you want to improve the way your team functions at work? Do you want to double the donations for a nonprofit you're on the board of? You can expand the scope of what you want, dream bigger, and achieve those things because you have the power to win your negotiations. Now you know how to set yourself up for success, make the ask, and not take no for an answer.

The following story is about how far Attia came after just a few years of practicing these negotiation skills.

ATTIA: In early February 2020, I was sent by the State Department to do some negotiation and conflict resolution work in Colombia, as we mentioned earlier. Though it was the perfect time to get away from Michigan, it was *hot* in Valle de Cauca, which is where I was working—two to four hours of hot, dusty, bumpy, and winding roads between each cooperative. The goal of my work was to meet with rural cooperatives in Colombia to help farmers transition from growing cocaine to other crops. It was a hard sell, because growing coca was easy—they could do it on their own on a small plot of land, and the cartel would come pick it up and drop off money. Now, the Colombian government was trying to get the farmers to create cooperatives to work together to grow other crops, such as oranges—but they didn't know how to grow oranges. And they didn't know how to work together, or how to get the oranges to market and sell them. My husband was working on the fruit farming part, and my job was to meet with cooperatives and help them figure out a way to work together.

I was at my eighth cooperative. It was blazing, almost 100 degrees Fahrenheit, and we were outside in a shaded portico, encircled by an orange grove. I was dripping with sweat, but not just because of the heat—I had been advised that

the current cooperative leader was actually a mid-level cartel boss. Well, darn. I wish someone had mentioned that sooner. I chugged some water as I assessed the situation.

He was highly motivated to keep the co-op growing coca and had an interesting technique to distract the group from working together. He would bring a drone to each of the meetings, telling the farmers they would get rich by using drones. How? He never explained, which made me even more suspicious of him. In fact, he opened the drone case as I started to introduce myself, and suddenly I found myself having to speak over the buzzing of the propellers.

I started our meeting, but Drone Man kept interrupting me, determined to keep us from making progress (which was already hard enough given my imperfect Spanish). On top of that, the cooperative members, forty middle-aged Colombian men, were clearly not impressed by a younger, American woman of South Asian heritage who had been dropped in to “help them.” And it sure looked like they didn’t feel comfortable challenging Drone Man—they averted their eyes every time he interrupted.

I wasn’t that comfortable either, since a nearby village had been massacred by the cartel a decade earlier. I didn’t want that to happen to these farmers, or to me either. I was tempted to call it a lost cause and give up—but then what? These farmers would continue growing coca, and at some point the cartel would show up with their weapons, as they always do. I knew I could help—that’s why I was there in the first place. So I took a deep breath to ease my fear and firmed my spine.

Thinking more rationally, I assessed that I had several specific problems to handle. Looking back to my training at MIT, I realized I already knew some moves that could work for each of them.

First, I needed to establish relationships with the farmers and get them to trust in the process. I decided to pivot slightly and asked everyone to share a bit about themselves. This gave me time to think through my next steps, but it also gave me some personal context on them. I engaged the group in conversation about their crop, family history of farming, and the weather. It paid off, because I could see the surprised pleasure on their face when I referred to something I had learned about them.

Next, I needed to identify the farmers' interests and align them with the interests of the Colombian government, which wanted to stop coca production. I asked them each to write down why they wanted to grow oranges in a cooperative and pass me their responses. I compiled them and read them aloud: You want to be able to make a profit from growing oranges, and you also don't want cartel violence in your town any longer. There was stunned silence when they realized they all wanted the same things. By labeling those interests, they realized I was listening and cared about what they needed, and their shared interests bound them further together as a group. It also made them more interested in what I had to say next.

Last, I wanted them to see that they had the power to push back against Drone Man and move forward with their plan to grow oranges. They could say no to the never-ending promise of drone money, and the new crop could be a reasonable and profitable alternative to growing coca.

As we started discussing how the cooperative members could move forward with orange production and sales, Drone Man tried to interrupt me again—this time by standing up and flying the drone to distract everyone. I narrowed my eyes and knew I had to conquer my fear to show the others they could too. I firmly and confidently stated, "Stop." I paused to let it sink in, and to enjoy the shocked look on his face. I then told him, "Today we are focusing on a one-year growth plan for orange production. We have all agreed on the norms. You're welcome to stay if you'd like to participate in that discussion. Otherwise, I will have to ask you to leave." The look on Drone Man's face was priceless. But the look of astonishment and empowerment on the faces of the farmers was even better. I then called out to individuals—and saw surprised pleasure on their faces when they saw I remembered their names—who had been willing to speak up and asked them questions to learn more about their perspectives and needs. I raised a hand to cut off Drone Man when I saw his mouth open to interrupt them and saw some of the men hide smiles behind their hands. They were starting to like me. I had succeeded with step one.

After ten to fifteen minutes, the emotional temperature of the room was transformed. The farmers went from being stoic and silent to engaged and enthusiastic about orange production supply chains, as they realized that their

voices and concerns were being listened to and respected. They were standing at my easel, adding notes about distribution and shipping. They ignored Drone Man as he tried to interfere. About halfway through, I saw him slink away, and I let out a relieved sigh. We worked through the issues point by point—aligning their interests on creating a sustainable cash flow through orange production. In the end, we not only established a one-year strategic plan to expand orange production but we also set up operating rules for the cooperative itself: They would meet monthly, leaders were assigned with specific duties (which didn't include Drone Man, ultimately stripping him of some of his power), they would communicate through WhatsApp to coordinate production, and they would have facilitated conversations like the one we'd just had.

I went back to my hotel room that night feeling an incredible sense of pride at what I had been able to accomplish. I had helped these farmers find a path where they could collaborate and get out from under the cartel's thumb. They started seeing one another as allies with shared interests and strong emotional motivations. Several months later, I received a brief message from one of the nonprofit partners telling me that the cooperative was still operating well and negotiating as a unit based on the new structure we established. I was thrilled—I had made a difference in a small village and hopefully helped them avoid future violence and suffering. Through their success, others would see what was possible and follow suit.

You are going to face your own high-stakes negotiations, such as for new jobs and big corporate deals, not to mention daily negotiations like disputes with neighbors, colleagues who are Takers, household responsibilities, and getting help for aging parents. We know that negotiation is a key to getting what you want in your life and career, because we have seen it not only in our own lives but in the lives of our students and clients. And you are now on the path to getting what you want in all those negotiations. These situations no longer need to feel daunting because you have the tools to ask for what you want and never settle. We often find that doing these exercises improves not only people's professional relationships but their relationships with their family members, romantic partners, and friends as well. We hope that is true for you.

The last thing we want to leave you with is this: Improving your negotiation skills will make you more successful and happier. It will also make the world a better place.

If you connect more with the people around you, by learning their names and fostering positive relationships, you will be better off. You will have more friends and more business connections. You will find out about job openings and good deals. But you will also be fighting against the trends of isolation and depersonalization in society. You will be making a happier, more connected world, and that will benefit all the people around you.

If you can create more value by learning interests and inventing options, you make yourself better off. You will get a share of that value and make yourself richer. But that will help the person on the other end too. You will be making the world a richer and more creative place.

If you use criteria to decide arguments about money, you will get a better deal for yourself than by any other method we know of. And by advocating for principled resolution, and showing how effective that strategy is, you will be making the world a fairer place.

By managing your feelings, you can make the world a more rational place. By empathizing with others' feelings, you can make the world a kinder place.

And it won't be just you. Doing these things will make you succeed more often. When others notice how well you did on your salary negotiation, or how office meetings go better when you are there, or what a good relationship you have with your spouse, they will want to know how you do it. And they will start to imitate your behavior. Every time you win, you will be spreading the word of better negotiation. That might not solve all the problems in the world, but it will make them a little bit better.

That's what we want. That's why we put in all the time and effort to write *Never Settle*.

You have power to influence those around you. Each negotiation sparks a ripple that builds momentum toward a richer, fairer, and more connected world. Never settle for anything less.

APPENDIX

BELOW ARE THINGS TO CONSIDER during negotiation prep. There is a blank prep sheet after the questions you can fill in with your responses.

Building a Relationship

- What are the names of everyone involved? Have you introduced yourself so they know you?
- What do you have in common with them?
- What's a "sandwich" you could offer?

My Interests

- What do I want?
 - Economic interests
 - Emotional interests
 - Career interests
- Rank your interests in importance.
- Who could I ask about this kind of decision?

Their Interests

- What do I think are their interests now?
 - How could I describe their interests most sympathetically?
 - Which of their interests are most important? Least?
- What could I ask to find out more?

Options

- What are components of a creative deal?
- What two offers could I let them choose between?
- Can I think of a swap of something important to me but not to them, and vice versa?

- How could I invite them to explore options together?

Criteria

- What market standards are available?
- Which one is most favorable to me?
- Do I know the market well enough to go first?
- If no direct standards are available, what can I cobble together?

Alternatives

- What could I do if I don't reach a deal?
 - Which of those is best for me?
- What could they do without me?
 - Would that be bad for me?
- What alternative could I invite them to bid against?

Emotions

- Does this negotiation make me anxious? Angry? Sad?
 - How could I soothe myself before the negotiation starts?

Prep Sheet for Your Negotiation

Goal for Negotiation:

RELATIONSHIP	EMOTIONS	
How can we improve the relationship?	Ours	Theirs

INTERESTS	OPTIONS	
Ours	Theirs	

ALTERNATIVES	
Ours Which is our best alternative to the negotiated agreement (BATNA)?	Theirs

CRITERIA	COMMUNICATION	
What external benchmarks may be suggested?	Questions to ask:	Messages to send:
Benchmark Number		

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JOHN: Of course, we aren't the first people to give advice on negotiation. If you have found this book helpful, it is largely because we have stood on the shoulders of giants. Roger Fisher was a pioneer in teaching negotiation and came up with some of the most useful advice. He and his colleagues Bill Ury and Bruce Patton did an enormous amount of work growing the field and advancing others' careers. They created a community of people who built up these ideas, among them: Doug Stone, Sheila Heen, Alan Price, Andrea Kupfer-Schnieder, Scott Peppet, Drew Tulumello, Donny Ebenstein, and Jared Curhan. Jared also hired us both to teach at Sloan, for which we will be forever grateful.

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Chris Voss is an important thinker and scholar in this field, as well as a brilliant teacher. He did more than anyone to drag negotiation out of the ivory tower and make it a practical skill that anyone can learn.

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NOTES

CHAPTER 1: GIVE THEM A SANDWICH

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Her superpower was waiting: While her story seems too good to be true, she is in fact a real person. You can look her up at liznagler.com.

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IMAGE DESCRIPTIONS

[Description 1:](#) A large circle diagram, divided into various segments. A small circle in the center is labeled Emotional Wheel. The diagram divided into six main categories at the center: Happy, Sad, Angered, Afraid, Disgusted, and Surprised. Each category expands outward into increasingly specific feelings. Surprised includes Amazed, Confused, and Startled, which further branch into Astonished, Awed, Eager, Energetic, Perplexed, Disillusioned, Disoriented, Shocked, and Dismayed. Sad includes Bored, Lonely, Depressed, and Guilty, expanding into Indifferent, Apathetic, Isolated, Abandoned, Melancholy, Miserable, Ashamed, and Remorseful. Angered includes Critical, Distant, Frustrated, Aggressive, Mad, and Hateful, which extend into Sarcastic, Skeptical, Suspicious, Withdrawn, Irritated, Annoyed, Hostile, Provoked, Enraged, Furious, Cruel, and Malicious. Happy includes Optimistic, Trusting, Peaceful, Powerful, Accepted, Proud, Interested, and Joyful, expanding into Hopeful, Inspired, Sensitive, Intimate, Loving, Content, Courageous, Creative, Valued, Respected, Successful, Confident, Curious, Inquisitive, Liberated, and Ecstatic. Afraid includes Insecure, Anxious, Scared, and Terrified, which branch into Inferior, Inadequate, Worried, Overwhelmed, Frightened, Helpless, Horrified, and Panic. Disgusted includes Disapproving, Disappointed, Awful, and Avoidant, expanding into Judgmental, Embarrassed, Appalled, Revolted, Nauseated, Detestable, Hesitant, and Reluctant. [BACK.](#)

[Description 2:](#) The left oval is divided into two uneven sections labeled Peru and Ecuador, with Ecuador occupying a slightly larger portion than Peru. The right oval shows a similar division but with revised labels that clarify meaning: the larger section is labeled Peru: Inside Rio, while the smaller section is labeled Ecuador: one square kilometer. The visual contrast suggests that the initial comparison between Peru and Ecuador is recontextualized through the concept

of value, where Peru's portion represents a broader or less specific measure described as inside Rio, while Ecuador's portion is precisely defined as one square kilometer. The arrow emphasizes the shift from a simple categorical division to a more explicit interpretation of scale or measurement. [BACK.](#)

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